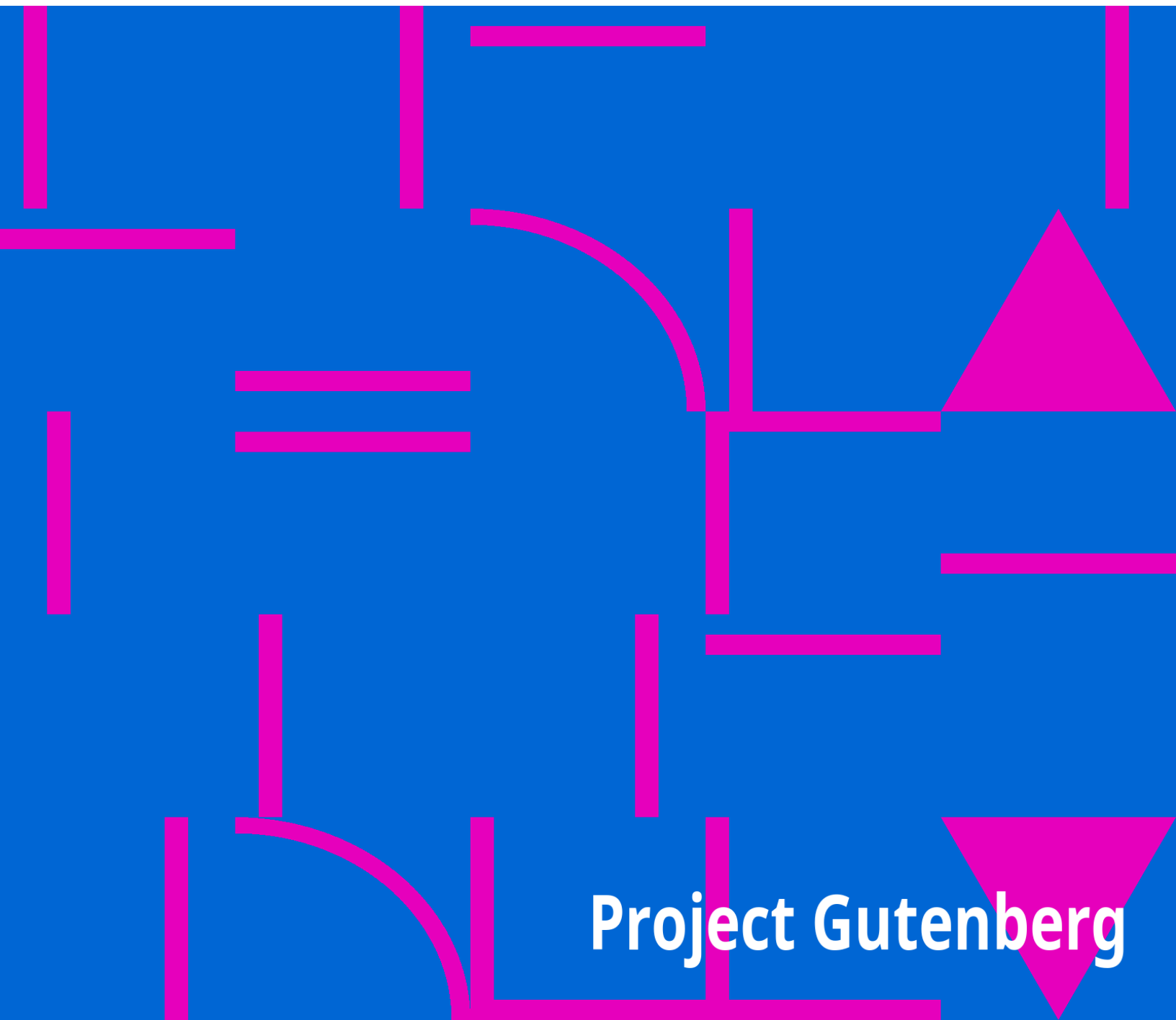


# The Heritage of the Hills

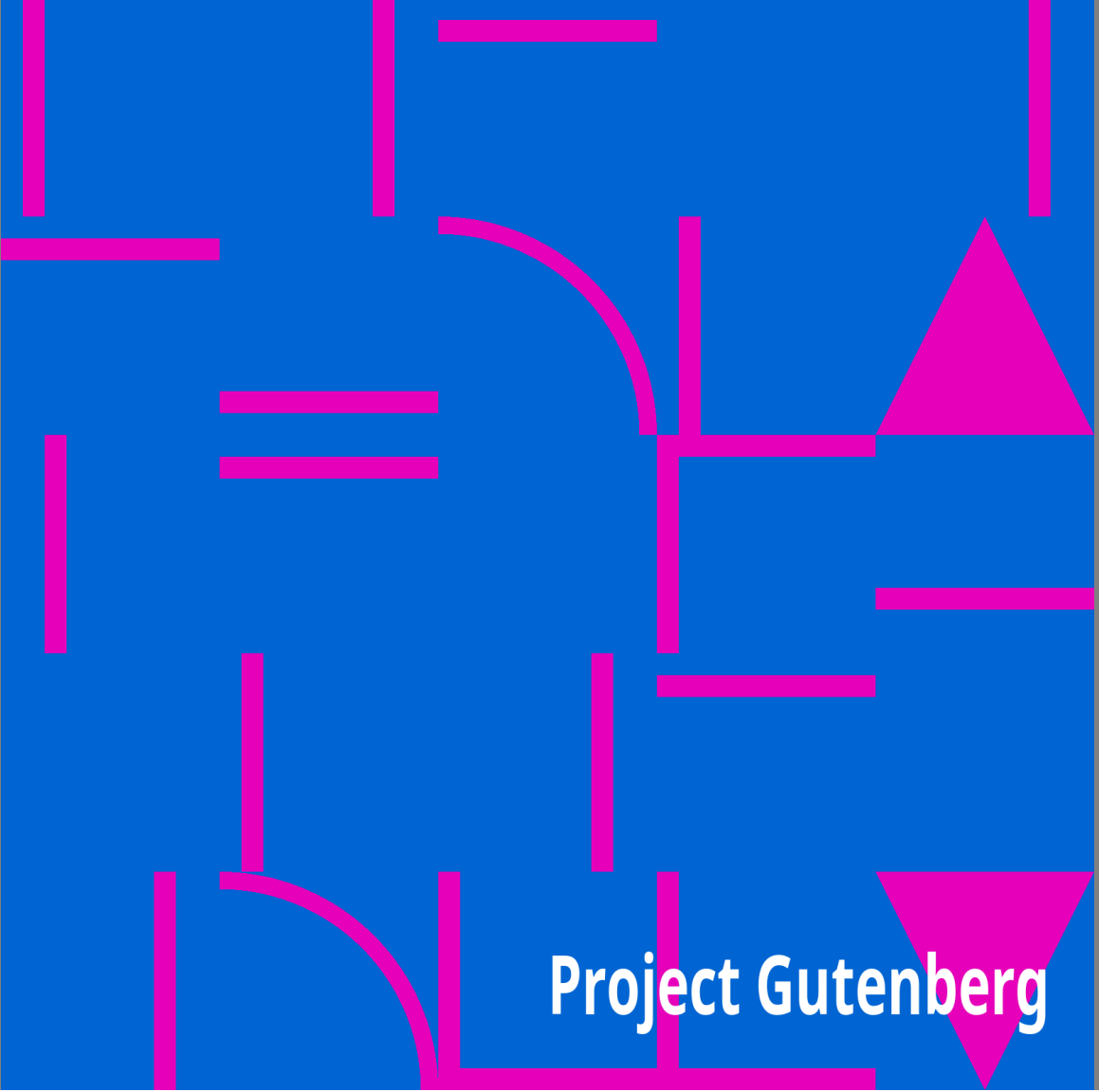
Arthur Preston Hankins

The background of the lower half of the image is a solid blue color. Overlaid on this are various magenta geometric shapes and lines. These include several vertical and horizontal lines of varying lengths, some curved lines, and two large triangles (one pointing up and one pointing down) located on the right side. The overall effect is a modern, abstract design.

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# The Heritage of the Hills

Arthur Preston Hankins



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OF THE HILLS \*\*\*

# **THE HERITAGE OF THE HILLS**

**BY ARTHUR P. HANKINS**

**Author of "THE JUBILEE GIRL," Etc.**

**NEW YORK  
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# The Heritage of the Hills

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# CHAPTER I

## AT HALFMOON FLAT

The road wound ever upward through pines and spruce and several varieties of oak. Some of the latter were straight, some sprawling, all massive. Now and then a break in the timber revealed wooded hills beyond green pasture lands, and other hills covered with dense growths of buckhorn and manzanita. Poison oak grew everywhere, and, at this time of year—early spring—was most prolific, most beautiful in its dark rich green, most poisonous.

Occasionally the lone horseman crossed a riotous stream, plunging down from the snow-topped Sierras in the far distance. Rail fences, for the most part in a tumbledown condition, paralleled the dirt road here and there.

At long intervals they passed tall, old-fashioned ranch houses, with their accompanying stables, deciduous orchards and still dormant vineyards, wandering turkeys and mud-incrusted pigs. An air of decay and haphazard ambition pervaded all these evidences of the dwelling places of men.

"Well, Poche," remarked Oliver Drew, "it's been a long, hard trip, but we're getting close to home." The man spoke the word "home" with a touch of bitterness.

The rangy bay saddler slanted his left ear back at Oliver Drew and quickened his walking-trot.

"No, no!" laughed Oliver, tightening the reins. "All the more reason we should take it easy today, old horse. Don't you ever tire?"

For an hour Poche climbed steadily. Now he topped the summit of the miniature mountain, and Oliver stopped him to gaze down fifteen hundred feet into the timbered cañon of the American River. Even the cow-pony seemed enthralled with the grandeur of the scene—the wooded hills climbing shelf by shelf to the faraway mist-hung mountains; the green river

winding its serpentine course far below. Far up the river a gold dredger was at work, the low rumble of its machinery carried on the soft morning breeze.

Half an hour later Poche ambled briskly into the little town of Halfmoon Flat, snuggled away in the pines and spruces, sunflecked, indolent, content. It suited Oliver's mood, this lazy old-fashioned Halfmoon Flat, with its one shady "business" street, its false-front, one-story shops and stores, redolent still of the glamorous days of '49.

He drew up before a saloon to inquire after the road he should take out of town to reach his destination. The loungers about the door of the place all proved to be French- or Spanish-Basque sheep herders; and their agglutinative language was as a closed book to the traveler. So he dropped the reins from Poche's neck and entered the dark, low-ceiled bar-room, with its many decorations of dusty deer antlers on fly-specked walls.

All was strangely quiet within. There were no patrons, no bartender behind the black, stained bar. He saw this white-aproned personage, however, a fat, wide, sandy-haired man, standing framed by the rear door, his back toward the front. Through a dirty rear window Oliver saw men in the back yard—silent, motionless men, with faces intent on something of captivating interest, some silent, muscle-tensing event.

With awakened wonder he walked to the fat bartender's back and looked out over his shoulder. Strange indeed was the scene that was revealed.

Perhaps twenty men were in an unfenced portion of the lot behind the saloon. Some of them had been pitching horseshoes, for two stood with the iron semicircles still in hand. Every man there gazed with silent intensity at two central figures, who furnished the drama.

The first, a squat, dark, slit-eyed man of about twenty-five, lazed in a big Western saddle on a lean roan horse. His left spurred heel stood straight out at right angles to the direction in which his horse faced. He hung in the saddle by the bend in his right leg, the foot out of the stirrup, the motionless man facing to the right, a leering grin on his face, half whimsical, half sardonic. That he was a fatalist was evidenced by every line on his swarthy, hairless face; for he looked sneering indifference into the wavering muzzle

of a Colt .45, in the hand of the other actor in the pantomime. His own Colt lay passive against his hip. His right forearm rested across his thigh, the hand far from the butt of the weapon. A cigarette drooped lazily from his grinning lips. Yet for all his indifferent calm, there was in his glittering, Mongolic eyes an eagle watchfulness that bespoke the fires of hatred within him.

The dismounted man who had the drop on him was of another type. Tall, angular, countrified, he personified the popular conception of a Connecticut yankee. He boiled with silent rage as he stood, with long body bent forward, threatening the other with his enormous gun. Despite the present superiority of his position, there was something of pathos in his lean, bronzed face, something of a nature downtrodden, of the worm suddenly turned.

For seconds that seemed like ages the two statuesque figures confronted each other. Men breathed in short inhalations, as if fearful of breaking the spell. Then the threatened man in the saddle puffed out a cloud of cigarette smoke, and drawled sarcastically:

"Well, why don't you shoot, ol'-timer? You got the drop."

Complete indifference to his fate marked the squat man's tone and attitude. Only those small black eyes, gleaming like points of jet from under the lowered Chinamanlike lids, proclaimed that the other had better make a thorough piece of work of this thing that he had started.

The lank man found his tongue at the sound of the other's voice.

"Why don't I shoot, you coyote whelp! Why don't I shoot! You know why! Because they's a law in this land, that's why! I oughta kill ye, an' everybody here knows it, but I'd hang for it."

The man on the roan blew another puff of smoke. "You oughta thought o' that when you threw down on me," he lazily reminded the other. "*You* ain't got no license packin' a gun, pardner."

The expression that crossed his antagonist's face was one of torture, bafflement. It proved that he knew the mounted man had spoken truth. He was no killer. In a fit of rage he had drawn his weapon and got the drop on

his enemy, only to shrink from the thought of taking a human life and from the consequences of such an act. But he essayed to bluster his way out of the situation in which his uncontrollable wrath had inveigled him.

"I can't shoot ye in cold blood!" he hotly cried. "I'm not the skunk that you are. I'm too much of a man. I'll let ye go this time. But mind me—if you or any o' your thievin' gang pesters me ag'in, I'll—I'll kill ye!"

"Better attend to that little business right now, pardner," came the fatalist's smooth admonition.

"Don't rile me too far!" fumed the other. "God knows I could kill ye an' never fear for the hereafter. But I'm a law-abidin' man, an'"—the six-shooter in his hand was wavering—"an' I'm a law-abidin' man," he repeated, floundering. "So this time I'll let ye—"

A fierce clatter of hoofs interrupted him. Down the street, across the board sidewalk, into the lot back of the saloon dashed a white horse, a black-haired girl astride in the saddle. She reined her horse to its haunches, scattering spectators right and left.

"Don't lower that gun!" she shrieked. "Shoot! Kill him!"

Her warning came too late. It may have been, even, that instead of a warning it was a knell. For a loud report sent the echoes galloping through the sleepy little town. The man on the ground, who had half lowered his gun as the girl raced in, threw up both hands, and went reeling about drunkenly. Another shot rang out. The squat man still lolled in his saddle, facing to the right. The gun that he had drawn in a flash when the other's indecision had reached a climax was levelled rigidly from his hip, the muzzle slowly following his staggering, twice-wounded enemy.

In horror the watchers gazed, silent. The stricken man reeled against the legs of the girl's horse, strove to clasp them. The animal snorted at the smell of blood and reared. His temporary support removed, the man collapsed, face downward, on the ground, turned over once, lay still.

The squat man slowly holstered his gun. Then the first sound to break the silence since the shots was his voice as he spoke to the girl.

"Much obliged, Jess'my," he said; then straightened in his saddle, spurred the roan, and dashed across the sidewalk to disappear around the corner of the building. A longdrawn, derisive "Hi-yi!" floated back, and the clatter of the roan's hoofbeats died away.

The girl had sprung from her mare and was bending over the fallen man. The others crowded about her now, all talking at once. She lifted a white, tragic face to them, a face so wildly beautiful that, even under the stress of the moment, Oliver Drew felt that sudden fierce pang of desire which the first startled sight of "the one woman" brings to a healthy, manly man.

"He's dead! I've killed him!" she cried.

"No, no, no, Miss Jessamy," protested a hoarse voice quickly. "You wasn't to blame."

"O' course not!" chorused a dozen.

"He'd 'a' lowered that gun," went on her first consoler. "He was backin' out when you come, Miss Jessamy. An' as sure as he'd took his gun off Digger Foss, Digger'd 'a' killed 'im. It was a fool business from the start, Miss Jessamy."

"Then why didn't some of you warn this man?" she flamed. "You cowards! Are you afraid of Digger Foss? Oh, I—"

"Now, looky-here, Miss Jessamy," soothed the spokesman, "bein' afraid o' Digger Foss ain't got anything to do with it. It wasn't our fight. We had no call to butt in. Men don't do that in a gun country, Miss Jessamy—you know that. This fella pulled on Digger, then lost his nerve. What you told 'im to do, Miss Jessamy, was right. Man ain't got no call to throw down on another one unless he intends to shoot. You know that, Miss Jessamy—you as much as said so."

For answer the girl burst into tears. She rose, and the silent men stood back for her. She mounted and rode away without another word, wiping fiercely at her eyes with a handkerchief.

Four men carried the dead man away. The rest, obviously in need of a stimulant, crowded in and up to the black bar. Oliver joined them. The

weird sight that he had witnessed had left him weak and sick at the stomach.

Silently the fat, blond bartender set out whisky glasses, then looked hesitatingly at the stranger.

"Go ahead, Swede," encouraged a big fellow at Oliver's left. "He needs one, too. He saw it."

The bartender shrugged, thumped a glass toward Oliver, and broke the laws of the land.

"What was it all about?" Oliver, encouraged by this confidence, asked of the big, goodnatured man who had vouched for him on sight.

The other looked him over. "This fella Dodd," he said, "started something he couldn't finish—that's all. Dodd's had it in for Digger Foss and the Selden boys and some more of 'em for a year. Selden was runnin' cattle on Dodd's land, and Dodd claimed they cut fences to *get* 'em on. I don't know what all was between 'em. There's always bad blood between Old Man Selden and his boys and the rest o' the Poison Oakers, and somebody.

"Anyway," he went on, "this mornin' Henry Dodd comes in and gets the drop on Digger Foss, who's thick with the Seldens, and is one o' the Poison Oakers; and then Dodd ain't got the nerve to shoot. You saw what it cost him. Fill 'em up again, boys."

"I can't understand that girl," Oliver remarked. "Why, she rode in and told the man to shoot—to kill."

"And wasn't she right?"

"None of the rest of you did it, as she pointed out to you."

"No—men wouldn't do that, I reckon. But a woman's different. They butt in for what they think's right, regardless. But I look at it like this, pardner: Dodd's a grown man and is packin' a hip gun. Why's he packin' it if he don't mean to use it? Only a kid ought to be excused from flourishin' iron like he did. He was just lettin' off steam. But he picked the wrong man to relieve himself on. If he'd 'a' killed Digger, as Miss Jessamy told him to, maybe he'd a hung for it. But he'd a had a chance with a jury. Where if he took his

gat offen Digger Foss, it was sure death. I knew it; all of us knew it. And I knew he was goin' to lower it after he'd painted pictures in the air with it and thought he'd convinced all of us he was a bad man, and all that. He'd never pulled the trigger, and Digger Foss knew it."

"Then if this Digger Foss knew he was only bluffing, he—why, he practically shot the man in cold blood!" cried Oliver.

"Not practically but ab-so-lutely. Digger knew he was within the law, as they say. While he knew Dodd wouldn't shoot, no prosecutin' attorney can *prove* that he knew it. Dodd had held a gun on him and threatened to kill 'im. When Digger gets the chance he takes it—makes his lightin' draw and kills Dodd. On the face of it it's self-defence, pure and simple, and Digger'll be acquitted. He'll be in tonight and give himself up to the constable. He knows just where he stands."

Oliver's informant tossed off his liquor.

"And Miss Jessamy knew all this—see?" he continued. "She savvies gunmen. She ought to, bein' a Selden. At least she calls herself a Selden, but her right name's Lomax. Old Man Selden married a widow, and this girl's her daughter. Well, she rides in and tells Dodd to shoot. She knew it was his life or Digger's, after he'd made that crack. But the poor fool!—Well, you saw what happened. Don't belong about here, do you, pardner?"

"I do now," Oliver returned. "I'm just moving in, as it were. I own forty acres down on Clinker Creek. I came in here to inquire the way, and stumbled onto this tragedy."

"On Clinker Creek! What forty?"

"It's called the Old Tabor Ivison Place."

"Heavens above! You own the Old Tabor Ivison Place?"

"So the recorder's office says—or ought to."

For fully ten seconds the big fellow faced Oliver, his blue eyes studying him carefully, appraisingly.

"Well, by thunder!" he muttered at last. "Tell me about it, pardner. My name's Damon Tamroy."

"Mine is Oliver Drew," said Oliver, offering his hand.

"Well, I'll be damned!" ejaculated Tamroy in a low voice, his eyes, wide with curiosity, devouring Oliver. "The Old Ivison Place!"

"You seem surprised."

"Surprised! Hump! Say—le'me tell you right here, pardner; don't *you* ever pull a gun on any o' the Poison Oakers and act like Henry Dodd did. Maybe it's well you saw what was pulled off today—if you'll only remember when you get down there on the Tabor Ivison Place."

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## CHAPTER II

### PETER DREW'S LAST MESSAGE

"I'll take a seegar," Mr. Damon Tamroy replied in response to Oliver's invitation.

They lighted up and sat at a card-table against one wall of the gloomy saloon.

"You speak of this as a gun country," remarked Oliver.

"Well, it's at least got traditions," returned Mr. Tamroy, adding the unlettered man's apology for his little fanciful flight, "'as the fella says.' Like father like son, you know. The Seldens are gunmen. Old Adam Selden's dad was a 'Forty-niner; and Adam Selden—the Old Man Selden of today—was born right close to here when his dad was about twenty-five years old. Le's see—that makes Old Adam 'round about seventy. But he's spry and full o' pep, and one o' the best rifle shots in the country.

"He takes after the old man, who was a bad actor in the days o' 'Forty-nine, and his boys take after him. They're a bad outfit, takin' 'em all in all. The boys are Hurlock, Moffat, Bolar, and Winthrop—four of 'em. All gunmen. Then there's Jessamy Selden—the only girl—who ain't rightly a Selden at all. None o' the old man's blood in Jessamy, o' course. Mis' Selden—she was an Ivison before she married Lomax—Myrtle Ivison was her name—she's a fine lady. But she won't leave the old man for all his wickedness, and Miss Jessamy won't leave her mother. So there you are!"

"I see," said Oliver musingly, not at all displeased with the present subject of conversation.

"Now, here's this Digger Foss," Tamroy went on. "He's half-American, quarter-Chinaman, and quarter-Digger-Indian. The last's what gives him his name. There's a tribe o' Digger Indians close to here. He's killed two men and got away with it. Now he's added a third to his list, and likely he'll get

away with that. The rest o' the Poison Oakers are Obed Pence, Ed Buchanan, Jay Muenster, and Chuck Allegan—ten in all."

"Just what are the Poison Oakers?" Oliver asked as Damon Tamroy paused reflectively.

"Well, *anybody* who lives in this country is called a Poison Oaker. You're one now. The woods about this country are full o' poison oak, and that's where we get the name. That's what outsiders call us. But when we ourselves speak of Poison Oakers we mean Old Man Selden's gang—him, his four sons, and the hombres I just mentioned—a regular old back-country gang o' rowdies, toughs, would-be bad men. You know what I mean.

"They just drifted together by natural instinct, I reckon. Old Man Selden shot a man up around Willow Twig, and come clean at the trial. Obed Pence is a thief, and did a stretch for cattle rustlin' here about three years ago. Chuck and Ed have both done something to make 'em eligible—knife fightin' at country dances, and the like. And the Selden boys are chips off the old block."

"But what is the gang's particular purpose?"

"Meanness, s'far's I c'n see! Just meanness! Old Man Selden owns a ranch down your way that you can get to only by a trail. No wheeled vehicle can get in. All the boys live there with him. Kind of a colony, for two o' the boys are married. The other Poison Oakers live here and there about the country, on ranches. Ambition don't worry none of 'em much. Old Man Selden's said to distil jackass brandy, but it's never been proved."

"Now about the Old Tabor Ivison Place?" said Oliver.

"Well, it's there yet, I reckon; but I ain't been down that way for years. Now and then a deer hunt leads me into Clinker Creek Cañon, but not often.

"It's a lonely, deserted place, and the road to it is fierce. Several families lived down in there thirty years ago; but the places have been abandoned long since, and all the folks gone God knows where. It's a pretty country if a fella likes trees and rocks and things, and wild and rough; but down in that

cañon it's too cold for pears and such fruit—and that's about all we raise on these rocky hills.

"Old Tabor Ivison homesteaded your place. He's been dead matter o' fifteen years. Died down there. For years he'd lived there all by 'imself. Good old man. Asked for little in life—and got it.

"But for years now all that country's been abandoned. There's pretty good pickin's down in there; and Old Man Selden and some more o' the Poison Oakers have been runnin' cattle on all of it."

"I'm glad there's pasture," Oliver interposed.

"Oh, pasture's all right. But Selden's outfit has looked at that land as theirs for so long that you won't find it particularly congenial. You're bound to have trouble with the Poison Oakers, Mr. Drew, and I'd consider the land not worth it. Why, I can buy a thousan' acres down in there for two and a half an acre! You'll starve to death if you have to depend on that forty for a livin'. How come you to own the place?"

"My father willed it to me," Oliver replied.

"Your father?"

"Yes, Peter Drew. Have you ever heard of him?"

"No," returned Damon Tamroy. "I reckon he was here before my time. How'd he come by the place? I thought one o' the Ivison girls—Nancy—still owned it."

"I'm sure I can't tell you how Dad came to own it," Oliver made answer. "I haven't an abstract of title. I know, though, that Dad owned it for some time before his death."

"Well, well!" Damon Tamroy's eyes roved curiously over the young man once more. They steadied themselves on the silver-mounted Spanish spurs on Oliver's riding boots. "Travellin' horseback?" he wanted to know, and his look of puzzlement deepened.

"Yes," said Oliver a little bitterly. "I'm ridin' about all that I possess in this world, since you have pronounced the Old Tabor Ivison Place next to

worthless." He grew thoughtful. "You're puzzled over me," he smiled at last. "Frankly, though, you're no more puzzled over me than I am over myself and my rather odd situation. I'm a man of mystery." He laughed. "I think I'll tell you all about it.

"As far back as I can remember, my home has been on a cow ranch in the southern part of the state. I can't remember my mother, who died when I was very young. I always thought my father wealthy until he died, two weeks ago, and his will was read to me. He had orange and lemon groves besides the cattle ranch, and was a stockholder in a substantial country bank. I was graduated at the State University, and went from there to France. Since, I've been resting up and sort of managing Dad's property.

"My father was a peculiar man, and was never overly confidential with me. He was uneducated, as the term is understood today—a rough-and-ready old Westerner who had made his strike and settled down to peaceful days—or so I always imagined. But two weeks ago he died suddenly from a stroke of apoplexy; and when his will was read to me I got a jolt from which I haven't yet recovered.

"The home ranch and the other real estate, together with all livestock and appurtenances—with one exception, which I shall mention later—were willed to the Catholic Church, to be handled as they saw fit. It seemed that there was little else to be disposed of. I was left five hundred dollars in cash, a saddle horse named Poche, a silver-mounted bridle and saddle and martingales, the old Spanish spurs you see on my feet, and the Old Tabor Ivison Place, in Chaparral County, of which I knew almost nothing. That was all—with the exception of the written instructions in my father's handwriting that were given me by his lawyers. Maybe you can throw some light on the matter, Mr. Tamroy. Would you care to hear my father's last message to me?"

Tamroy evinced his eagerness by scraping forward his chair.

Oliver took from a leather billbook a folded piece of paper. "I don't know that I ought to," he smiled, "but, after all, I'll never learn the mystery of it if I keep the matter from people about here. So here goes:

*"My dear son Oliver:*

"As you know perfectly well, I am an ignorant old Westerner. There is no use mincing matters in regard to this. When I was young I didn't have much of a chance to get an education; but when I grew up and married, and you was born, I said you'd never be allowed to grow up in ignorance like I did. So I tried to give you an education, and you didn't fail me.'

"I did this for a double purpose, Oliver. I knew that I was going to die someday, and that then you'd have to settle a little matter that's bothered me since before you was born. For pretty near thirty years, Oliver, I've had a problem to fight; and I never knew how to settle the matter because I wasn't educated. So I let it rest and waited for you to grow up, and go through college. And now that's happened; and you're educated and fit to answer the question that's bothered me for nearly half my life. The answer is either Yes or No, and you've got to find out which is right.'

"I'm leaving you Poche, the best cow horse in Southern California, my old silver-mounted saddle that's carried me thousands of miles, the martingales, and my old silver-mounted bridle, which same three things made me the envy of all the vaqueros of the Clinker Creek Country over thirty years ago, and my Spanish spurs that go along with the outfit. These things, Oliver, and five hundred dollars in Cash, and forty acres of land on Clinker Creek, in Chaparral county, called the Old Tabor Ivison Place.'

"They are all you'll need to find the answer to the question that's bothered me for thirty years. Buckle on the spurs, throw the saddle on Poche, bridle him, put the five hundred dollars and the deed to the Old Tabor Ivison Place in your jeans, and hit the trail for Clinker Creek. Stay there till you know whether the answer is Yes or No. Then go to my lawyers and tell them which it is. And the God of your mother go with you!"

"Your affectionate father,"

"PETER DREW.'

"In his seventy-third year."

Oliver folded the paper. Damon Tamroy only sat and stared at him.



## CHAPTER III

### B FOR BOLIVIO

"Boy," said the kindly Mr. Tamroy, leaning forward toward Oliver Drew, "those are the queerest last words of a father to his son that I ever listened to. What on earth you goin' to do?"

Oliver shrugged and spread his hands. "Keep on obeying instructions," he said. "I've followed them to the letter so far. I'm only a few miles from my destination, and I've ridden in the silver-mounted saddle on Poche's back the entire five hundred miles and over. My father was not a fool. He was of sound mind, I fully believe, when he wrote that message for me. There's some deep meaning underlying all this. I must simply stay on the Old Tabor Ivison Place till I know what puzzled old Dad all those years, and find out whether the answer is Yes or No."

"Heavens above!" muttered Mr. Tamroy. "But how you goin' to live? What're you goin' to do down in there? Gonta get a job? It's too far away from everything for you to go and come to a job, Mr. Drew."

"I'll tell you," said Oliver. "At the University I took an agricultural course. Since my graduation I have written not a few articles and sold them to leading farm journals. If the Old Tabor Ivison Place is of any value at all, I want to experiment in raising all sorts of things on a small scale, and write articles about my results. I'll have a few stands of bees, and maybe a cow. I'll try all sorts of things, get a second-hand typewriter, and go to it. I think I can live while I'm waiting for my father's big question to crop up."

"You can raise a garden all right, I reckon," Oliver's new friend told him, following him as he rose to continue his journey. "But you got to irrigate, and there ain't the water in Clinker Creek there used to be. Folks up near the headwaters use nearly all of it, and in the hot months what they turn back will all go up in evaporation before it gets down to you. There's a good spring, though, but it strikes me it don't flow anything like it did when Old Tabor Ivison lived on the land."

"Is there a house on the place?"

"Only an old cabin. At least there was last time I chased a buck down in there. And something of a fence, if I remember right. But fifteen years is a long time—I reckon everything left is next to worthless."

They came to a pause at the edge of the sidewalk beside an aged villager, who stood leaning on his crooked manzanita cane as he gazed at Poche and his silver-mounted trappings.

"That's Old Dad Sloan," whispered Damon Tamroy. "He's one o' the last of the 'Forty-niners. Just hobbles about on his cane, livin' off the county, and waitin' to die. Never saw him take much interest in anything before, but that outfit o' yours has caught his eye. Little wonder, by golly!"

Oliver stepped into the street and lifted the hair-tassled reins of the famous bridle. He turned to find the watery blue eyes of the patriarch fixed on him intently. With a trembling left hand the old man brushed back his long grey hair, then the fingers shakily caressed a grizzled beard, flaring and wiry as excelsior. A long finger at length pointed to the horse.

"Where'd you get that outfit, young feller?" came the quavering tones.

Mr. Tamroy winked knowingly at Oliver.

"It was my father's," said Oliver in eager tones.

The 'Forty-niner cupped a hand back of his ear. "Hey?" he shrilled.

Oliver lifted his voice and repeated.

"Yer papy's hey?" He tottered into the street and fingered the heavily silvered Spanish halfbreed bit, which, Oliver had been told, was very valuable intrinsically and as a relic. Then the knotty fingers travelled up an intricately plaited cheekstrap to one of the glittering silver-bordered *conchas*. The old fellow fumbled for his glasses, placed them on his nose, and studied the last named conceit with careful, lengthy scrutiny. "Is that there glass, young feller?" he croaked at last, pointing to the setting of the *concha*, a lilac-hued crystal about two inches in diameter.

"I think it is," Oliver shouted.

The old man shook his head. "I can't see well any more," he quavered. "But this don't look like glass to me."

"I've never had it examined," Oliver told him. "I supposed the settings of the *conchas* to be glass or some sort of quartz."

"Quartz?"

"Yes, sir."

The grey head slowly shook back and forth. "Young man," came the piping tones, "is they a 'B' cut in the metal that holds them stones in place?"

Oliver's eyes widened. "There is," he said. "On the inside of each one."

The old man stared at him, and his bearded lips trembled. "Bolivio!" he croaked weirdly.

"I don't understand," said Oliver.

"Bolivio made them *conchas*, young feller. Bolivio made that bit. Bolivio plaited that bridle. Bolivio made them martingales."

"And who is Bolivio?" puzzled the stranger.

"Dead and gone—dead and gone!" crooned the ancient. "That outfit's maybe a hundred years old, young feller—part of it, 'tleast. And that ain't glass in there—and it ain't quartz in in there—and there's only one man ever in this country ever had a bridle like that."

"And who was he?" asked Oliver almost breathlessly.

"Dan Smeed—that's who! Dan Smeed—outlaw, highwayman, squawman! Dan Smeed—gone these thirty years and more. That's his bridle—that's his saddle—all made by Bolivio, maybe a hundred years ago. And them stones in them *conchas* are gems from the lost mine o' Bolivio. The lost gems o' Bolivio, young feller!"

Oliver and Tamroy stared into each other's eyes as the old man tottered back to the sidewalk.

"Tell me more!" cried Oliver, as the ancient began tapping his crooked cane along the street.

There was no answer.

"He didn't hear," said Tamroy. "We'll get at him again sometime. Maybe he'll tell what he knows and maybe he won't. He's awful childish—awful headstrong. For days at a time he won't speak to a soul."

Oliver stood in deep thought, mystified beyond measure, yet thrilled with the thought that he was nearing the beginning of the trail to the mysterious question. He roused himself at length.

"Well, I must be getting along," he said. "I'll go right down to Clinker Creek now, if you'll point the way. I've enough grub behind my saddle for tonight and tomorrow morning. There's grass for the horse at present?"

"Oh, yes—horse'll get along all right."

"Then I'll go down and give my property the once-over, and be up tomorrow to get what I need."

Damon Tamroy showed him the road and shook hands with him. "Ride up and get acquainted regular someday," he invited. "I got a little ranch up the line—pears and apples and things. Give you some cherries a little later on. Well, so-long. Remember the Poison Oakers!"

Oliver galloped away, his flashing equipment the target of all eyes, on the road that led to the Old Tabor Iverson Place, his brain in a whirl of excitement.

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## CHAPTER IV

### THE FIRST CALLER

Toward noon Poche was carefully feeling his way down the rocky cañon of Clinker Creek, over a forgotten road. Oliver walked, for Poche needs must scramble over huge boulders, fallen pines, and tangles of driftwood. The road followed the course of the creek for the most part, and in many places the creek had broken through and washed great gaps.

But the country was delightful. Wild grapevines grew in profusion at the creekside, gracefully festooned from overhanging buckeye limbs. Odorous alders, several varieties of willow, and white oak also followed the watercourse; and up on the hills on either side were black oaks and live oaks, together with yellow and sugar and digger pines, and spruce. Everywhere grew the now significant poison oak.

Finally Poche scraped through chaparral that almost hid the road and came out in a clearing. Oliver at last stood looking at his future home.

A quaint old cabin, with a high peaked roof, apparently in better repair than he had expected, stood on a little rise above the creek. The cañon widened here, and narrowed again farther down. The creek bowed and followed the base of the steep hills to the west. A level strip of land comprising about an acre paralleled the creek, and invited tillage. All about the clearing, perhaps fifteen acres in area, stood tall pines and spruce, and magnificent oaks rose above the cabin, their great limbs sprawled over it protectingly. Acres and acres of heavy, impenetrable chaparral covered both steep slopes beyond the conifers.

For several minutes Oliver drank in the beauty of it, then heaved himself into the saddle and galloped to the cabin over the unobstructed land.

He loosed Poche when the saddle and bridle were off, and the horse eagerly buried his muzzle in the tall green grass. Up in the branches paired California linnets, red breasted for their love season, went over plans and

specifications for nest-building with much conversation and flit-flit of feathered wings. Wild canaries engaged in a like pursuit. Overhead in the heavens an eagle sailed. From the sunny chaparral came the scolding quit-quit-quit of mother quail, while the pompous cocks perched themselves at the tops of manzanita bushes and whistled, "Cut that out! Cut that out!" All Nature was home-building; and Oliver forgot the loss of the fortune he had expected at his father's death and caught the spirit.

He collected oak limbs and built a fire. He carried water from the creek and set it on to boil. While waiting for this he strolled about, revelling in the soft spring air, fragrant with the smell of wild flowers.

That the cabin had been occupied often by hunters and other wanderers in the cañon was evidenced by the many carvings on the door and signs of bygone campfires all about. He stepped upon the rotting porch and studied the monograms, initials, and flippant messages of the lonely men who had passed that way.

"All hope abandon, ye who enter here" was carved in ancient letters just under the lintel of the door. Next he was informed that "Fools names, like their faces, are always seen in public places." "Only a sucker would live here" was the parting decision of some disgruntled guest. "Home, Sweet Home" adorned the bottom of the door. One panel had proved an excellent target, and no less than twenty bullet holes had made a sieve of it. "Welcome, Wanderer!" and "Dew Drop Inn" and "Though lost to sight to memory dear" occupied conspicuous places. Then on the right-hand frame he noticed this:



The carving was neatly executed. The leaves represented were indisputably those of the poison oak.

Had some one carved this in a jocular effort to warn chance visitors to the place of the danger of the poison weed? Or did the carving represent the emblem of the Poison Oakers?

Oliver smiled grimly and opened the door.

He passed through the three small rooms of the house and investigated the loft. The structure seemed solid. A new roof would be necessary, and new windows and frames and a new porch; and as Oliver was no mean carpenter, he thought he could make the cabin snug and tight for seventy-five dollars.

The front door had closed of itself, he found, when he started back to his campfire. He stopped in the main room, and a smile, slightly bitter, flickered across his lips. As neatly carved as was the symbol of the Poison Oakers outside—if that was what it was—and evidently executed by the same hand, was this, on the inside of the door:

### JESSAMY, MY SWEETHEART

Oliver went on out and squatted over his fire, peeling potatoes. His blue eyes grew studious. In the flickering blaze he saw the picture of a black-eyed, black-haired girl on a white horse crouched on its haunches.

"Great Scott!" he muttered. "I'll have to forget that!"

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In the month that followed, Oliver Drew, spurred by feverish enthusiasm, worked miracles on the Old Tabor Iverson Place. He repaired the line fences and rehabilitated the cabin; bought a burro and pack-saddle and packed in lumber and tools and household necessities; fenced off his experimental garden on the level land with rabbit-tight netting; cleaned and boxed the spring; and early in May was following the spading up of his garden plot by planting vegetable seed.

With all this behind him, he went at the clearing of the road that connected him with his kind. Today as he laboured with pick and shovel and bar he was cheerful, though his thoughts clung to the subject of his father's death and the odd situation in which it had left him. He had fully expected to inherit properties and money to the extent of a hundred thousand dollars. He was not particularly resentful because this had not come to pass, for he never had been a pampered young man; but the mystery of his father's last message puzzled and chagrined him.

He would always remember Peter Drew as a peculiar man. He had been a kindly father, but a reticent one. There were many pages in his past that never had been opened to his son. Oliver was the child of Peter Drew's second wife. About the queer old Westerner's former marriage he had been told practically nothing.

Believing his father to have been of sound mind when he penned that last strange communication, Oliver could not hold that the situation which it imposed was not for the best. Surely old Peter Drew had had some wise reason for his act, and in the end Oliver would know what it was. He had been told to seek the Clinker Creek Country to learn the question that had puzzled his father for thirty years, to decide whether the proper answer was Yes or No, and communicate his decision to his father's lawyers. That was all. When in the wisdom which his father had supposed would be the natural result of his son's university training he had made his decision and placed it before these legal gentlemen, what would happen? Speculation over this led nowhere.

At first it had seemed to Oliver that the mission with which he had been intrusted was more or less a secret matter, and that he must keep still about it. Then as the staunch cow-pony bore him nearer and nearer to the Clinker Creek Country it gradually dawned upon him that, by so doing, he might stand a poor chance of even finding out what had puzzled his sire. To say nothing of the answer which he was to seek. It was then he decided that he had nothing to hide and must place his situation before the people of the country who would likely be able to help him. Hence his confidences to Mr. Damon Tamroy.

Tamroy had aided him not at all; but the 'Forty-niner, Old Dad Sloan, knew something. Dan Smeed, outlaw, highwayman, had owned a saddle and bridle like Oliver's. The old man had mysteriously mentioned the lost mine of Bolivio, and had said the settings in Oliver's *conchas* were gems. If only the old man could be made to talk!

The muffled thud of a horse's hoofs came between the strokes of Oliver's pick. With an odd and unfamiliar sensation he glimpsed a white horse and rider approaching through the pines.

It was she—Jessamy Selden—the black-haired, black-eyed girl of whom he reluctantly had thought so often since his first day in the Clinker Creek Country.

She was riding straight down the cañon, the white mare gingerly picking her way between boulders and snarls of driftwood. The girl looked up. Oliver felt that she saw him. Her ears could not have been insensible to the ring of his pick on the flinty stones. She did not leave the trail, however, but continued on in his direction.

He rested on the handle of his tool and waited.

"Good morning," he ventured, sweeping off his battered hat, as the mare stopped without pressure on the reins and gravely contemplated him.

The girl smiled and returned his greeting brightly.

"If you had waited a few days longer for your ride down here," said Oliver, "I'd have had a better trail for you."

"Oh, I don't know that I want it any better," she laughed. "I like things pretty much as they are, when Old Mother Nature has built them. I ride down this way frequently."

She was no fragile reed, this girl. She was rather more substantially built than most members of her sex. Her figure was straight and tall and rounded, and her strong, graceful neck upreared itself proudly between sturdy shoulders. Grace and strength, rather than purely feminine beauty, predominated in the impression she created in Oliver. She wore a man's Stetson hat over her lavish crown of coal-black hair, a man's flannel shirt, a whipcord divided skirt, and dark-russet riding boots. The saddle that she rode in had not been built for a woman to handle, and, with its long, pointed tapaderos, must have weighed close to fifty pounds. The steady, friendly, confident gaze of her large black eyes was thrilling. A man instinctively felt that, if he could win this woman, he would have acquired a wife among a thousand, a loyal friend and comrade, and a partner who could and would shoulder more than a woman's share of their load.

Still, Oliver knew nothing at all about her. What he had heard of her was not exactly of the best. Yet he felt that she was gloriously all right, and did

not try to argue otherwise.

"Well, I suppose I must introduce myself first," she was saying in her full, ringing tones. "I'm Jessamy Selden. My name is not Selden, though, but Lomax. When my mother married Adam Selden I took her new name. I heard somebody had moved onto the Old Ivison Place, and I deliberately rode down to get acquainted."

"You waited a month, I notice," Oliver laughingly reproached. "My name is Oliver Drew. If you'll get off your horse I'll tell you what a wonderful man I am."

She swung to the ground and held out a strong, brown, ungloved hand.

"I'll walk to your cabin with you," she said, "if you'll invite me. I'd like to see how you've been improving your time since your arrival."

Scarce able to find words with which to meet such delightful frankness, Oliver walked beside her, the white mare following and nosing at his pockets to prove that she was a privileged character.

The girl loosed her within the inclosure, and let her drag her reins. Poche trotted up to make the white's acquaintance, followed by the new mouse-coloured burro, Smith, who long since had assumed a "where thou goest I will go" affection for the bay saddler.

Jessamy Selden came to a stop before the cabin, her black eyes dancing.

"Who would have thought," she said in low tones, "that the Clinker Creek people ever would see the old Ivison cabin rebuilt and inhabited once more! How sturdily it must have been built to stand up against wind and storm all these years. Are you going to invite me in and show me around?" She levelled that direct glance at him and showed her white teeth in a smile.

Oliver was thinking of the carving on the inside of the old door, "Jessamy, My Sweetheart." He had not replaced the door with a new one, for every penny counted. It still was serviceable; and, besides, there seemed to be a sort of companionship about the carved observations of the unknowns who had been sheltered by the old cabin during the past fifteen years.

"You've been in the house often, I suppose?" He made it a question.

"Oh, yes," she said. "I've lunched in it many a time, and have run in out of the rain during winter months. I slept in it all night once."

"You seem to be an independent sort of young woman," suggested Oliver.

"I'm a rather lonely sort of woman, if that's what you mean," she replied.

"Yes, I ride about lots alone. I like it. Don't you want me to go in?"

"Er—why, certainly," he stammered. "Please don't think me inhospitable. Come on."

He led the way, and stood back for her at the door. He would leave the door open, swung back into the corner, he thought, so that she would not see the carving. She had been in the cabin many times. Did she know the carving to be there? Of course it might have been executed since her last visit, though it did not seem very fresh. Who had carved the words? Oliver could imagine any of the young Clinker Creek swains as being secretly in love with this marvellous girl, and pouring out his tortured soul through the blade of his jack-knife when securely hidden from profane eyes in this vast wilderness.

She passed complimentary remarks about his practically built home-made furniture, and the neatness and necessary simplicity of everything.

"What an old maid you are for one so young!" she laughed. "And, please, what's the typewriter for—if I'm not too bold?"

"Well," said Oliver, "it occurred to me that I must make a living down here. I'm a graduate of the State College of Agriculture, and I like to farm and write about it. I've sold several articles to agricultural papers. I'm going to experiment here, and try to make a living by writing up the results!"

"Why, how perfectly fine!" she cried enthusiastically. "I couldn't imagine anything more engrossing. I'm a State University girl."

"You don't say!"

And this furnished a topic for ten minutes' conversation.

"If you're as good a writer and farmer as you are tinker and carpenter," she observed, passing into the front room again, "you'll do splendidly." She was

standing, straight as a young spruce, hands on hips, looking with twinkling eyes at the open door. "The old door still hangs, I see," she murmured. "Now just why didn't you replace it, Mr. Drew?"

Oliver looked apprehensive. "Well," he replied hesitatingly, "for several reasons. First, a new door costs money, and so would the lumber with which to make one—and I haven't much of that article. Second, I get some amusement from looking at those old carvings and speculating on the possible personalities of the carvers. For all I know, some great celebrities' ideas may be among those expressed there—some future great man, at any rate. The boy one meets in the street may one day be president, you know. Then there's a sort of companionship about those names and monograms and quotations. The fellow that informs me that only suckers live here I'd like to meet. He was so blunt about it, so sure. He—er—"

Smiling, she had stepped to the door and, arms still akimbo, allowed her glance to travel from one design to another. She raised an arm and levelled a finger.

"What do you think of that one?" she asked.

"Well," said Oliver, "that's a rather well executed poison oak leaf. The hills are covered with the plant. I imagine that some wanderer not immune from the poison came into contact with it, and, though his eyes were swelled half shut and his fingers itched and tingled, his right hand had not lost its cunning. So he took out his trusty blade and carved a warning for all future pilgrims who chanced this way to beware of this tree that is in the midst of the garden, and to not touch it lest they—"

"Itch," Jessamy gravely put in. "Quite pretty and poetic," she supplemented. "But you are entirely wrong, Mr. Drew. That carving is, first of all, a copy of the brand of Old Man Selden, and you'll find it on all his cows. All but the word 'Beware,' of course, you understand. Second, it represents the silly symbol of a gang that infests this country known as the Poison Oakers. Oh, you've heard of them!" she had turned suddenly and surprised the look on his face.

"It sounds very bloodthirsty," he laughed confusedly.

"I'll tell you more, then, when I know you better," she said. "No, I'll tell you today," she added quickly.

Then before he could make a move she had closed the door to examine what might be carved on the inner side.

"Tell me now," said Oliver quickly. "Try this chair here by the window. I'm rather proud of this one. It's my first attempt at a morris ch—"

"Come here, please," she commanded, standing with her back to him.

"Don't act so like a boy," she reproved as he dutifully stepped up behind her. "Anybody would know you are clumsily trying to detract my attention from—that."

The brown finger was pointing straight at JESSAMY, MY SWEETHEART.

She turned and levelled her frank, unabashed eyes straight at his.

"So that's why you hesitated about inviting me in," she stated, her lips twitching and dimples appearing and disappearing in her cheeks.

"Frankly, yes," he told her gravely.

Her glance did not leave him. "Mr. Tamroy told me he had mentioned me to you," she said. "So of course you knew, when you saw this carving, that I was the subject of the raving. And when you saw me you wished to spare me embarrassment. Thank you. But you see I'm not at all embarrassed. I have never before seen this masterpiece in wood, and imagine it has been done since I was in the cabin last. Let's see—I doubt if I've been inside for a year or more. I think perhaps Mr. Digger Foss is the one who tried to make his emotions deathless by this work of art. 'Jessamy, My Sweetheart,' eh?" She threw back her glorious head and laughed till two tears streamed down her tanned cheeks. "Poor Digger!" she said soberly at last. "I suppose he does love me."

"Who wouldn't," thought Oliver, but bit his lips instead of speaking.

"You may leave that, Mr. Drew," she told him, "until you get ready to replace the old door with a new one. I would not have the irrefutable evidence of at least one conquest blotted out for worlds. Now let's go out in

that glorious sunlight, and I'll tell you about Old Man Selden and the Poison Oakers."

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## CHAPTER V

### "AND I'LL HELP YOU!"

What Jessamy Selden told Oliver Drew of the Poison Oakers was about the same as he had heard from Damon Tamroy.

She used his sawbuck for a seat, and sat with one booted ankle resting on a knee, idly spinning the rowel of her spur as she talked. Oliver listened without interruption until she finished and once more levelled that straightforward glance at him.

"The cows have been down below on winter pasture," she added. "Adam Selden and the boys rode out yesterday to start the spring drive into the foothills. You'll awake some morning soon to find red cattle all about you, and they'll be here till August."

"Well," he said, "I don't know that I shall mind them. My fence is pretty fair, and with a little more repairing will turn them, I think."

She twirled her rowel in silence for a time, her eyes fixed on it. Then she said:

"It isn't that, Mr. Drew. I may as well tell you right now what I came down here purposely to tell you. You're not wanted here. All of this land has been abandoned so long that Adam Selden and the gang have come to consider it their property—or at least free range."

"But they'll respect my right of ownership."

"I don't know—I don't know. I'm afraid they won't. They're a law unto themselves down in here. They'll try to run you out."

"How?"

"Any way—every way. If nothing else occurs to them, they'll begin a studied system of persecution with the idea of making you so sick of your

bargain that you'll pull stakes and hit the trail. That poor man Dodd! Mr. Tamroy told me you happened into the saloon in time to see the shooting. Wasn't it terrible! And how they persecuted him—fairly drove him into the rash act that cost him his life!"

She lifted her glance again. "Mr. Tamroy tells me that you were shocked at me that day."

"I guess I didn't fully understand the circumstances."

"I did," she firmly declared, her lips setting in what would have been a grim smile but for the dimples that came with it. "I understood the situation," she went on. "Digger Foss had been waiting for just that chance. There's just enough Indian and Chinese blood in him to make him a fatalist. He's therefore deadly. Has no fear of death. He's cruel, merciless. I knew when I saw Henry Dodd covering him with that gun that, if he didn't finish what he'd started, he was a dead man. He couldn't even have backed off gracefully, keeping Digger covered, and got away alive. Digger is so quick on the draw, and his aim is so deadly. He's a master gunman. Even had Dodd succeeded in getting away then, he would have been a marked man. He had thrown down on Digger Foss. Digger would have got the drop on him next time they met and killed him as you would a coyote. So in my excitement I rushed in with my well meant warning, and—Oh, it was horrible!"

"And you meant actually for Dodd to kill Foss?"

Her black eyes dilated, and an angry flush blended with the tan on her cheeks.

"It was one or the other of them," she told him coldly. "Mr. Dodd was an honest, plodding man—a good citizen. Foss is a renegade. Was I so very bloodthirsty in trying to make the best of a bad situation by choosing, on the spur of the moment, which man ought to live on? I'm not the fainting kind of woman, Mr. Drew. One must be practical, if he can, even over matters like that."

"I'm not condemning," he said. "I'm only wondering that a woman could be so practical in such a situation."

"Digger Foss hasn't seen me since then," she observed. "He's in jail, awaiting trial, at the county seat. He'll be acquitted, of course. I'm wondering what he'll have to say to me when he is free again."

Oliver said nothing to this.

"I must be going," she declared, rising suddenly. "As I said, I came down to warn you to be on your guard against the Poison Oakers."

He caught her pony and led it to her. She swung into the saddle, then slued toward him, leaned an elbow on the horn and rested her chin in the palm of her hand. Once more that direct gaze of her frank black eyes looked him through and through.

"Well," she asked, "will the Poison Oakers run you off?"

"Oh, I think not," he laughed lightly.

"They'll be ten against one, Mr. Drew."

"There's law in the land."

"Yes, there's law," she mused. "But it's so easy for unscrupulous people to get around the law. They can subject you to no end of persecution, and you won't even be able to prove that one of them is behind it."

She looked him over deliberately.

"I'm glad you've come," she said. "You're an educated man, and blessed with a higher order of character than has been anybody else who stood to cross the Poison Oakers. Somehow, I feel that you are destined to be their undoing. They must be corralled and their atrocities brought to an end. You must be the one to put the quietus on that gang. And I'll help you. Good-bye!"

She lifted the white mare into a lope, opened the gate, rode through and closed it without leaving the saddle, then, waving back at him, disappeared in the chaparral.

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## CHAPTER VI

### ACCORDING TO THE RECORDS

Oliver Drew had found a bee tree on the backbone of the ridge between the Old Ivison Place and the American River. He stood contemplating it, watching the busy little workers winging their way to and from the hole in the hollow trunk, planning to change their quarters and put them to work for him.

Far below him, down a precipitous pine-studded slope, the green American River raced toward the ocean. There had been a week of late rains, and good grass for the summer was assured.

Away through the tall trees below him he saw red cows filtering along, cropping eagerly at the lush growth after a long dusty trip from the drying lowlands. Now and then he saw a horseman galloping along a mile distant. He heard an occasional faint shout, borne upward on the soft spring wind. The Seldens were ending the drive of their cattle to summer pastures.

He turned suddenly as he heard the tramp of hoofs. Six horsemen were approaching, along the backbone of the ridge, winding in and out between clumps of the sparse chaparral.

In the lead, straight and sturdy as some ancient oak, rode a tall man with grey hair that hung below his ears and a flowing grey beard. He wore the conventional cowpuncher garb, from black-silk neckerchief, held in place by a poker chip with holes bored in it, to high-heeled boots and chaps. He rode a gaunt grey horse. His tapaderos flapped loosely against the undergrowth, and, so long were the man's legs, they seemed almost to scrape the ground. A holstered Colt hung at the rider's side.

Silent, stern of face, this old man rode like the wraith of some ancient chieftain at the head of his hard-riding warriors.

Those who followed him were younger men, plainly *vaqueros*. They lolled in their saddles, and smoked and bantered. But Oliver's eyes were alone for the stalwart figure in the lead, who neither spoke nor smiled nor paid any attention to his band, but rode on grimly as if heading an expedition into dangerous and unknown lands.

Undoubtedly this was Old Man Selden and his four sons, together with other members of the Poison Oakers Gang. They had left the cows to themselves and were making their way homeward after the drive. Oliver's first impulse was to hide behind a tree and watch, for he felt that he should forego no chance of a strategic advantage. Then he decided that it was not for him to begin manœuvring, and stood boldly in full view, wondering whether the riders would pass without observing him.

They did not. He heard a sharp word or two from some follower of the old man, and for the first time the leader showed signs of knowing that he was not riding alone. He slued about in his saddle. A hand pointed in Oliver's direction. The old man reined in his grey horse and looked toward Oliver and the bee tree. The other horsemen drew up around him. There was a short consultation, then all of them leaned to the right in their saddles and galloped over the uneven land.

They reined in close to the lone man, and a dusty, sweaty, hard-looking clan they were. Keen, curious eyes studied him, and there was no mistaking the insolent and bullying attitude of their owners.

A quick glance Oliver gave the five, then his interest settled on their leader.

Adam Selden was a powerful man. His nose was of the Bourbon type, large and deeply pitted. His eyes were blue and strong and dominating.

"Howdy?" boomed a deep bass voice.

Oliver smiled. "How do you do?" he replied.

Then silence fell, while old Adam Selden sat rolling a quid of tobacco in his mouth and studying the stranger with inscrutable cold blue eyes.

"I've found a bee tree," said Oliver when the tensity grew almost unbearable. "I was just figuring on the best way to hive the little rascals."

Selden slowly nodded his great head up and down with exasperating exaggeration.

"Stranger about here, ain't ye?" he asked.

"Well, I've been here over a month," Oliver answered. "I own the Old Tabor Ivison Place, down there in the valley. My name is Oliver Drew, and I guess you're Mr. Selden."

Another long pause, then—

"Yes, I'm Selden. Them's my cows ye see down there moseyin' up the river bottom and over the hills. I been runnin' cows in here summers for a good many years. Just so!"

"I see," said Oliver, not knowing what else to say.

"Three o' these men are my boys," Selden drawled on. "The rest are friends o' ours. Has anybody told ye about the poison oak that grows 'round here?"

"I'm familiar with it," Oliver told him.

"Ain't scared o' poison oak, then?"

"Not at all. I'm immune."

"It's a pesterin' plant. You'll chafe under it and chafe under it, and think it's gone; then here she comes back again, redder and lumpier and itchier than ever."

"I'm quite familiar with its persistence," Oliver gravely stated.

"And still ye ain't afraid o' poison oak?"

"Not in the least."

The gang was grinning, but the chief of the

Poison Oakers maintained a straight face.

"Ain't scared of it, then," he drawled on. "Well, now, that's handy. I like to meet a man that ain't scared o' poison oak. Got yer place fenced, I reckon?"

"Yes, I've repaired the fence."

"That's right. That's always the best way. O' course the law says we got to see that our stock don't get on your prop'ty. Whether that there's a good and just law or not I ain't prepared to say right now. But we got to obey it, and we always try to keep our cows off'n other folks' pasture. But it's best to fence, whether ye got stock o' yer own or not. Pays in the long run, and keeps a fella outa trouble with his neighbours. But the best o' fencin' won't keep out the poison oak. O' course, though, you know that. Now what're ye gonta do down there on the Old Ivison Place?—if I ain't too bold in askin'."

"Have a little garden, and maybe get a cow later on. Put a few stands of bees to work for me, if I can find enough swarms in the woods. I have a saddle horse and a burro to keep the grass down now. I don't intend to do a great deal in the way of farming."

"I'd think not," Selden drawled. "Land about here's good fer nothin' but grazin' a few months outa the year. Man would be a fool to try and farm down where you're at. How ye gonta make a livin'?—if I'm not too bold in askin'."

"I intend to write for agricultural papers for my living," said Oliver.

Silence greeted this. So far as their experience was concerned, Oliver might as well have stated that he was contemplating the manufacture of tortoise-shell side combs to keep soul and body to their accustomed partnership.

"How long ye owned this forty?" Old Man Selden asked.

"Only since my father's death, this year."

"Yer father, eh? Who was yer father?"

"Peter Drew, of the southern part of the state."

"How long'd he own that prop'ty before he died?"

"He owned it for some time, I understand," said Oliver patiently.

The grey head shook slowly from side to side. "I can show ye, down to the county seat, that Nancy Fleet—who was an Ivison and sister o' the woman I

married here about four year ago—owned that land up until the first o' the year, anyway. It was left to her by old Tabor Ivison when he died. That was fifteen year ago, and I've paid the taxes on it ever since for Nancy Fleet, for the privilege o' runnin' stock on it. I paid the taxes last year. What 'a' ye got to say to that?"

Oliver Drew had absolutely nothing to say to it. He could only stare at the gaunt old man.

"But I have the deed!" he burst out at last.

"And I've got last year's tax receipts," drawled Adam Selden. "Ye better go down to the county seat and have a look at the records," he added, swinging his horse about. "Then when ye've done that, I'd like a talk with ye. Just so! Just so!"

He rode off without another word, the gang following.

Early next morning Oliver was in the saddle. As Poche picked his way out of the cañon Oliver espied Jessamy Selden on her white mare, standing still in the county road.

"Good morning," said the girl. "You're late. I've been waiting for you ten minutes."

Oliver's lips parted in surprise, and she laughed good-naturedly.

"I thought you'd be riding out early this morning," she explained, "so I rode down to meet you. I feel as if a long ride in the saddle would benefit me today. Do you mind if I travel with you to the county seat?"

He had ridden close to her by this time, and offered his hand.

"You like to surprise people, don't you?" he accused. "The answer to your question is, I do not mind if you travel with me to the county seat. But let me tell you—you'll have to travel. This is a horse that I'm riding."

She turned up her nose at him. "I like to have a man talk that way to me," she said. "Don't ever dare to hold my stirrup for me, or slow down when you think the pace is getting pretty brisk, or anything like that."

"I wouldn't think of such discourtesy," he told her seriously. "You noticed that I let you mount unaided the other day. I might have walked ahead, though, and opened the gate for you if you hadn't loped off."

"That's why I did it," she demurely confessed. "I'm rather proud of being able to take care of myself. And as for that wonderful horse of yours, he does look leggy and capable. But, then, White Ann has a point or two herself. Let's go!"

Their ponies took up the walking-trot of the cattle country side by side toward Halfmoon Flat.

"Well," Oliver began, "of course my meeting you means that you know I've had an encounter with Adam Selden, and that he has told you he doubts if I am the rightful owner of the Tabor Ivison Place."

"Yes, I overheard his conversation with Hurlock last night," she told him. "So I thought I'd ride down with you, sensing that you would be worried and would hit the trail this morning."

"I am worried," he said. "I can't imagine why your step-father made that statement."

"Just call him Adam or Old Man Selden when you're speaking of him to me," she prompted. "Even the 'step' in front of 'father' does not take away the bad taste. And you might at least *think* of me as Jessamy Lomax. I will lie in the bed I made when I espoused the name of Selden, for it would be stupid to go about now notifying people that I have gone back to Lomax again. My case is not altogether hopeless, however. You are witness that I have a fair chance of some day acquiring the name of Foss, at any rate. So you are worried about the land tangle?"

"What can it mean?" he puzzled.

"This probably is not the first instance in which a deed has not been recorded promptly," she ventured. "That won't affect your ownership. Personally I know that Aunt Nancy Fleet's name appears in the records down at the county seat as the owner of the property. She sold it to your father, doubtless, and the transfer never was recorded. Where is your deed?"

He slapped his breast.

"See that you keep it there," she said significantly.

"You say you know that your Aunt Nancy Fleet is named as owner of the property in the county records?"

She nodded.

"Then she has allowed Adam Selden to believe that she still owns it!" he cried. "And this is proved by reason of her having allowed him to pay the taxes for the right to run stock on the land."

She nodded again.

He wrinkled his brows. "It would seem to be a sort of conspiracy against Adam Selden by your Aunt Nancy and—" He paused.

"And who?"

"Well, it's not like my father's business methods to allow a deed to go unrecorded for fifteen years," he told her. "Not at all like Dad. So I must name him as a party to this conspiracy against old Adam. But what is the meaning of it, Miss Selden?"

"I'm sure I am not in a position to say," she replied lightly. "Some day, when you've got things running smoothly down there, I'll take you to see Aunt Nancy. She lives up in Calamity Gap—about ten miles to the north of Halfmoon Flat. Maybe she can and will explain."

He regarded her steadily; but for once her eyes did not meet his, though he could not say that this was intentional on her part.

"By George, I believe *you* can explain it!" he accused.

"I?"

"You heard me the first time."

"Did you learn that expression at the University of California or in France?"

"I stick to my statement," he grumbled.

"Do so, by all means. Just the same, I am not in a position to enlighten you. But I promise to take you to Aunt Nancy whenever you're ready to go. There's an Indian reservation up near where she lives. You'll want to visit that. We can make quite a vacation of the trip. You'll see a riding outfit or two that will run close seconds to yours for decoration and elaborate workmanship. My! What a saddle and bridle you have! I've been unable to keep my eyes off them from the first; but you were so busy with your land puzzle that I couldn't mention them. I've seen some pretty elaborate rigs in my day, but nothing to compare with yours. It's old, too. Where did you get it?"

"They were Dad's," he told her. "He left them and Poche to me at his death. I must tell you of something that happened when I first showed up in Halfmoon Flat in all my grandeur. Do you know Old Dad Sloan, the 'Forty-niner?"

She nodded, her glance still on the heavy, chased silver of his saddle.

Then Oliver told her of the queer old man's mysterious words when he saw the saddle and bridle and martingales, and the stones that were set in the silver *conchas*.

She was strangely silent when he had finished. Then she said musingly:

"The lost mine of Bolivio. Certainly that sounds interesting. And Dan Smeed, squawman, highwayman, and outlaw. The days of old, the days of gold—the days of 'Forty-nine! Thought of them always thrills me. Tell me more, Mr. Drew. I know there is much more to be told."

"I'll do it," he said; and out came the strange story of Peter Drew and his last message to his son.

Her wide eyes gazed at him throughout the recital and while he read the message aloud. They were sparkling as he concluded and looked across at her.

"Oh, that dear, delightful, romantic old father of yours!" she cried. "You're a man of mystery—a knight on a secret quest! Oh, if I could only help you! Will you let me try?"

"I'd be only too glad to shift half the burden of finding the question and its correct answer to your strong shoulders," he said.

"Then we'll begin just as soon as you're ready," she declared. "I have a plan for the first step. Wait! I'll help you!"

Shortly before noon they dropped rein before the court house and sought the county recorder's office. Oliver gave the legal description of his land, and soon the two were pouring over a cumbersome book, heads close together.

To his vast surprise, Oliver found that his deed had been recorded the second day after his father's death, and that, up until that recent date, the land had appeared in the records as the property of Nancy Fleet.

"Dad's lawyers did this directly after his death," he said to Jessamy. "They sent the deed up here and had it recorded just before turning it over to me. Adam Selden hasn't seen it yet. Say, this is growing mighty mysterious, Miss Selden."

"Delightfully so," she agreed. "Now as you weren't expecting me to come along, have you enough money for lunch for two? If not, I have. We'd better eat and be starting back."

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## CHAPTER VII

### LILAC SPODUMENE

Once more Oliver Drew rode out of Clinker Creek Cañon to find Jessamy Selden, straight and strong and dependable looking, waiting for him in her saddle. On this occasion he joined her by appointment.

She looked especially fresh and contrasty today. Her black hair and eyes and her red lips and olive skin, with the red of perfect health so subtly blended into the tan, always made her beauty rather startling. This morning she had plaited her hair in two long, heavy braids that hung to the bottom of her saddle skirts on either side.

Oliver's gaze at her was one of frank admiration.

"How do you do it?" he laughed.

"Do what?"

"Make yourself so spectacular and—er—outstanding, without leaving any traces of art?"

"Am I spectacular?"

"Rather. Different, anyway—to use a badly overworked expression. But what puzzles me is what makes you look like that. You seem perfectly normal, and nothing could be plainer than the clothes you wear. You're not beautiful, and you're too big both physically and mentally to be pretty. But I'll bet my hat you're the most popular young woman in this section!"

She regarded him soberly. "Are you through?" she asked.

"I've exhausted my stock of descriptive words, anyway," he told her.

"Then we'd better be riding," she said.

He swung Poche to the side of White Ann, and they moved off along the road, knee and knee.

"You're not offended?" he asked.

She threw back her head and laughed till Oliver thought of meadow larks, and robins calling before a shower.

"Offended! You must think me some sort of freak. Who ever heard of a woman being offended when a man admires her? I like it immensely, Mr. Oliver Drew. And if you can beat that for square shooting, there's no truth in me. But if you'll analyse my 'difference' you'll find it's only because I'm big and strong and healthy, and try always to shoot straight from the shoulder and look folks straight in the eye. That's all. Let's let 'em out!"

They broke into a smart gallop, and continued it up and down pine-toothed hills till they clattered into Halfmoon Flat.

Curious eyes met them, old men stopped in their tracks and leaned on their canes to watch, and folks came to windows and doors as they loped through the village.

"'Whispering tongues can poison truth,'" Jessamy quoted as they turned a corner and cantered up a hill toward a grove of pines on the outskirts of the town. "It seems odd that Adam Selden has not mentioned you to me. Surely some one has seen us together who would tell some one else who would tell Old Man Selden all about it. But not a cheep from him as yet."

"Have you any bosom friends in the Clinker Creek district?" he asked, not altogether irrelevantly.

"No, none at all. But I'm friends with everybody, though I have nothing in common with any one. I don't consider myself superior to the natives here about, but, just the same, they don't interest me. I'm speaking of the women. I like most of the men. I guess I'm what they call a man's woman. I can't sit and talk about clothes and dances, and gossip, and what one did on one's vacation last summer. It all bores me stiff, so I don't pretend it doesn't. Men, now—they can talk about horses and saddles and cows and cutting wood and prizefights and poker games and election—"

"And women and Fords," he interrupted.

She laughed and led the way into a little trail that snaked on up the hill between lilacs and buckeye trees to a little cabin half-hidden in the foliage.

They dismounted at the door and loosed their horses. Jessamy tapped vigorously on the panels. Again and again—and then there was heard a shuffling, unsteady step inside, and a cane thumped hollowly. Presently the door opened, and Old Dad Sloan bleared out at them from behind his flaring, mattress-stuffing hair and whiskers.

"How do you do, Mr. Sloan!" cried Jessamy almost at the top of her voice.

A veined hand shook its way to form a cup behind the ancient's ear.

"Hey?" he squealed.

Jessamy filled her sturdy lungs with air and tried again.

"I say—How do you do!" The effort left her neck red but for a blue outstanding artery.

"Oh!" exclaimed Dad Sloan, with a look of relief. "Why, howdy?"

Jessamy ascended a step to the door, took him by both shoulders, and placed her satin lips close to the ear that he inclined her way.

"We've come to make you a call," she announced. "I want you to meet a friend of mine; and we want to ask you some questions."

The grey head nodded slowly up and down, more to indicate that its owner heard and understood than to signify acquiescence. But he tottered back and held the door wide open; and Jessamy and Oliver went into the cabin.

Dad Sloan managed to live all alone in this sequestered little nook by reason of the county's generosity. He was old and feeble, and at times irritatingly childish and petulant. Jessamy Selden often brought him cakes, fried chicken, and the like; and, provided he was in the right mood, he would be more likely to be confidential with her than with anybody else in the country.

But the girl's task was difficult. The old man shook hands listlessly with Oliver at her bidding, but seemed entirely to have forgotten their previous meeting. They sat in the uncomfortable straight-backed, thong-bottom chairs while Jessamy shrieked the conversation into the desired channel. The old eyes gathered a more intelligent look as she spoke of the lost mine of Bolivio.

Pieced together, the fragments that fell from the bearded lips of Old Dad Sloan made some such narrative as follows:

Bolivio had been a Portuguese or a Spaniard, or some "black furriner," who had been in the country in the memorable days of '49 and afterward. His knowledge of some tongue based on the Latin had made it easy for him to communicate with the Pauba Indians that inhabited the country, as some of them had learned Spanish from the Franciscan Fathers down at the coast. Bolivio mingled with the tribe, and finally became a squawman.

One day he appeared at the Clinker Creek bar and exhibited a beautiful stone. A gold miner who was present had once followed mining in South Africa, and knew something of diamonds. He examined Bolivio's stone, and gave it such simple tests as were at his command, then advised the owner to send it to New York to find out if it was possessed of value.

It required months in those days to communicate with the Atlantic seaboard. Bolivio's stone was started on its long journey around the Horn. He hinted that there were more of the stones where he had found this one, and created the impression that his Indian brethren had showed them to him.

More they could not get out of him. Nor did anybody try very hard to learn his secret, for no one imagined the find of much intrinsic value.

Bolivio was a saddler, and was skilled in the art of the silversmith. Gold dust was plentiful in the country in that day, and the foreigner found ready buyers for his masterpieces in leather and precious metals. The finest equestrian outfit that he made was finally acquired from the Indians by Dan Smeed, a miner who afterward turned highwayman, married an Indian girl, became an outlaw, and finally disappeared altogether. In the *conchas* with which the plaited bridle was adorned Bolivio had set two large stones from his secret store, which he himself had crudely polished.

One day, a month or more before word came from New York regarding the stone, Bolivio was found dead in the forest. A knife had been plunged into his heart. The secret of the brilliant stones had died with him.

Then came the answer. The stone was said to be spodumene, of a very high class, and had a lilac tint theretofore unknown. It was the finest of its kind ever to have been reported as found in the United States. The finder was offered a thousand dollars for the sample sent; one hundred dollars a pound was offered for all stones that would grade up to the sample.

But Bolivio was dead, and no one knew from whence the stone had come.

Efforts were made, of course, to find the source of this wealth. The Indians were tried time and again, but not one word would they speak regarding the matter. The new quest was finally dropped; for those were the days of gold, gold, gold, and so frenzied were men and women to find it that other precious minerals were cast aside as worthless. None had time to seek for stones worth a hundred dollars a pound, with gold worth more than twice as much. So the lost mine of Bolivio became only a memory.

Years later this same stone was discovered six hundred miles farther south. It is now on the market as kunzite, and a cut stone of one karat in weight sells for fifty dollars and more. The San Diego County discovery was supposed to mark the introduction of the stone in the United States, for the lost mine of Bolivio was all but forgotten.

Old Dad Sloan thumped out at Jessamy's request and once again critically examined Oliver's saddle and bridle and the brilliants in the *conchas*.

"It's the same fine outfit Bolivio made, and that afterwards belonged to Dan Smeed, outlaw, highwayman, and squawman," he pronounced. "They never was another outfit like it in this country."

"Tell us more about Dan Smeed!" screamed the girl.

The patriarch shook his head. "Bad egg; bad egg!" he said sonorously. "He married a squaw, and that's how come it he got the grandest saddle and bridle Bolivio ever made. Bolivio's squaw kep' it after Bolivio was knifed. And by and by along come this Dan Smeed and his partner to this country. And when Dan Smeed married into the tribe he got the saddle and bridle

and martingales somehow. That was later—years later. Bolivio's been dead over seventy year."

"Have you ever heard the name Peter Drew?" Oliver asked him.

But the old eyes remained blank, and the grey head shook slowly from side to side. "I recollect clear as day what happened sixty to seventy year ago, but I can't recollect what I did last week or where I went," Dad Sloan said pathetically. "If I'd ever heard o' Peter Drew in the days o' forty-nine to seventy, I'd recollect it."

"You mentioned Dan Smeed's partner," prompted Jessamy. "Can you recall his name?"

"Yes, Dan Smeed had a partner," mused Dad Sloan. "Bad egg, Dan Smeed. Squawman, highwayman, outlaw. Disappeared with his fine saddle and bridle and martingales and the stones from the lost mine o' Bolivio."

"But his partner's name?" the girl persisted.

The old mind seemed to be wandering once more. "Bad eggs—both of 'em. Bad eggs," was the only answer she could get.

"Well, we're progressing slowly," Jessamy observed as they rode away. "Our next step must be to visit the Indians. I know a number of them. Filipe Maquaquish, for instance, and Chupurosa are as old or older than Old Dad Sloan. Chupurosa's face is a pattern in crinkled leather. When we go to see Aunt Nancy Fleet we'll visit the Indian village. And that will be—when?"

"Tomorrow, if you say so," Oliver replied. "I meant to irrigate my garden tomorrow, but it can wait a day."

"By the way," she asked, "have you written that letter to Mr. Selden, telling him what we found out down at the county seat?"

"I have it in my pocket," he told her.

"Give it to me," she ordered. "I'll hand it in at the post office, get them to stamp the postmark on it, and take it home with me when I go."

"Will you dare do that? Won't the post-master scent a conspiracy against Old Man Selden?"

"Let him scent!" said Jessamy. "I'm dying to see Selden's face when he reads that letter."

They parted at the headwaters of Clinker Creek, with the understanding that she would meet him in the county road next morning for the ride to her aunt's and the Indian reservation.

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## CHAPTER VIII

### POISON OAK RANCH

The trail that meandered down Clinker Creek Cañon extended at right angles to the one that led to the Selden ranch. The latter climbed a baldpate hill; then, winding its narrow way through dense locked chaparral higher than horse and rider, dipped down precipitously into the deep cañon of the American River.

Jessamy waved good-bye to her new friend at the parting of the ways and lifted White Ann into her long lope to the summit of the denuded hill. For a little, as they crossed the topmost part of it, the deep, rugged scar that marked the course of the river was visible. Ragged and rocky and covered with trees and chaparral, the cañonside slanted down dizzily for over fifteen hundred feet. At the bottom the deep green river rushed pell-mell to the lower levels. A moment and the view was lost to the girl, as White Ann entered the thick chaparral and started the swift descent.

At last they reached the bottom, forded the swirling stream, and began clambering up a trail as steep as the first on the other side. Soon the river was lost to view again, for once more the trail had been cut through a seemingly impenetrable chaparral of buckthorn, manzanita and scrub oak. Around and about tributary cañons they wound their way, and at last reached the end of the steep climb. For a quarter of a mile now the trail followed the backbone of a ridge, then entered a cañon that eventually spread out into a pine-bordered plateau on the mountainside. Just ahead lay Poison Oak Ranch. Beyond, the deep, dark forest extended in miles numbered by hundreds to the snow-mantled peaks of the Sierra Nevada range.

While it was possible to reach Poison Oak Ranch from this side of the river, the journey on Shank's mare would have taken on something of the nature of an exploring expedition into unmapped lands. Occasionally hunters wandered to or past the ranch on this side; but for the most part any one

who fancied that he had business at Poison Oak Ranch came over the narrow trail that connected the spot with outside civilization. Few entertained such a fancy, however, for Poison Oak Ranch, secluded, hidden from sight, tucked away in the Hills of Nowhere, and difficult of access, was owned and controlled by a clannish family that had little in common with the world.

There was a large log house that Adam Selden's father had built in the days of '49, in which the Old Man Selden of today had first opened his eyes on life. There were several lesser cabins in the mountainside cup, two of which were occupied by Hurlock Selden and Winthrop Selden and their families. The remaining two boys, Moffat and Bolar, lived in the big house with Jessamy, her mother, and the wicked Old Man of the Hills.

There was an extensive garden, watered by a generous spring that gushed picturesquely from under a gigantic boulder set in the hillside. There were perhaps ten acres of pasture, and a small deciduous orchard. Little more in the way of agricultural land. The Seldens merely made this place their home and headquarters—their cattle ranged the hills outside, and most of their activities toward a livelihood were carried on away from home. Selden owned a thousand acres over in the Clinker Creek Country and a winter range a trifle larger fifty miles below the foothills. He moved his herds three times in a year—from the winter pastures to the Clinker Creek Country for the spring grass, keeping them there till August, when they were driven to government mountain ranges at an altitude of six thousand feet; and from thence, in October, to winter range once more. The Clinker Creek range, however, was comprised of several thousand acres beside the thousand owned by Selden. This represented lands long since deserted by their owners as useless for agricultural purposes, and upon which Selden kept up the taxes, or appropriated without negotiations, as conditions demanded. Oliver Drew's forty had been a part of this until Oliver's inopportune arrival.

Jessamy rode into the rail corral and unsaddled her mare. Then she hurried to the house to help her mother, a tired looking, once comely woman of fifty-eight.

Mrs. Selden had been an Ivison—a sister of Old Tabor Ivison, who had homesteaded Oliver's forty acres thirty years before. As a girl she had married Herman Lomax, a country youth with ambitions for the city. He had done fairly well in the mercantile business in San Francisco, and Jessamy, the only child, was born to them. The girl had been raised to young womanhood and attended the State University. Then her father had died, leaving his business in an involved condition; and in the end the widow and her daughter found there was little left for them.

They returned to the scene of Mrs. Lomax's girlhood, where they tried without success to farm the old home place, to which, in the interim, the widow had fallen heir. Then to the surprise of every one—Jessamy most of all—Mrs. Lomax consented to marry Old Adam Selden, the father of four strapping sons and "the meanest man in the country." At the time Jessamy had not known this last, but she knew it now.

However, such an independent young woman as Jessamy would not consent to suffer a great deal at the hands of a step-father. She stayed on with the family for her mother's sake, but she had her own neat living room and bedroom and went her own way entirely. It must end someday. Old Adam Selden, though hard and tough as a time-battered oak, could not live for ever. Her mother would not divorce him. So Jessamy stayed and waited, and rode over the hills alone, unafraid and independent.

She was helping her mother to get supper in the commodious kitchen, with its black log walls and immense stone fireplace, which room served as dining room and living room as well, when Adam Selden, Bolar, and Moffat rode in from the trail and corraled their horses. Supper was ready as the three clanked to the house in spurs and chaps, and washed noisily in basins under a gigantic liveoak at the cabin door. Then Jessamy took Oliver Drew's letter from her bosom and propped it against old Adam's coffee cup.

Selden's bushy brows came down as he scraped his chair to the table. Mail for any Selden was an unusual occurrence.

"What's this here?" Adam's thick fingers held the envelope before his eyes, and the beetling grey brows strained lower.

"Mail," indifferently answered Jessamy, setting a pan of steaming biscuits, covered with a spotless cloth, on the table.

"Fer me?"

"'Adam Selden, Esquire,'" she quoted.

"'Esquire,' eh? Who's she from?"

"It's generally customary to open a letter and read who it is from," said Jessamy lightly. "In this instance, however, you will find a notation on the flap of the envelope that reads: 'From Oliver Drew, Halfmoon Flat, California.'"

"Huh!" Selden raised his shaggy head and bent a condemnatory glance on the girl.

"D'he give it to ye?"

"It is postmarked Halfmoon Flat," said Jessamy, taking her seat beside Bolar, who, indifferent to his father's difficulties, had already consumed three fluffy biscuits spread with butter and wild honey.

"Ye got her out o' the office, then?" The cold blue eyes were challenging.

"Oh, certainly, certainly!" Jessamy chirruped impatiently. "One might imagine you'd never received a letter before."

Adam fingered it thoughtfully. "Yes," he said deliberately at last, reverting to his customary drawl, "I got letters before now. But I was just wonderin' if this Drew fella give thisun to you to give to me."

Jessamy's round left shoulder gave a little shrug of indifference. "Coffee, Moffat?" she asked.

"Sure Mike," said Moffat.

"Did he?" Selden's tones descended to the deep bass boom which marked certain moods.

"Oh, dear!" Jessamy complained good-naturedly. "What's the use? Can't you see the postmark and the cancelled stamp, Mr. Selden?"

Selden contemplated them. "Yes, I see 'em," he admitted; "I see 'em. But I thought, s' long's ye was with that young Drew fella today, he might 'a' saved his stamp and sent her to me by you."

"That being satisfactorily decided," chirped Jessamy, "let us now open the missive and learn what Mr. Drew has to communicate."

"Heaven's sake, Pap, open it and shut up!" growled Moffat, his mouth full of potato.

"I'll take a quirt to you if ye tell me to shut up ag'in!" thundered Selden.

Thereupon he tore the envelope and leaned out from his chair so that the light from a window flooded the single sheet which the envelope contained.

He read silently, slowly, craggy brows drawn down. His cold blue eyes widened, and the large nostrils of his pitted Bourbon nose spread angrily.

"Moffat, listen here!" he boomed at last. "You, too, Bolar."

"Yes, be sure to listen, Bolar," laughed Jessamy. "But if you don't wish to, go down into the cañon of the American."

"Adam Selden, Esquire," Selden boomed on, unheeding the girl's bantering. "'Poison Oak Ranch, Halfmoon Flat, Californy:'"

"'My dear Mr. Selden.' Get that, Moffat! 'My dear Mr. Selden!' Say, who's that Ike think he's writin' to? His gal? Huh! 'My *dear* Mr. Selden:'"

"'I rode to the county seat on Wednesday, this week, and looked over the records in the office of the recorder of deeds. I found that you are entirely mistaken in the matter that you brought to my attention on Tuesday. The forty acres known as the Old Ivison Place are recorded in my name, the date of the recording being January fifth, this year. It appears that Nancy Fleet sold the place years ago to my father, but that the transfer was not placed on record until the date I have mentioned.'"

"'With kindest regards,'"

"'Yours sincerely, Oliver Drew.'"

Selden came to an ominous pause and glared about the table. "Writ with a typewriter, all but his name," he announced impressively. "And he's a liar by the clock!"

Jessamy threw back her head in that whole-souled laughter that made every one who heard her laugh.

"He's crazy," complacently mumbled Bolar, still at war on the biscuits.

"Jess'my"—Selden's eyes were fixed sternly on his step-daughter—"What're ye laughin' at?"

"At humanity's infinite variety," answered Jessamy.

"Does that mean me?"

"Me, too, Pete!" she rippled.

"Looky-here"—he leaned toward her—"there's some funny business goin' on 'round here. Two times ye been seen ridin' with that new fella down on the Old Ivison Place."

"Two times is right," she slangily agreed.

"And ye rode with 'im to the county seat when he went to see the records. Just so!"

"Your informer is accurate," taunted the girl.

"What for?"

"What for?" She levelled her disconcerting gaze at him. "Well, I like that, Mr. Selden! Because I wanted to, if you must pry into my affairs."

"Ye wanted to, eh? Ye *wanted* to! Did ye see the records?"

"I did."

"Is this here letter a lie?" He spanked the table with it.

"It is not."

He rose from his chair and bent over her. "D'ye mean to tell me yer maw's sister don't own that prop'ty?"

"Exactly. It belongs to Mr. Oliver Drew, according to the recorder's office. May I suggest that I am rather proud of my biscuits tonight, and that they're growing cold as lumps of clay?"

"It's a lie!" roared Selden.

"Now, just a moment," said Jessamy coolly. "Do I gather that you are calling me a liar, Mr. Selden? Because if you are, I'll get a cattle whip and do my utmost to make you swallow it. I'll probably get the worst of it, but —"

"Shut up!" bawled Selden. "Ye know what I mean, right enough! The whole dam' thing's a lie!"

"Tell it to the county recorder, then," Jessamy advised serenely. "Have another piece of steak, Mother."

"I'll ride right up to Nancy Fleet's tomorrow. I'll get to the bottom o' this business. And you keep yer young nose outa my affairs, Jess'my!"

"Oh, I'll do that—gladly. That's easy."

"Just so! Then keep her outa this fella Drew's, too!"

"That's another matter entirely," she told him. "And I may as well add right here, while we're on the subject, that I wish you to keep your nose out of *my* affairs. There, now—we've ruined our digestions by quarrelling at meal-time. Bolar hasn't, though—I'm glad somebody appreciates my biscuits."

Bolar grinned, and his face grew red. Bolar was deeply in love with his step-sister, four years his senior; but a day in the saddle, with a sharp spring wind in one's face, will scarce permit the tender passion to interfere with a lover's appetite.

Old Adam enveloped himself in his customary brooding silence. He was a holy terror when aroused, and would then spout torrents of words; but ordinarily he was morosely quiet, taciturn. He would not have hesitated to apply his quirt to his twenty-six-year-old son Moffat, as he had threatened

to do, had not that young man possessed the wisdom born of experience to refrain from defying him. But with his step-daughter it was different. For some inexplicable reason he "took more sass" from her than from any other person living. Deep down in his scarred old heart, perhaps, there was hidden a deferential respect and fatherly admiration for this breezy, strong-minded girl with whom a strange fortune had placed him in daily contact.

"Please eat your supper, Mr. Selden," Jessamy at last sincerely pleaded, when the old man's frowning abstraction had continued for minutes.

Dutifully, without a word, he scraped his chair closer to the table and fell to noisily. But he did not join in the conversation, which now became general.

It was a custom in the House of Selden for each diner to leave the table when he had finished eating—a custom antedating Jessamy's advent in the family, which she never had been able to correct. Bolar had long since bolted the last morsel of food that his tough young stomach would permit, and had hurried to a half-completed rawhide lariat. Moffat soon followed him out. Then Jessamy's mother arose and left the room. This left together at the table the deliberate eater, Jessamy, and the old man, who had not yet caught up with the time he had given to the letter.

He too finished before the girl, having completed his supper in the same untalkative mood. Now, however, he spoke to her as he pushed back his chair and rose.

"Jess'my," he said in a moderate tone, "I want to tell ye one thing. Ye know that I shoot straight from the shoulder, or straight from the hip, whichever's handiest—and I don't shoot to scare."

He waited.

Jessamy nodded. "I'll have to admit that," she said. "I think it's the thing I like most about you."

He pondered over this, and again his brows came down above his pitted nose. "I didn't know they was anything ye liked about me," he at length said bluntly.

"Oh, yes," she remarked, levelling that straightforward look of hers at him. "I like your height and the breadth of your chest, and the way you sit in your saddle when your horse is on the dead run—and the other thing I mentioned before."

Again he grew thoughtful. "Well, that's *somethin'*," he finally chuckled. "Ye like my way o' sayin' what I think, then. Well, get this: I'm the boss o' this country, from Red Mountain to the Gap. I been the boss of her since my pap died and turned her over to me. So it's the boss o' the Poison Oak Country that's talkin'. And he says this: That new fella Drew that's made camp down on the Old Tabor Iverson Place can't make a livin' there, can't raise nothin', don't belong there. And if by some funny business, that I'm gonta look into right away, he's got a-holt o' that forty, he's got to hit the trail."

"Why, how ridiculous!" laughed the girl. "Where do you think you are, Mr. Selden? In Russia—Germany? King Selden Second, Czar of all the Poison Oak Provinces! Mr. Drew, owning that land in his own right, must hit the trail and leave it for you simply because you say so!"

"Ye heard what I said, Jess'my"—and he clanked out of the room.

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## CHAPTER IX

### NANCY FLEET'S WINDFALL

Jessamy Selden stood before the cheap soft-wood dresser in her bedroom, in a wing of the old log house, and completed the braiding of the two long, thick strands of cold-black hair. Then in the cozy little sitting room, which adjoined the bedroom and was hers alone, she slipped on her morocco-top riding boots and buckled spur straps over her insteps.

The sun had not yet climbed the wooded ridges beyond Poison Oak Ranch. The night before the girl had prepared a cold breakfast for herself; and with this wrapped in paper she left the sitting room by its outside door and ran to the corral. The family was at breakfast in the vast room. Hurlock's and Winthrop's families were likewise engaged in their respective houses. So no one was about to disturb or even see Jessamy as she hastily threw the saddle on White Ann, leaped into it, and rode away.

When she had left the clearing, and the noise of rapid hoofbeats would not be heard, she lifted the mare into a gallop. At this reckless speed they swung into the trail and plunged hazardously down the mountainside along the serpentine trail. They forded the river, took the trail on the other side, and raced madly up it until compassion for her labouring mount forced the rider to rein in. Now she ate her breakfast of cold baked apple and cold fried mush in the saddle as the mare clambered upward.

At sunrise they topped the ridge and took up the lope again toward the headwaters of Clinker Creek. Long before she reached it Jessamy saw a bay horse and its rider at rest, with the early sunlight playing on the flashing silver of the famous saddle and bridle of Oliver Drew.

"Let's go!" she cried merrily as White Ann, convinced that some devilment was afoot, cavorted and humped her back and shied from side to side while she bore down swiftly on the waiting pair.

For answer Oliver Drew pressed his calves against Poche's ribs, and the bay leaped to White Ann's side with a snort that showed he had caught the spirit of the coming adventure, whatever it might prove to be. At a gallop they swung into the county road, Poche producing a challenging metallic rattle by rolling the wheel of his halfbreed bit with his tongue, straining at the reins, and bidding the equally defiant white to do that of which "angels could do no more."

"Good morning!" cried Oliver. "What's the rush?"

"Old Man Selden is riding to Aunt Nancy's today," she shouted back. "Good morning!"

"Oh! In that case, if that white crowbait you're riding hadn't already come three miles, we'd find out whether she can run. She's telling the world she can."

Jessamy made a face at him and, leaning forward, caressed the mare's smooth neck. White Ann evidently considered this a sign of abetment, for she plunged and reared and cast fiery looks of scorn at her pseudo rival.

"There, there, honey!" soothed the girl. "We could leave that old flea-bitten relic so far behind it would be cruelty to animals to do it. Just wait till we're coming back, after we've rested and have an even chance; for I really believe the man wants to be fair."

Oliver's eyes were filled with her as her strong, sinewy figure followed every unexpected movement of the plunging mare as if a magnet held her in the saddle. The dew of the morning was on her lips; the flush of it on her cheeks. Her long black braids whipped about in the wind like streamers from the gown of a classic dancer. The picture she made was the most engrossing one he had ever looked on.

They slowed to a walk after a mile of it.

"Well," said Jessamy, "I delivered your letter."

"Yes? Go on. That's a good start."

"It created quite a scene. Old Adam simply won't—can't—believe that you own the Old Ivison Place. So that's why he's fogging it up to Aunt Nancy's

today. I think we'll be an hour ahead of him, though, and can be at the reservation by the time he reaches the house."

"Is he angry?"

"Ever try to convince a wasp that you have more right on earth than he has?" Her white teeth gleamed against the background of red lips and sunburned skin.

"Well?"

"He says that, whether you own the place or not, you'll have to leave."

"M'm-m! That's serious talk. In some places I've visited it would be called fighting talk."

"Number this place among them, Mr. Drew," she said soberly, turning her dark, serious eyes upon him.

"But I didn't come up here to fight!"

"Neither did the President of the United States take his seat in Washington to fight," she pointed out, keeping that level glance fixed on his face.

"Oh, as to that," mused Oliver after a thoughtful pause, "I guess I *can* fight. They didn't send me back from France as entirely useless. But it strikes me as a very stupid proceeding. Look here, Miss Selden—how many acres of grass does your step—er—Old Man Selden run cows on for the summer grazing?—how many acres in the Clinker Creek Country, in short?"

Jessamy pursed her lips. "Perhaps four thousand," she decided after thought.

"Uh-huh. And on my forty there's about fifteen acres, all told, that represents grass land. The rest is timber and chaparral. Now, fifteen acres added to four thousand makes four thousand fifteen acres. The addition would take care of perhaps five additional animals for the three months or more that his stock remains in that locality. Do you mean to tell me that Adam Selden would attempt to run a man out of the country for that?"

She closed her eyes and nodded her head slowly up and down in a childlike fashion that always amused him. It meant "Just that!"

He gave a short laugh of unbelief.

"Listen," she cautioned: "Don't make the fatal mistake of taking this matter too lightly, Mr. Drew."

"But heavens!" he cried. "A man who would attempt to dispossess another for such a slight gain as that would rob a blind beggar of the pennies in his cup! I've had a short interview with Old Man Selden. Corrupt he may be, but he struck me as an old sinner who would be corrupt on a big scale. I couldn't think of the masterful old reprobate I talked with as a piker."

Jessamy locked a leg about her saddle horn. "You've got him about right," she informed her companion. "One simply is obliged to think of him as big in many ways."

Oliver's leg now crooked itself toward her, and he slouched down comfortably. "Say," he said, "I don't get you at all."

"Don't get me?" She was not looking at him now.

"No, I don't. One moment you said he would put the skids under me for the slight benefit from my fifteen acres of grass. Next moment you maintain that he is not a piker."

"Yes."

Oliver rolled a cigarette. Not until it was alight did he say:

"Well, you haven't explained yet."

She was silent, her eyes on the glittering snow of the far-off Sierras. For the first time since he had met her he found her strangely at a loss for words. And had her direct gaze faltered? Were her eyes evading his? And was the rich colour of her skin a trifle heightened, or was it the glow from the sun, ever reddening as it climbed its ancient ladder in the sky?

She turned to him then—suddenly. There was in her eyes a look partly of amusement, partly of chagrin, partly of shame.

"I can't answer you," she stated simply. "I blundered, that's all. Opened my mouth and put my foot in it."

"But can't you tell me how you did that even?"

"I talk too much," was her explanation. "Like poor old Henry Dodd, I went too far on dangerous ground."

Oliver tilted his Stetson over one eye and scratched the nape of his neck. "I pass," he said.

"That reminds me," was her quick return, "I sat in at a dandy game of draw last night. There was—"

"Wh-*what!*"

"And now I have both feet in my mouth," she cried. "And you'll have to admit that comes under the heading, 'Some Stunt.' I thought I saw a chance to brilliantly change the subject, but I see that I'm worse off than before. For now you're not only mystified but terribly shocked."

He gave this thirty seconds of study.

"I'll have to admit that you jolted me," he laughed, his face a little redder. "I'm not accustomed to hearing young ladies say, 'I sat in at a dandy little game of draw'—just like that. But I'm sure I went too far when I showed surprise."

"And what's your final opinion on the matter?" She was amused—Not worried, not defiant.

"Well, I—I don't just know. I've never given such a matter a great deal of thought."

"Do so now, please."

Obediently he tried as they rode along.

"One thing certain," he said at last, "it's your own business."

"Oh, you haven't thought at all! Keep on."

A minute later he asked: "Do you like to play poker?"

"Yes."

"For—er—money?"

""For—er—money.' What d'ye suppose—crochet needles?"

Then he took up his studies once more.

Finally he roused himself, removed his leg from the horn, and straightened in the saddle.

"Settled at last!" she cried. "And the answer is...?"

"The answer is, I don't give a whoop if you do."

"You approve, then?"

"Of everything you do."

"Well, I don't approve of that," she told him. "I don't, and I do. But listen here: One of the few quotations that I think I spout accurately is 'When in Rome do as the Romans do.' I'm 'way off there in the hills. I'm a pretty lonely person, as I once before informed you. Yet I'm a gregarious creature. We have no piano, few books—not even a phonograph. Bolar Selden squeezes a North-Sea piano—in other words an accordion. Of late years accordion playing has been elevated to a place among the arts; but if you could hear Bolar you'd be convinced that he hasn't kept pace with progress. He plays 'The Cowboy's Lament' and something about 'Says the wee-do to the law-yer, O spare my only che-ild!' Ugh! He gives me the jim-jams.

"So the one and only indoor pastime of Seldenvilla is draw poker. Now, if you were in my place, would you be a piker and a spoilsport and a pink little prude, or would you be human and take out a stack?"

"I understand," he told her. "I think I'd take out a stack."

"And besides," she added mischievously, "I won nine dollars and thirty cents last night."

"That makes it right and proper," he chuckled. "But we've wandered far afield. Why did you say that Selden would try to run me off my toy ranch in one breath, and that he is wicked only in a big way in the next?"

"I'd prefer to quarrel over poker playing," she said. "Please, I blundered—and I can't answer that question. But maybe you'll learn the answer to it today. We'll see. Be patient."

"But I'll not learn from you direct."

"I'm afraid not."

"I think I understand—partly," he said after another intermission. "It must be that there's another—a bigger—reason why he wants me out of Clinker Creek Cañon."

"You've guessed it. I may as well own up to that much. But I can't tell you more—now. Don't ask me to."

After this there was nothing for the man to do but to keep silent on the subject. So they talked of other things till their horses jogged into Calamity Gap.

Here was a town as picturesque as Halfmoon Flat, and wrapped in the same traditions. Jessamy's Aunt Nancy Fleet lived in a little shake-covered cottage on the hillside, overlooking the drowsy hamlet and the railroad tracks.

It appeared that all of the Ivison girls had been unfortunate in marrying short-lived men. Nancy Fleet was a widow, and two other sisters besides Jessamy's mother had likewise lost husbands.

Nancy Fleet was a still comely woman of sixty, with snow-white hair and Jessamy's black eyes. She greeted her niece joyously, and soon the three were seated in her stuffy little parlour.

Oliver opened up the topic that had brought him there. Mrs. Fleet, after stating that she did so because he was Oliver Drew, readily made answer to his questions.

Yes, she had sold the Old Ivison Place to a Mr. Peter Drew something like fifteen years before. She had never met him till he called on her, and no one else at Calamity Gap had known anything about him.

He told that he had made inquiry concerning her, and that this had resulted in his becoming satisfied that she was a woman who would keep her word and might be trusted implicitly. This being so, he told her that he would relieve her of the Old Ivison Place, if she would agree to keep silent regarding the transfer until he or his son had assured her that secrecy was no longer necessary. For her consideration of his wishes in this connection he told her that he was willing to pay a good price for the land.

As there seemed to be no rascality coupled with the request, she gave consent. For years she had been trying to dispose of the property for five hundred dollars. Now Peter Drew fairly took her breath away by offering twenty-five hundred. He could well afford to pay this amount, he claimed, and was willing to do so to gain her co-operation in the matter of secrecy. She had accepted. The transfer of the property was made under the seal of a notary public at the county seat, and the money was promptly paid.

Then Peter Drew had gone away with his deed, and for fifteen years she had made the inhabitants of the country think that she still owned the Old Ivison Place simply by saying nothing to the contrary. She had been told to accept any rentals that she might be able to derive from it—to use it as her own. For several years Peter Drew had regularly forwarded her a bank draft to cover the taxes. Then Adam Selden had offered to pay the taxes for the use of the land, and she had written Peter Drew to that effect and told him to send no more tax money until further notice. Since that date she had heard no more from the mysterious purchaser of the land.

She was surprised to learn that the transfer had at last been recorded, but could throw no light whatever on the proceedings.

She took a motherly interest in Oliver because of his father, whose generosity had greatly benefited her. In fact, she said, she couldn't for the life of her tell how she'd got along without that money.

"And whatever shall I say, dearie, when Adam Selden comes to me today?" she asked her niece. "I'm afraid of the man—just afraid of him."

"Pooh!" Jessamy deprecated. "He's only a man. Oliver Drew's coming, and the fact that the transfer has at last been placed on record leaves you free to tell all you know. So just tell Old Adam what you've told Mr. Drew, and say you know nothing more about it. But whatever else you say, don't cheep that we've been here, Auntie."

"Well, I hope and trust he'll believe me," she sighed as she showed her callers out.

"Now," said Jessamy, as they remounted, "we'll ride away and be at the reservation by the time Old Adam arrives here. What do you think of your mystery by now, Mr. Drew?"

"It grows deeper and deeper," Oliver mused.

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## CHAPTER X

### JESSAMY'S HUMMINGBIRD

A steep, tall mountain, heavily wooded, reared itself above the Indian reservation. A creek tumbled over the boulders in the mountainside and raced through the village of huts; and the combined millions of all the irrigation and power companies in the West could not have bought a drop of its water until Uncle Sam's charges had finished with it and set it free again.

It was a picturesque spot. Huge liveoaks, centuries old, sprawled over the cabins. Tiny gardens dotted the sunny land. Horses and dogs were anything but scarce, and up the mountainside goats and burros browsed off the chaparral. Wrinkled old squaws washed clothes at the creekside, or pounded last season's acorns into *bellota*—the native dish—in mortars hollowed in solid stone. Some made earthen *ollas* of red clay; some weaved baskets. Over all hung that weird, indescribable odour which only Indians or their much-handled belongings can produce.

"This is peace," smiled Oliver to Jessamy, as their horses leaped the stream side by side and cantered toward the cluster of dark, squat huts. "What do they call this reservation?"

"It is named after an age-old dweller in our midst whom, since you are a Westerner, you must have often met."

"Who is that?"

"Mr. Rattlesnake."

"Oh, certainly. I've met him on many occasions—mostly to his sorrow, I fancy. Rattlesnake Reservation, eh?"

"Well, that would be it in English. But in the Pauba tongue Mr. Rattlesnake becomes Showut Poche-daka."

"What's that!" Oliver turned quickly in his saddle to find her dark wide eyes fixed on him intently. "Say that again, please."

"Showut Poche-daka," she repeated slowly.

"M'm-m! Strikes me as something of a coincidence—a part of that name."

"Showut is one word," she said, still watching him. "Poche and daka are two words hyphenated."

"And how do the English-speaking people spell the second word, Poche?" he asked.

"P-o-c-h-e," she spelled distinctly. "Long o, accent on the first syllable."

Oliver reined in. "Stop a second," he ordered crisply. "Why, that's the way my horse's name is spelled. Say, that's funny!"

"Is your trail growing plainer?"

He looked at her earnestly. "Look here," he said bluntly. "I distinctly remember telling you the other day that my horse's name is Poche. Didn't you connect it with the name of the reservation at the time?"

"I did."

He looked at her in silence. "You did, eh?" he remarked finally. "I don't even know what my horse's name means. Dad bought him while I was away at college. I understood the horse was named that when Dad got hold of him, and that he merely hadn't changed it. Now, I won't say that Dad told me as much outright, but I gathered that impression somehow. I knew it was an Indian name, but had no idea of the meaning."

"Literally Poche means bob-tailed—short-tailed. That's why it occurs in the title of our friend Mr. Rattlesnake. While your Poche-horse is not bob-tailed, his tail is rather heavy and short, you'll admit. Has nothing of the length and graceful sweep of White Ann's tail, if you'll pardon me."

"You can't lead me into joshing just now, young lady. Answer this: Why didn't you tell me, when I told you my *caballo's* name, that you knew what it meant? Most everybody asks me what it means when I tell 'em his name;

but you did not even show surprise over the oddity of it—and I wondered. And before, when you spoke of this tribe of Indians, you called them the Paubas."

"Certainly I showed no surprise, for I am familiar with the word poche and have just proved that I know its meaning. And I'm not very clever at simulating an emotion that I don't feel. I didn't tell you, moreover, because I wanted you to find out for yourself. I thought you'd do so here. Yes—and I deliberately called these people the Paubas. They *are* Paubas—a branch of the Pauba tribe."

"I thought you were to help me," he grumbled. "You're adding to the mystery, it seems to me."

"Not at all. I'm showing you the trail. You must follow it yourself. Knowing the country, I see bits here and there that tell me where to go to help you out. Poche's name is one of them. Keep your eyes and ears open while I'm steering you around."

"All right," he agreed after a pause. "Lead on!"

"Then we'll make a call on Chupurosa Hatchinguish," she proposed. "Chupurosa means hummingbird, as you doubtless know, since it is Spanish. And if my Chupurosa isn't a bird and also a hummer, I never hope to see one."

Oliver's riding outfit created a sensation as the two entered the village. Faces appeared in doorways. Squat, dark men, their black-felt hats invariably two sizes too large, came from nowhere, it seemed, to gaze silently. Dogs barked. Women ceased their simple activities and chattered noisily to one another.

Jessamy reined in before a black low door presently, and left the saddle. Oliver followed her. Through a profusion of morning-glories the girl led the way to the door and knocked.

From within came a guttural response, and, with a smile at her companion, she passed through the entrance.

It was so dark within that for a little Oliver, coming from the bright sunlight, could see almost nothing. Then the light filtering in through the vines that covered the hut grew brighter.

The floor was of earth, beaten brick-hard by the padding of tough bare feet. In the centre was a fireplace—little more than a circle of blackened stones—from which the smoke was sucked out through a hole in the roof, presumably after it had considerably asphyxiated the occupants of the dwelling. Red earthenware and beautifully woven baskets represented the household utensils. There were a few old splint-bottom chairs, a pack-saddle hanging on the wall, a bed of green willow boughs in one corner.

These simple items he noticed later, and one by one. For the time being his interested attention was demanded by the figure that sat humped over the fire, smoking a black clay pipe.

Chupurosa Hatchinguish, headman of the Showut Poche-dakas and a prominent figure in the fiestas and yearly councils of the Pauba tribes, was a treasure for anthropologists. Years beyond the ken of most human beings had wrought their fabric in his face. It was cross-hatched, tattooed, pitted, knurled, and wrinkled till one was reminded of the surface of some strange, intricately veined leaf killed and mummified by the frost. From this crunched-leather frame two little jet-black eyes blazed out with the unquenched fires of youth and all the wisdom in the world. A black felt hat, set straight on his iron-grey hair and almost touching ears and eyebrows, faded-blue overalls, and a dingy flannel shirt completed his garb, as he wore nothing on his feet.

"Hello, my Hummingbird!" Jessamy cried merrily in the Spanish tongue.

Chupurosa seemed not to be the stoic, "How-Ugh!" sort of Indian with which fiction has made the world familiar. All the tragedy and unsolvable mystery of his race was written in his face, but he could smile and laugh and talk, and seemed to enjoy life hugely.

His leathery face now parted in a grin, and, though he did not rise, he extended a rawhide hand and made his callers welcome. Then he waved them to seats.

Much as any other human being would do, he politely inquired after the girl's health and that of her family. Asked as to his own, he shook his head and made a rheumatic grimace.

"I've brought a friend to see you, Chupurosa," said Jessamy at last, as, for some reason or other, she had not yet exactly introduced Oliver.

Chupurosa looked at the man inquiringly and waited.

"This is Oliver Drew," said the girl in what Oliver thought were unnatural, rather tense tones. He saw Jessamy's lips part slightly after his name, and that she was watching the old man intently.

Chupurosa nodded in an exaggerated way, and extended a hand, though the two had already gone through the handshake formality. Oliver arose and did his part again, then stood a bit awkwardly before their host.

He heard a half-sigh escape the girl. "Señor Drew has not been in our country long," she informed the old man. "He comes from the southern part of the state—from San Bernardino County."

Again the exaggerated nodding on the part of Chupurosa.

Then there was a pause, which the girl at length broke—

"Did you catch the name, Chupurosa? *Oliver Drew*."

Chupurosa politely but haltingly repeated it, and grinned accommodatingly.

Jessamy tried again. "Do you know a piece of land down in Clinker Creek Cañon that is called the Old Iverson Place, Chupurosa?"

His nod this time was thoughtful.

"Señor Drew now owns that, and lives there," she added.

Both Jessamy and Oliver were watching him keenly. It seemed to Oliver that there was the faintest suggestion of dilation of the eye-pupils as this last bit of information was imparted. Still, it may have meant nothing.

The Indian crumbled natural-leaf with heel of hand and palm, and refilled his terrible pipe.

"Any friend of yours is welcome to this country and to my hospitality," he said.

"Señor Drew rode all the way up here horseback," the girl pushed on. "You like good horses, Chupurosa. Señor Drew has a fine one. His name is Poche."

For the fraction of a second the match that Oliver had handed Chupurosa stood stationary on its trip to the tobacco in his pipe. Chupurosa nodded in his slow way again, and the match completed its mission and fell between the blackened stones.

"And you like saddles and bridles, too, I know. You should see Señor Drew's equipment, Chupurosa."

Several thoughtful puffs. Then—

"Is it here, Señorita?"

"Yes," said the girl breathlessly. "Will you go out and look at it?"

This time the headman puffed for nearly a minute; then suddenly he rose with surprising briskness.

"I will look at this horse called Poche," he announced, and stalked out ahead of them.

A number of Indians, old and young, had gathered about the horses outside the little gate. They were silent but for a low, seemingly guarded word to one another now and then. Every black eye there was fixed on the gorgeous saddle and bridle of Poche in awe and admiration.

Then came Chupurosa, tall, dignified as the distant mountain peaks, and they backed off instantly. At his heels were Oliver and the girl, whose cheeks now glowed like sunset clouds and whose eyes spoke volumes.

Thrice in absolute silence the headman walked round the horse. Completing the third trip, he stepped to Poche's head and stood attentively looking at the left-hand *concha* with its glistening stone. Then Chupurosa lifted his hands, slipped the chased-silver keeper that held the throatlatch in place, and let

the throatlatch drop. Both hands grasped the cheekstrap near the brow-band, and turned this part of the bridle inside out.

Oliver felt a slight trembling, it was all so weird, so portentous. He almost knew that the jet eyes were searching for the "B" chiselled into the silver on the inside of the *concha*, knew positively by the quick dilation of the pupils when they found it.

At once the old man released the bridle and readjusted the throatlatch. He turned to them then, and silently motioned toward the hut. Jessamy cast a triumphant glance at Oliver as they followed him inside.

To Oliver's surprise he closed the door after them. Then, though it was now so dark inside that Oliver could scarce see at all, Chupurosa stood directly before him and looked him up and down.

He spoke now in the melodious Spanish.

"Señor," he asked, "is there in the middle of your body, on the left side, the scar of a wound like a man's eye?"

Oliver caught his breath. "Yes," he replied. "I brought it back from France. A bayonet wound."

Up and down went the iron-grey head of the sage. "I have never seen the weapon nor the sort of wound it makes," he informed Oliver gravely. "Take off your shirt."

"Oh, Chupu-ro-sa!" screamed Jessamy as she threw open the door and slammed it after her.

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## CHAPTER XI

### CONCERNING SPRINGS AND SHOWUT POCHE-DAKA

It was evident to Oliver Drew that Clinker Creek was lowering fast, as Damon Tamroy had predicted that it would do. He feared that it would go entirely dry just when certain vegetables would need it most. Again, also following Tamroy's prophecy, the flow from his spring proved insufficient to keep all of his plantings alive, even though he had impounded the surplus in a small clay-lined reservoir.

He stood with hands on hips today, frowning at the tinkling stream of water running from the rusty length of pipe into the reservoir.

"There's just one thing to do," he remarked to it, "and that's to see if I can't increase your putter-putter. I want to write an article on making the most of a flow of spring water, anyway; and I guess I'll use you for a foundation."

Whereupon he secured pick and shovel and sledge and set about removing the box he had so carefully set in the ground to hold his domestic water.

When the box was out he enlarged the hole, and, when the water had cleared, studied the flow. It seeped out from a fissure in the bedrock—or what he supposed was the bedrock—and it seemed a difficult matter to "get at it." However, he began digging above the point of egress in the resistant blue clay, and late that afternoon was down to bedrock again.

And now when he had washed off the rock he discovered a strange thing. This was that the supposed bedrock was not bedrock at all, but a wall of large stones built by the hand of man. Through a crevice in this wall the water seeped, and when he had gouged out the puttylike blue clay the flow increased fivefold.

He sat down and puzzled over it, expecting the flow to return to normal after some tiny unseen reservoir had been drained of its surplus. But it did not lessen, and had not lessened when night came.

At midnight, thinking about it in bed and unable to sleep, he arose, lighted a lantern, and went down to the spring. The water was flowing just the same as when he had left it.

He was not surprised to find the work of human hands in and about his spring, but this wall of stones was highly irregular. It appeared that, instead of having been built to conserve the water, it was designed to dam up the flow entirely. The old flow was merely seepage through the wall.

He was at it again early next morning, and soon had torn down the wall entirely and thrown out the stones. At least five times as much water was running still. He recalled that Damon Tamroy had said the spring had given more water in Tabor Iverson's day than now.

There was but one answer to the puzzle. For some strange reason somebody since Tabor Iverson's day had seen fit to try to stop the flow from the spring altogether. But who would go to such pains to do this, and hide the results of his work, as these had been hidden? And, above all, why?

It is useless to deny that Oliver Drew at once thought of the Poison Oakers. But what excuse could they produce for such an act? Surely, with the creek dry and the American River several miles away, they would encourage the flow of water everywhere in the Clinker Creek Country for their cattle to drink.

It was beyond him then and he gave it up. He laid more pipe and covered it all to the land level again, and viewed with satisfaction the increased supply of water for the dry summer months to come. And it was not until a week later that Jessamy Selden unconsciously gave him an answer to the question.

He was scrambling up the hill to the west of the cabin that day to another bee tree that he had discovered, when he heard her shrill shouting down below. He turned and saw her and the white mare before the cabin, and the girl was looking about for him.

He returned her shout, and stood on a blackened stump in the chaparral, waving his hat above the foliage.

"I get you!" she shrilled at last. "Stay there! I'm coming up!"

Fifteen minutes later, panting, now on hands and knees, now crawling flat, she drew near to him. A bird can go through California "locked" chaparral if it will be content to hop from twig to twig, but the ponderous human animal must emulate Nebuchadnezzar if he or she would penetrate its mysteries.

"What a delightful route you chose for your morning crawl," she puffed, as at last she lay gasping at the foot of the stump on which he sat and laughed at her.

Oliver lighted a cigarette and inhaled indolently as he watched her lying there with heaving breast, her arms thrown wide. She did everything as naturally as does a child. She wore fringed leather chaps today, and remarked, when she sat up and dusted the trash from her hair, that she was glad she had done so since he had made her come crawling to his feet.

"And that reminds me of something that I've decided to ask you," she added. "Has it occurred to you that I am throwing myself at you?" She looked straight into his face as she put the naïve question to him.

"Why do you ask that?" he countered, eyes on the tip of his cigarette.

"I'll tell you why when you've answered."

"Then of course not."

"I suppose I *am* a bit crude," she mused. "At least it must look that way to the natives here-about. I was fairly confident, though, that you wouldn't think me unmaidenly. I sought you out deliberately. I was lonely and wanted a friend. I had heard that you were a University man. You told Mr. Tamroy, you know. It's perfectly proper deliberately to try and make a friend of a person, isn't it?—if you think both of you may be benefited. And does it make a great deal of difference if the subject chances to be of the other sex?"

"I'm more than satisfied, so far as I come in on the deal," Oliver assured her.

"I thank you, sir. And now I've been accused to my face of throwing myself at you—which expression means a lot and which you doubtless fully understand."

"Who is your accuser?"

"The author of 'Jessamy, My Sweetheart.'"

"Digger Foss, eh?"

She closed both eyes tightly and bobbed her head up and down several times, then opened her eyes. "He's a free man again—tried and acquitted."

"No!"

"Didn't I tell you how it would be?"

He puffed his cigarette meditatively. "Doesn't it strike you as strange that you and I were not subpoenaed as witnesses?"

"I've been expecting that from you. No, sir—it doesn't. Digger's counsel didn't want you and me as witnesses."

"But the prosecuting attorney."

"*He* didn't want us either."

"Then there's corruption."

"If I could think of a worse word than corruption I'd correct you, so I'll let that stand. Digger Foss is Old Man Selden's right hand; and Old Man Selden is Pythias to the prosecuting attorney of this man's county."

Oliver's eyes widened.

"Elmer Standard is the gentleman in question. What connection there can be between him and Adam Selden is too many for me; but Selden goes to see him whenever he rides to the county seat. Only the right witnesses were allowed to take the stand, you may be confident. I knew the halfbreed's acquittal was a foregone conclusion before the smoke from his gat had cleared."

Both were silent for a time, then she said: "Elmer Standard runs things down at the county seat. I've heard that he allows open gambling, and that he personally finances three saloons and several gaming places."

"But there are no saloons now."

"Indeed!" she said with mock innocence. "I didn't know. I never have frequented them, so you'll overlook my ignorance. Anyway, Digger Foss is as free as the day he was born; and Henry Dodd, the man he murdered, lies in the little cemetery in the pines near Halfmoon Flat. But there's another piece of news: Adam Selden has—"

"Pardon my interrupting you," he put in, "but you haven't finished with Digger Foss."

"Oh, that! Well, I met him on the trail between Clinker Creek and the American yesterday. He accused me of being untrue to him while he was in jail."

"Yes?"

"I admitted my guilt. Never having had the slightest inclination to be true to him, I told him, it naturally followed that I was untrue to him—and wasn't it a glorious day? How on earth the boy ever got the idea that he has the right to consider me in the light that he does is beyond me. I don't scold him, and I don't send him packing—nor do I give him the least encouragement. I simply treat him civilly when he approaches me on a commonplace matter, and ignore him when he tries to get funny. And he's probably so dense that all this encourages him. How can he be so stupid! I haven't been superior enough with him—but I hate to be superior, even to a halfbreed. And he's quarter Chinaman. Heavens, what am I coming to!"

"How did the meeting end?" queried Oliver.

"Well, we both went a little further this time than ever before. He attempted to kiss me, and I attempted to cut his face open with my quirt. Both of us missed by about six inches, I'm thankful to say. And the grand climax took the form of a dire threat against you. By the way, I've never seen you pack a gun, Mr. Drew."

He shrugged. "I used to down on the cow ranch in San Bernardino County, but I think I grew up over in France."

"You have one, of course."

"Yes—a 'forty-five."

"Can you handle a gun fairly well?"

"I know which end to look into to see if it's loaded."

"Can you spin a dollar in air with your left hand, draw, and hit it before it strikes the ground?"

"Aw, let's be sensible!" he cried. "I'm after another colony of bees. Come on up and look at 'em."

"Sit still," she ordered. "Can you do what I asked about?"

"I don't know—I've never tried."

"Digger Foss can," she claimed.

"Well, that's shooting."

"It is. I'd strap that gun on if I were you and practice up a bit."

"Cartridges are too high-priced," he laughed. "What's the rest of the news?"

"The store up at Cliffbert, about fourteen miles from here and off the railroad, was broken into three days ago and robbed of cutlery, revolvers, and other things to the tune of several hundred dollars."

"M'm-m! Do they have any idea who did it?"

"Oh, yes. The Poison Oakers."

"They know it?"

"Of course—everybody knows it. But it can't be proved. It's nothing new."

"I didn't know the gang ever went to such a limit."

"Humph!" she sniffed significantly. "And the next piece of news is that Sulphur Spring has gone dry for the first time in many years. And here it's only May!"

"Where is Sulphur Spring?"

"About a mile below your south line, in this cañon. I heard Old Man Selden complaining about it last night, and thought I'd ride around that way this morning. It's as he said—entirely dry, so far as new water running into the basin is concerned."

"Well," said Oliver, "my piece of news is just the opposite of that. My spring is running a stream five times as large as heretofore—"

She straightened. "What caused that?" she demanded quickly.

He explained in detail.

"So!" she murmured. "So! I understand. Listen: I have heard the menfolks at the ranch say that all these cañon springs are connected. That is, they all are outbreaks from one large vein that follows the cañon. If you shut off one, then, you may increase the flow of the next one below it. And if you open one up and increase its output, the next below it may go entirely dry. The flow from yours has been cut off in time gone by to increase the flow of Sulphur Spring. And now that you've taken away the obstruction, your spring gets all the water, while Sulphur Spring gets none."

"I believe you're right," asserted Oliver. "And do you think it might have been the Poison Oakers who closed my spring to increase the flow down there?"

"Undoubtedly."

"But why? They were running cows on my land, too, before I came. Wouldn't it be handier to have a good flow of water in both places?"

"No doubt of that," she answered. "And I can't enlighten you, I'm sorry to say. All I know is that Old Man Selden is hopping mad—angrier than the situation seems to call for, as springs are by no means scarce in Clinker Cañon."

Jessamy's disclosures had ended now, so they scrambled on up the hill toward the bee tree.

The colony had settled in a dead hollow white-oak. The tree had been broken off close to the ground by high winds after the colony had taken up residence therein. The hole by which they made entrance to the hollow

trunk, however, was left uppermost after the fall, and apparently the little zealots had not been seriously disturbed.

Anyway, here they were still winging their way to and from the prostrate tree, the sentries keeping watch at the entrance to their increasing store of honey.

Oliver had found the tree two weeks before, purely by accident. At that time the hole at which the workers entered had been unobstructed. Now, though, tall weeds had grown up about the tree, making a screen before the hole and preventing the nectar-laden insects from entering readily.

"This won't do at-all-at-all," he said to Jessamy, as she took her seat on a limb of the bee tree. "There must be nothing to obstruct them in entering, for sometimes they drop with their loads when they have difficulty in winging directly in, and can't get up again."

"Uh-huh," she concurred.

She had unlaidd one of her black braids and was replaiting it again after the havoc wrought by the prickly bushes.

Oliver lighted his bee-smoker and sent several soft puffs into the hole to quiet the bees. Then without gloves or veil, which the experienced beeman seldom uses, he laid hold of the tall weeds and began uprooting them. Thus engaged, he kneeled down and reached under the tree trunk to get at the roots of certain obstinate plants; and in that instant he felt a sharp sting in the fleshy part of his wrist.

"Ouch! Holy Moses!" he croaked. "I didn't expect to find a bee under there!"

"Get stung?"

"Did I! Mother of Mike! I've been stung many times, but that lady must have been the grandmother of—Why, I'm getting sick—dizzy!—"

He came to a pause, swayed on his knees, and closed his eyes. Then came that heart-chilling sound which, once heard, will never be forgotten, and will ever bring cold terror to mankind—the rattlebone *whir-r-r-r-r* of the diamond-back rattlesnake.

Oliver caught himself, licked dry lips, and was gazing in horror at two bleeding, jagged incisions in his wrist. The girl, with a scream of comprehension, darted toward him. He balanced himself and smiled grimly as she grabbed his arm with shaking hands.

"Got me," he said, "the son-of-a-gun! And I'd have stuck my hand right back for another dose if he hadn't rattled."

Jessamy grabbed him by both shoulders and tried to force him to the ground.

"Sit down and keep quiet!" she ordered, sternly, her nerves now firm and steady, her face white and determined. "No, not that way!"

She grasped him under the arms and with the strength of a young Amazon slued him about as if he had been a sack of flour.

Deftly she bound his handkerchief about his arm, drawing it taut with all her strength. Something found its way into his left hand.

"Drink that!" she commanded. "All of it. Pour it down!"

Then her lips sought the flaming wound; and she clamped her white teeth in his flesh and began sucking out the poison.

At intervals she raised her head for breath and to spit out the deadly fluid.

"Drink!" she would urge then. "And don't worry. Not a chance in the world of your being any the worse after I get through with you."

Oliver obeyed her without question, taking great swallows from the flask of fiery liquor and closing his eyes after each. His senses swam and he felt weak and delirious, though he could not tell whether this last was because of the poison or the liquor he had consumed.

At last Jessamy leaned back and fumbled in a pocket of her chaps. She produced a tiny round box, from which she took a bottle of dry permanganate of potash and a small lancet. With the keen instrument she hacked a deep x in his arm, just over the wound. Then she wet the red powder with saliva and worked a paste into the cuts with the lancet.

This done, she sat back and regarded her patient complacently.

"Just take it easy," she counselled. "And, whatever you do, don't worry. You won't know you were bitten in an hour. Sip that whisky now and then. It won't kill the poison, as some folks seem to believe, but it will make you light-hearted and you'll forget to worry. That's the part it plays in a case like this. Now if I can trust you to keep quiet and serene, I'll seek revenge."

He nodded weakly.

She arose, and presently again came that sickening *whir-r-r-r-r-r* miscalled a rattle, followed immediately by a vicious *thud-thud-thud*.

"There, you horrid creature!" he heard in a low, triumphant tone. "You thought I was afraid of you, did you? Bring total collapse on all your fictitious traditions and bite before you rattle, will you! *Requiescat in pace*, Mr. Showut Poche-daka!"

Half an hour afterward Oliver Drew was on his feet, but he staggered drunkenly. To this day he is not just sure whether he was intoxicated or raving from the effects of the snakebite. Anyway, as Jessamy took hold of him to steady him, his reason left him, and he swept her into his arms and kissed her lips time and again, though she struggled valiantly to free herself.

Ultimately she ducked under his arms and sprang away from him backward, her face crimson, her bosom heaving.

"Sit down again!" she ordered chokingly. "Shame on you, to take advantage of me like that!"

"Won't sit down!" he babbled, reaching about for her blindly. "I love you an' I'm gonta have you!"

"You're out of your head! Sit down again! Please, now." Her tone changed to a soothing note. "You're—I'm afraid you're drunk."

He was groping for her, staggering toward a threatening outcropping of rock. With a rapid leap she closed in on him unexpectedly, heaved desperately to the right and left, and threw him flat on his back. Then she scrambled on top of his knees as he strove to rise again.

"Now, looky-here, mister," she warned, "you've gone just about far enough! In a second I'll get that bee-smoker and put you out of business. Please—please, now, be good!"

He seemed partially stunned by the fall, for he lay now without a move, eyes closed, his mind wandering dreamily. And thus he lay for half an hour longer, when he suddenly raised his head and looked at her, still propped up on his knees, with eyes that were sane.

"Golly!" he breathed.

"Golly is right," she agreed drolly. "Were you drunk or crazy?"

"Both, I guess. I'm—mighty sorry." His face was red as fire.

"Do you wish to get up?"

"If you please."

He stood on his feet. He was still weak and pale and dizzy.

"Heavens! That liquor!" he panted. "What is it? Where did you get it?"

"At home. Old Adam gave me the flask over a year ago. It's only whisky. I always carry a flask for just such an emergency as this. And I never go a step out of the house in the summer without my snakebite kit. Nobody ought to in the West."

He shook his head. "That's not whisky," he said. "I'm not exactly a stranger to the taste of whisky. That's brimstone!"

"I was told it was whisky," she replied. "I know nothing about whisky. I've never even tasted it."

He held the flask to the sun, but it was leather-covered and no light shone through. He unscrewed the metal cap and poured some of the liquor into it.

It was colourless as water.

"Moonshine!" he cried. "And I know now why the flow from my spring was cut off. A still calls for running water!"

"You may be right," she said without excitement. "You will remember that I told you there is another reason besides Selden's covetousness of your grass land why you are wanted out of the Clinker Creek Country."

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## CHAPTER XII

### THE POISON OAKERS RIDE

A red-headed, red-breasted male linnet sat on the topmost branch of the old, gnarled liveoak near Oliver's window and tried to burst his throat to the accompaniment of Oliver's typewriter. When the keys ceased their clicking the singer finished a bar and waited, till once more the dicelike rattle encouraged him to another ecstatic burst of melody.

"Well, I like to be accommodating," remarked Oliver, leaning back from his machine, "but I can't accompany you all day; and it happens that I'm through right now."

He surveyed the last typewritten sheet of his manuscript on the cleaning of springs for the enlarging of their flow; but, the article completed, his mind was no longer engrossed by it.

Other and bigger matters claimed his thoughts, and he sat in the soft spring air wondering about old Chupurosa Hatchinguish and his strange behaviour on seeing the gem-mounted *conchas* stamped with the letter B.

When Oliver had stripped off his shirt in the hut that day the scar that a German bayonet had left in his side had carefully been examined by the ancient chief. Oliver fancied there had been a strange new look in his inscrutable eyes as he silently motioned for him to put on his shirt again. He had made no comment whatever, though, and said nothing at all until the young man had finished dressing. Then he had stepped to the door and opened it, rather impolitely suggesting that his guest's presence in the hut was no longer necessary. As Oliver passed out he had spoken:

"When next the moon is full," he said, "the Showut Poche-dakas will observe the Fiesta de Santa Maria de Refugio, as taught them years ago by the padres who came from Spain. Then will the Showut Poche-dakas dance the fire dance, which is according to the laws laid down by the wise men of

their ancestors. Ride here to the Fiesta de Santa Maria de Refugio on the first night that the moon is full. *Adios, amigo!*"

That was all; and Oliver had passed out into the bright sunlight and found Jessamy Selden.

The two had talked over the circumstances often since that day, but neither could throw any light on the matter. But the first night of the full moon was not far distant now, and Oliver and the girl were awaiting it impatiently. Oliver felt that at the fiesta he would in some way gain an inkling of the mysterious question that had puzzled his father for thirty years, and which eventually had brought his son into this country to find out whether its answer was Yes or No.

Oliver tilted back his chair and lighted his briar pipe. Out in the liveoak tree the linnet waited, head on one side, chirping plaintively occasionally, for the renewed clicking of the typewriter keys. But Oliver's thoughts were far from his work.

That burning, colourless liquor that had so fiercely fired his brain was undoubtedly moonshine—and redistilled at that, no doubt. Jessamy had told him further that she had not so much as unscrewed the cap since old Adam had given her the flask, at her request, and had had no idea that the flask had not contained amber-coloured whisky. Was this in reality the reason why the Poison Oakers wished him to be gone? Had they been distilling moonshine whisky down at Sulphur Spring to supply the blind pigs controlled by the prosecuting attorney at the county seat? And had his inadvertent shutting off of Sulphur Spring's supply of water stopped their illicit activities? They had known, perhaps, that eventually he would discover that his own spring had been choked by some one and would rectify the condition. Whereupon Sulphur Spring would cease to flow and automatically cut off one of their sources of revenue. Oliver decided to look for Sulphur Spring at his earliest opportunity.

His brows came together as he recalled the episode on the hill, when either the fiery raw liquor or the poison from the diamond-back's fangs—or both—had deprived him of his senses.

He remembered perfectly what he had said—what he had done. He had heard sometime that a man always tells the truth when he is drunk. But had he been drunk, or rabid from the hypodermic injections of Showut Pochedaka? Or, again—both? One thing he knew—that he thrilled yet at remembrance of those satin lips which he had pressed again and again.

Had he told the truth? Had he said that day what he would not have revealed for anything—at that time?

His brows contracted more and more, and a grim smile twitched his lips. His teeth gripped the amber stem of his pipe. Had he told the truth?

He rose suddenly and went through a boyish practice that had clung to him to the years of his young manhood. He stalked to the cheap rectangular mirror on the wall and gazed at his wavy reflection in the flawed glass. Blue eye into blue eye he gazed, and once more asked the question:

"Did I tell the truth when I said I loved her?"

His eyes answered him. He knew that he had told the truth.

Then if this was true—and he knew it to be true—what of the halfbreed, Digger Foss? He remembered a gaunt man, stricken to his death, reeling against the legs of a snorting white mare and clutching at them blindly for support—remembered the gloating grin of the mounted man, the muzzle of whose gun followed the movements of his wounded enemy as a cobra's head sways back and forth to the charmer's music—remembered the cruel insolence of the Mongolic eyes, mere slits.

He swung about suddenly from the mirror and caught sight of a knothole in the cabin wall, which so far he had neglected to patch with tin. He noted it as he swung about and dived at the pillow on his bed. He hurled the pillow one side, swept up the ivory-handled '45 that lay there, wheeled, and fired at the knothole. There had been no appreciable pause between his grasping of the weapon and the trigger pull, yet he saw no bullet hole in the cabin boards when the smoke had cleared away.

He chuckled grimly. "I might get out my army medals for marksmanship and pin 'em on my breast for a target," he said.

Then to his vast confusion there came a voice from the front of the house.

"Ain't committed soothin' syrup, have ye?" it boomed.

There was no mistaking the deep-lunged tones. It was Old Man Selden who had called to him.

Oliver tossed the gun on the bed and walked through to the front door, which always stood open these days, inviting the countless little lizards that his invasion of the place had not disturbed to enter and make themselves at home.

The gaunt old boss of the Clinker Creek Country stood, with chap-protected legs wide apart, on Oliver's little porch. His broad-brimmed black hat was set at an angle on his iron-grey hair, and his cold blue eyes were piercing and direct, as always. In his hands he held the reins of his horse's bridle. Back of the grey seven men lounged in their saddles, grinning at the old man's sally. Digger Foss was not among the number.

"How d'ye do, Mr. Selden," said Oliver in cordial tones, thrusting forth a strong brown hand.

Selden did not accept the hand, and made no effort to pretend that he had not noticed it. Oliver quickly withdrew it, and two little lumps showed over the hinges of his jaws.

He changed his tone immediately. "Well, what can I do for you gentlemen?" he inquired brusquely.

"We was ridin' through an' thought we heard a shot," said Selden. "So I dropped off to see if ye wasn't hurt."

"I beg your pardon," Oliver returned, "but you must have been dismounted when I fired. This being the case, you already had decided to call on me. So, once more, how can I be of service to you?"

The grins of the men who rode with Adam Selden disappeared. There was no mistaking the businesslike hostility of Oliver's attitude.

"Peeved about somethin' this mornin'," one of them drawled to the rider whose knee pressed his.

Oliver looked straight at Old Man Selden, and to him he spoke.

"I am not peeved about anything," he said. "But when a man comes to my door, and I come and offer him my hand, and he ignores it, my inference is that the call isn't a friendly one. So if you have any business to transact with me, let's get it off our chests."

Oliver noted with a certain amount of satisfaction the quick, surprised looks that were flashed among the Poison Oakers. Apparently they had met a tougher customer than they had expected.

All this time the cold blue eyes of Adam Selden had been looking over the pitted Bourbon nose at Oliver. Selden's tones were unruffled as he said:

"Thought maybe the poison oak had got too many for ye, an' ye'd shot yerself."

"I don't care to listen to subtle threats," Oliver returned promptly. "Poison oak does not trouble me at all—neither the vegetable variety nor the other variety. I'm never in favour of bandying words. If I have anything to say I try to say it in the best American-English at my command. So I'll make no pretence, Mr. Selden, that I have not heard you don't want me here in the cañon. And I'll add that I am here, on my own land, and intend to do my best to remain till I see fit to leave."

Selden's craggy brows came down, and the scrutiny that he gave the young man was not without an element of admiration. No anger showed in his voice as he said:

"Just so! Just so! I wanted to tell ye that I been down to the recorder's office and up to see Nancy Fleet, my wife's sister. Seems that you're right about this prop'ty standin' in your name an' all; but I thought, so long's we was ridin' along this way, I'd drop off an' have a word with ye."

"I'm waiting to hear it."

"No use gettin' riled, now, because—"

"If you had accepted my hand you'd not find me adopting the tone that I have."

"Just so!" Selden drawled. "Well, then, I'll accept her now—if I ain't too bold."

"You will not," clicked Oliver. "Will you please state your business and ride on?"

"Friendly cuss, ain't he, Dad?" remarked one of the Selden boys—which one Oliver did not know.

"You close yer face!" admonished Selden smoothly, in his deep bass. "Well, Mr. Drew, if ye want to stay here an' starve to death, that's none o' my concern. And if ye got money to live on comin' from somewheres else, that's none o' my concern either. But when ye stop the run o' water from a spring that I'm dependin' on to water my critters in dry months, it *is* my concern—an' that's why I dropped off for a word with ye."

"How do you know I have done that?" Oliver asked.

"Well, 'tain't likely that a spring like Sulphur Spring would go dry the last o' May. Most o' these springs along here are fed from the same vein. You move in, and Sulphur Spring goes dry. So that's what I dropped off to talk to ye about. Just so!"

"I suppose," said Oliver, "that the work I did on my spring has in reality stopped the flow of Sulphur Spring. But—"

"Ye do? What *makes* ye suppose so?—if I ain't too bold in askin'."

Oliver's lips straightened. Plainly Selden suspected that Jessamy had told him of the peculiarity of the cañon springs, and was trying to make him implicate her. But the old man was not the crafty intriguer he seemed to fancy himself to be. He already had said too much if he wished to make Oliver drag the girl's name into the quarrel.

"Why, what you have just told me, added to my knowledge of what I did to clean out my spring, leads to that supposition," he replied. "But, as I was about to remark when you interrupted me, I can't see that that is any concern of mine. That's putting it rather bluntly, perhaps; but I am entirely within my rights in developing all the water that I can on my land, regardless of how it may affect land that lies below me."

"Right there's the point," retorted Selden. "I'm a pretty good friend o' the prosecutin' attorney down at the county seat. He tells me ye can't take my water away from me like that."

"Then I should say that your legal friend is not very well posted on the laws governing the development and disposition of water in this state," Oliver promptly told him.

"I wrote him," said Selden, "an' I'll show ye the letter if ye'll invite me in."

For the first time Oliver hesitated. Why did Selden wish to enter the cabin? Could not the letter be produced and read on the porch? It flashed through his mind that the old fox wished to get him inside so that some of his gang might investigate the spring and find out the volume of the water that was flowing, and what had been done to increase it. This only added to his belief that the Poison Oakers were responsible for the wall of stones that had choked the stream. Well, why not let them find out all that they wished to know in this regard?

"Certainly," he invited. "Come in." And he stood back from the door.

Selden clanked his spur rowels across the threshold. At the same time he was reaching into his shirtfront for the letter.

Then an odd thing occurred. He was about to take the chair that Oliver had pushed forward when his blue eyes fell upon the saddle and bridle which had come to stand for so much in Oliver's life, hanging from a thong in one corner of the room.

The old Poison Oaker's eyes grew wide, and, as was their way when he was moved out of his customary brooding mood, his thick nostrils began dilating. But almost instantly he was his cold, insolent self again.

"I heard some of 'em gassin' about that rig o' yours," he remarked. "Said she was a hummer all 'round. That it there? Mind if I look her over?"

"Not at all." Oliver was quick to grasp at any chance that might lead to the big question and its answer.

Old Man Selden's leather chaps whistled his legs to the corner, where he stood, long arms at his sides, gazing at the saddle, the bridle, and the

martingales. His deep breathing was the only sound in the room. Outside, Oliver heard foot-steps, and suspected that the investigation of his spring was on.

At last Adam Selden made a move. He changed his position so that his spacious back was turned toward Oliver. Quietly Oliver leaned to one side in his chair, and he saw the cowman's big hand outstretched toward the gem-mounted *concha* on the left-hand side of the bridle—saw thumb and fingers turn that part of the bridle inside-out.

Again the room was soundless. Then Selden turned from the exhibit, and Oliver grew tense as he noted the strange pallor that had come on the old man's face.

"That's a han'some rig," was all he said, as he sank to his chair and laid a letter on the oilcloth-covered table.

The letter contained the information that its recipient had claimed, and was signed Elmer Standard. Oliver quickly passed it back, remarking:

"He's entirely wrong, and ought to know it. I have had occasion to look into the legal aspect of water rights in California quite thoroughly, and fortunately am better posted than most laymen are on the subject."

But the chief of the Poison Oakers was scarce listening. In his blue eyes was a faraway look, and that weird grey pallor had not left his face.

Suddenly he jerked himself from reverie, and, to Oliver's surprise, a smile crossed his bearded lips.

"Just so! Just so! I judge ye're right, Mr. Drew—I judge ye're right," he said almost genially. "Anyway you an' me'd be out-an'-out fools to fuss over a matter like that. There's plenty water fer the cows, an' I oughtn't to butted in. But us ol'-timers, ye know, we—Well, I guess we oughta be shot an' drug out fer the cy-otes to gnaw on. I won't trouble ye again, Mr. Drew. An' I'll be ridin' now with the boys, I reckon. Ye might ride up and get acquainted with my wife an' step-daughter—but I guess ye've already met Jess'my. I've heard her mention ye. Ride up some day—they'll be glad to see ye."

And Oliver Drew was more at a loss how to act in showing him out than when he had first faced him on the porch.

The Poison Oakers, with Old Man Selden at their head, rode away up the cañon. Oliver Drew was throwing the saddle on Poche's back two minutes after they had vanished in the trees. He mounted and galloped in the opposite direction, opening the wire "Indian" gate when he reached the south line of his property.

An hour later he was searching the obscure hills and cañons for Sulphur Spring, but two hours had elapsed before he found it.

It was hidden away in a little wooded cañon, with high hills all about, and wild grapevines, buckeyes, and bays almost completely screened it. While cattle might drink from the overflow that ran down beyond the heavy growth, they could not have reached the basin which had been designed to hold the water as it flowed directly from the spring. Moreover, it was doubtful if, during the hot summer months, the rapid evaporating would leave any water for cattle in the tiny course below the bushes.

Oliver parted the foliage and crawled in to the clay basin. Cold water remained in the bottom of it, but the inflow had ceased entirely.

He bent down and submerged his hand, feeling along the sides of the basin. Almost at once his fingers closed over the end of a piece of three-quarter-inch iron pipe.

Then in the pool before his face there came a sudden *chug*, and a little geyser of water spurted up into his eyes. Oliver drew back instinctively. His face blanched, and his muscles tightened.

Then from somewhere up in the timbered hills came the crash of a heavy-calibre rifle.

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## CHAPTER XIII

### SHINPLASTER AND CREEDS

White Ann and Poche bore their riders slowly along the backbone of the ridge that upreared itself between Clinker Creek Cañon and the American. Occasionally they came upon groups of red and roan and spotted longhorn steers, each branded with the insignia of the Poison Oakers. Once a deer crashed away through thick chaparral. Young jackrabbits went leaping over the grassy knolls at their approach. Down the timbered hillsides grey squirrels scolded in lofty pines and spruces. Next day would mark the beginning of the full-moon period for the month of June.

Jessamy Selden was in a thoughtful mood this morning. Her hat lay over her saddle horn. Her black hair now was parted from forehead to the nape of her neck, and twisted into two huge rosettes, one over each ear, after the constant fashion of the Indian girls. So far Oliver Drew had not discovered that he disliked any of the many ways in which she did her hair.

"What are your views on religion?" was her sudden and unexpected question.

"So we're going to be heavy this morning, eh?"

"Oh, no—not particularly. There's usually a smattering of method in my madness. You haven't answered."

"Seems to me you've given me a pretty big contract all in one question. If you could narrow down a bit—be more specific—"

"Well, then, do you believe in that?" She raised her arm sharply and pointed down the precipitous slopes to the green American rushing pell-mell down its rugged cañon.

They had just come in sight of the gold dredger, whose great shovels were tearing down the banks, leaving a long serpentine line of débris behind the craft in the middle of the river.

"That dredge?" he asked. "What's it to do with religion?"

"To me it personifies the greed of all mankind," she replied. "It makes me wild to think that a great, lumbering, manmade toy should come up that river and destroy its natural beauty for the sake of the tiny particles of gold in the earth and rocks. Ugh! I detest the sight of the thing. The gold they get will buy diamond necklaces for fat, foolish old women, and not a stone among them can compare with the dewdrop flashing there in that filaree blossom! It will buy silk gowns, and any spider can weave a fabric with which they can't begin to compete. It will build tall skyscrapers, and which of them will be as imposing as one of these majestic oaks which that machine may uproot? Bah, I hate the sight of the thing!"

"Gold also buys food and simple clothing," he reminded her.

"I suppose so," she sighed. "We've gotten to a point where gold is necessary. But, oh, how unnecessary it is, after all, if we were only as God intended us to be! I detest anything utilitarian. I hate orchards because they supplant the trees and chaparral that Nature has planted. I hate the irrigating systems, because the dams and reservoirs that they demand ruin rugged cañons and valleys. I hate railroads, because their hideous old trains go screeching through God's peaceful solitudes. I hate automobiles, because they bring irreverent unbelievers into God's chapels."

"But they also take cramped-up city folks out into the country," he said. "And all of them are not irreverent."

"Oh, yes—I know. I'm selfish there. And I'm not at all practical. But I do hate 'em!"

"And what *do* you like in life?" he asked amusedly.

"Well, I have no particular objection to horned toads, for one thing," she laughed. "But I'm only halfway approaching my subject. Do you like missionaries?"

"I think I've never eaten any," he told her gravely.

But she would not laugh. "I don't like 'em," she claimed. "I don't believe in the practice of sending apostles into other countries to force—if necessary

—the believers in other religions to trample under foot their ancient teachings, and espouse ours. All peoples, it seems to me, believe in a creator. That's enough. Let 'em alone in their various creeds and doctrines and methods of expressing their faith and devotion. Are you with me there?"

"I think so. Only extreme bigotry and egotism can be responsible for the zeal that sends a believer in one faith to the believers in another to try and bend them to his way of thinking."

"I respect all religions—all beliefs," she said. "But those who go preaching into other lands can have no respect at all for the other fellow's faith. And that's not Christlike in the first place."

He knew that she had something on her mind that she would in good time disclose, but he wondered not a little at her trend of thought this morning.

"The Showut Poche-dakas are deeply religious," she declared suddenly. "Long years ago they inhabited the coast country, but were gradually pushed back up here. Down there, though, they came under the influence of the old Spanish padres; and today their religion is a mixture of Catholicism and ancient tribal teachings. They are sincere and devout. I have as much reverence for a bareheaded Indian girl on her knees to the Sun God as I have for a hooded nun counting her beads. They believe in a supreme being; that's enough for me. You'll be interested at the fiesta tomorrow night. I rode up there the other day. Everything is in readiness. The *ramadas* are all built, and the dance floor is up, and Indians are drifting in from other reservations a hundred miles away."

"Will you ride up with me tomorrow afternoon?" he asked.

"Yes, I think so—that is, since I heard what Old Man Selden had to say about you the day after he called. I'll tell you about that later. Yes, all the whites attend the *fiestas*. The California Indian is crude and not very picturesque, compared with other Indians, but the *fiestas* are fascinating. Especially the dances. They defy interpretation; but they're interesting, even if they don't show a great deal of imagination. By the way, I bought you a present at Halfmoon Flat the other day."

She unbuttoned the flap on a pocket of her *chaparejos*, and handed him a small parcel wrapped in sky-blue paper.

"Am I to open it now or wait till Christmas?" he asked.

"Now," she said.

The paper contained a half-dozen small bottles of liquid courtplaster.

"Oh, I'm perfectly sane!" she laughed in her ringing tones as he turned a blank face to her.

"Tomorrow," she went on, "you are to smear yourself with that liquid courtplaster, from the soles of your feet to your knees. When one coat dries, apply another; and continue doing so until the supply is exhausted."

She threw back her head and her whole-souled laughter awoke the echoes.

"It's merely a crazy idea of mine," she explained. "I had a bottle of the stuff and was reading the printed directions that came with it. It seems to be good for anything, from gluing the straps of a décolleté ballgown to a woman's shoulders to the protection of stenographer's fingers and harvesters' hands at husking time. It's almost invisible when it has dried on one's skin; and I thought it might be of benefit to you in the fire dance."

"Say," he said, "you're in up to your neck, while I've barely got my feet wet. Come across!"

"Well, I'm not positive," she told him, "but I'm strongly of the opinion that you're going to dance the fire dance at the Fiesta de Santa Maria de Refugio tomorrow night."

"I? I dance the fire dance? Oh, no, Miss—you have the wrong number. I don't dance the fire dance at all."

"I think you will tomorrow night, and I thought that liquid courtplaster might help protect your feet and legs. I put some on my second finger and let it dry, then put my finger on the cookstove."

"Yes?"

"Well, I took it off again. But, honestly, the finger that had none on at all felt a little hotter, I imagined. I'm sure it did, and I only had two coats on. I know you'll be glad you tried it, and the Indians will never know it's there."

"I'm getting just a bit interested," he remarked.

"Well," she said, "after what passed between you and Chupurosa Hatchinguish that day, I'm almost positive that tomorrow night you are to be extended the honour of becoming a member of the tribe. And I know the fire dance is a ceremony connected with admitting an outsider to membership. White men who have married Indian women are about the only ones that are ever made tribal brothers by the Showut Poche-dakas; so in your case it is a distinct honour.

"I have seen this fire dance. While a white person cannot accurately interpret its significance, it seems that the fire is emblematical of all the forces which naturally would be pitted against you in your endeavour to ally yourself with the Showut Poche-dakas.

"For instance, there's your white skin and your love for your own people, the difference in the life you have led as compared with theirs, what you have been taught—and, oh, everything that might be against the alliance. All this, I say, is represented by the fire. And in the fire dance, my dear friend, you must stamp out these objections with your bare feet if you would become brother to the Showut Poche-dakas."

"With my bare feet? Stamp out these objections?"

"Yes—as represented by the fire."

"You mean I must stamp out a *fire* with my bare feet? *Actually?*"

"Actually—literally—honest-to-goodness!"

"Good night!" cried Oliver. "I'll cleave to my kith and kin."

"And never learn the question that puzzled your idealistic father for thirty years? Nor whether the correct answer is Yes or No?"

"But, heavens, I don't put out a fire that way!"

"It's not so dreadful as it sounds," she consoled. "You join the tribe, and you all go marching and stamping about a big bonfire for hours and hours and hours, till the fire is conveniently low. Then the one who is to be admitted to brotherhood and a chosen member of the tribe—the champion fire-dancer, in short—jump on what is left of the fire and stamp it out. Of course there are objections to you from the view-point of the Showut Poche-dakas, and they must be overcome by a representative of them. If the fire proves too much for your bare feet the objections are too strong to be overcome, and you never will be an honorary Showut Poche-daka. But if the two of you conquer the fire with your bare feet the ceremony is over, and you're It. And when the other Indians see that you two Indians"—her eyes twinkled—"are getting the better of the fire, they'll jump in and help you."

"A very entertaining ceremony—for the grandstand," was Oliver's dry opinion.

"Of course the Indian's feet are tough as leather, and they have it on you there. Hence this liquid courtplaster. It's worth a trial. Honestly, I held my finger on the stove—oh, ever so long! A full second, I'd say."

Back went her glorious head, and her teeth flashed in the sunlight as, drunk with the wine of youth and health, she sent her rollicking laughter out over the hills and cañons.

"I'll be there watching and rooting for you," she assured him at last. "I can do so openly now—since you've won the heart of Adam Selden. What do you think? He told me to invite you over sometime! But all this doesn't fit in quite logically with the ivory-handled Colt I see on your hip today for the first time. Explain both, please."

"Well," he said, "Selden seemed ready to cut my throat till he examined Poche's bridle and saw the B on the back of a *concha*."

"Ah!" she breathed, drawing in her lips.

"And then he grew nice as pie—and that's all there is to that."

"And the six?"

"Well, I buckled it on this morning, thinking I might practice up a bit, as you advised."

"So far so good. Now amend it and tell the truth."

"I went down to Sulphur Spring after the Poison Oakers left me, and as I was examining the water a bullet plunked into it from the hills and I got my eyebrows wet. As I don't like to have anybody but myself wet my eyebrows, I'm totin' a six. And I rather like the weight of it against my leg again. It reminds me!"

"Who shot at you?"

He shrugged.

"At you, do you think?—or into the water to frighten you?"

"Whoever fired could not see me, but knew I was in the bushes about the spring. Took a rather long chance, if he merely wished to give me a touch of highlife, don't you think?"

"I wonder if the bullet is still in the basin."

"I never thought of that. I ducked for cover at once, of course, and, as nobody showed up, rode back home."

She lifted White Ann to her hind legs and spun her about in her tracks. "We'll ride to Sulphur Spring and look for that bullet," she announced.

"And be ambushed," he added, as Poche followed White Ann's lead.

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## CHAPTER XIV

### HIGH POWER

Jessamy and Oliver had wheeled their horses with such unexpected suddenness that the man who was trailing them was caught off his guard. He stood plainly revealed for a moment in the open; then he found his wits and plunged indiscriminately into the shielding chaparral.

"Oh-ho!" cried Jessamy in a low tone. "The plot thickens! Did you see him?"

"I'm going after him," declared her companion.

"Stop!" she commanded, as he lifted Poche for a leap toward the skulker's vanishing point.

He reined in quickly. "Why?"

"What good will come of it? Why try to nose him out? We may be ahead in the end if we play the game as they do. We have more chance of finding out what they're up to by leaving them alone, I'd say."

"Play the game, eh?" he repeated. "So there's a game being played. I didn't just know. Thought all that's afoot was the big idea of chasing me over the hills and far away. And from Selden's latest attitude, it looks as if that had been abandoned. Game, eh?"

"That's what I'd call it. Quite evidently the man was spying on us."

"Did you recognize him?"

"I can't make sure."

"But you think you know him," he said with conviction.

"Yes. I imagined it was Digger Foss. But he got to cover pretty quickly."

"His horse can't be far away. Maybe we can locate him somewhere along the back trail. I'd know that rawboned roan."

"So should I. Let's send 'em along a little faster."

They had by this time reached the opening in the chaparral into which their shadow had dodged. By common consent they passed it without looking to right or left.

"He may imagine we didn't see him," whispered Jessamy. "I hope he does."

There was an open stretch ahead of them, and across it they galloped, the girl piercing the thickets on the right in search of a saddle horse, Oliver sweeping the slopes that descended to the river. But neither saw a horse, and in the trail were no hoofprints not made by their own mounts.

"He has been afoot from the start," decided Jessamy. "I wish I knew whether or not it was Digger Foss."

They wound their way down to Sulphur Spring presently, and came to a halt in the ravine below it.

"Now," said Oliver, "who knows but that my sniper is not hidden up there in the hills?"

"I'll look for that bullet," she purposed, and swung out of her saddle.

"Oh, no you won't!" His foot touched the ground with hers.

"Yes—listen! No one would shoot at me. But they might take another crack at you, even with me along to witness it. If they were hidden and could get away unseen, you know. But they'd not shoot at me."

"How do you know?"

"Well, I'm one of them—after a fashion. They all like me—and at least one of them wants to gather me to his manly breast and fly with me."

"But things are different since I came. You've taken sides with me. If any one looks for that slug, I'm the one that'll do it."

He started toward the spring.

"Stop!" she ordered, and grasped his shirt-sleeves. "Listen here: I'd bet a dollar against a saddle string that that was Digger Foss we saw up on the ridge."

"Well?"

"He's afoot. He can't have had time to get down here and guard Sulphur Spring."

"All right. Well?"

"And I know positively that Adam Selden and the boys are up north today after a bunch of drifters. So none of them can be here. That eliminates six of the Poison Oakers. There would be left only Obed Pence, Ed Buchanan, Chuck Allegan, and Jay Muenster—all privates, next to outsiders. None of them would shoot at me, and—" She came to a full stop and eyed him speculatively. "And I'm going to look for that bullet," she finished limpingly.

Oliver looked her over thoughtfully. "I can't say that I get what you're driving at at all," he observed. "But it seems to me that you're trying to convey that, with the Seldens and Digger Foss eliminated, there is no danger."

She closed her eyes and gave him several vigorous, exaggerated nods.

"But aren't all of the Poison Oakers concerned in my speedy removal from this country?"

"Well—yes"—hesitatingly. "That's right. But the four will not molest me. I know. Please let's not argue about what I *know* is right!"

His lips twitched amusedly. "But one of the four *might* take a pot-shot at me. Is that it?"

Again the series of nods, eyes closed. "You see," she said, "only the Seldens and Digger Foss accuse me of being on your side. So if any one of the other four were to see me go to the spring he'd think I was merely after water, or something. But if you were to go, why—why, it might be different."

Saying which she unexpectedly darted away from him up the ravine, left the shelter of the trees, and walked boldly to the spring.

She parted the bushes and disappeared from sight.

Oliver stole quickly to the edge of the cover and hid behind a tree, his Colt unholstered and hanging in his hand. His eyes scoured the timbered hills on both sides of the spring, but not a movement did he see.

He puzzled over Jessamy's speech as he watched for evidences of a hostile demonstration.

"It smacks of a counter-plot," he mused. "All of the Poison Oakers want me out of here, but only the Seldens and the halfbreed are aware that Jessamy is friendly with me. But these four *must* know it—everybody in the country does by now. It would look as if Old Man Selden and his chosen five are the only ones who suspect her of having an interest in me beyond pure friendship, then. That's it! She said there was another reason other than the grazing matter why Old Man Selden wants me away. And that can't be moonshining, after all; for if Pense and the others are likely to shoot me at the spring, they're in on that. But now apparently Selden wants to appear friendly. I can't get it! Jessamy's not playing just fair with me. She's keeping something back. She's too honest and straightforward to be a good dissembler; she's bungling all the way."

She was returning swiftly down the ravine before he had reached the end of his conclusions. She held up something between dripping fingers as she entered the concealment of the trees.

"It's perfect still," she announced. "I thought it wouldn't be flattened or bent, since it struck the water."

Oliver took the small, soft-pointed, steel-banded projectile from her hands and studied it.

"M'm-m!" he muttered. "What's this? Looks no larger than a twenty-two."

She nodded. "So I'd say. A twenty-two high-power—wicked little pill."

"And which of the Poison Oakers packs a twenty-two high-power rifle? Do you know?"

"It happens that I do. I've taken the pains to acquaint myself with the various guns of the Poison Oakers. Most of them use twenty-five-thirty-fives. Old Man Selden, Bolar, and Jay Muenster use thirty-thirties. There's one twenty-two high-power Savage in the gang, and it's a new one. They say it's a devilish weapon."

"Who owns it?"

"Digger Foss."

"Then it was Foss who shot?"

"Yes—and it's he who was following us today. You see, Digger lives closer to this part of the country than any of the rest. He'd be the only one likely to come in afoot."

"Do you think he tried to lay me out?"

She looked off through the trees, and her face was troubled. "I'm afraid he did," she replied in a strained, hushed key. "Had you been in sight, we might determine that he had shot at the water before your face to put the fear of the Poison Oakers into your heart. But he couldn't see you, in there hidden by the dense growth. It was a fifty-fifty chance whether he got you or not. If he'd merely wished to bully you, he'd never taken the chance of killing you by firing into the growth."

"I guess that's right," he said. "And now what's to be done? I'll never be able to forget the picture of Henry Dodd clutching at White Ann's legs for support in his death struggle. The situation is graver than I thought. I expected to be bullied and tormented; but I didn't expect a deliberate attempt on my life."

With an impetuous movement she threw her bare forearm horizontally against a tree trunk, and hid her eyes against it.

"Oh, I wish you hadn't come!" she half sobbed. "But you had to—you had to! And now you can't leave because that would be running away. And you're as good as dead if this side-winder gets the right chance at you. What *can* we do!"

Oliver was silent in the face of her distress. What could he do indeed! All the chances were against him, with his enemies ready and willing to take any unfair advantage, while his manliness would not let him stoop to the use of such tactics. They probably would avoid an out-and-out quarrel, where the chances would be even for a quick draw and quick trigger work. They would ambush him, as the halfbreed had attempted to do. He believed now that only the density of the growth about Sulphur Spring had stood between him and death, for Digger Foss was accounted an expert shot.

He gently pulled Jessamy Selden from the tree.

"There, there!" he soothed. "Let's not borrow trouble. They haven't got me yet. Let's ride on. And I think you'd better give me a little more of your confidence. I feel that you're keeping me in the dark about some phases of the deal."

She mounted in silence, and they turned up Clinker Creek toward Oliver's cabin.

"I'd never make a successful vamp, even if I were beautiful," she smiled at last. "I can't hide things. I give myself away. I'm always bungling. But I can play poker, just the same!" she added triumphantly.

"Don't try to hide things, then," he pleaded. "Tell me all that's troubling you."

She shook her head. "That's the greatest difficulty," she complained. "I shouldn't have let you know that I have a secret, but I bungled and let it out. And I must keep it. But just the same, I'm with you heart and soul. I'm on your side from start to finish, and I want you to believe it."

"I do," he said simply.

As they reached the cabin he asked: "Did you feel the end of the pipe under the water in the spring?"

She nodded. Then with the promise to meet him next morning for their ride to the fiesta, she moved her mare slowly up the cañon and disappeared in the trees.



## CHAPTER XV

### THE FIRE DANCE

The round moon looked down upon a scene so weird and compelling that Oliver Drew vaguely wondered if it all were real, or one of those strange dreams that leave in the mind of the dreamer the impression that ages ago he has looked upon the things which his sleeping fancy pictured.

The moon rode low in the heavens. The night was waning. Tall pines and spruce stood black and bar-like against the silver radiance. Away in the distance coyotes lifted their yodel, half jocular, half mournful, as a maudlin drunkard sings dolefully a merry tune.

In a cup of the hills, surrounded by acres and acres of almost impenetrable chaparral and timber, a hundred or more human beings were clustered about a blazing fire. Horses stamped in the corrals. Now and then an Indian dog cast back a vicious challenge at the wild dogs on the hill. White men and women and Indian men and women stood about the fire in a great circle, silent, intent on what was taking place at the fire's edge.

Within this outer circle of spectators revolved another smaller circle of brown-skinned men and women. But one of this number was white, and in the flickering light of the fire his skin glowed in odd contrast to the skins of those who danced with him.

For Oliver Drew was stripped but for a breechcloth about his loins, and directly opposite him in the circle, always across the fire from him as the human snake revolved about the flames, was a stalwart young Indian, likewise nearly nude. He it was who at the proper moment would dash upon the fire with this white man, when, with hands clasped over it, they two would strive to beat it to ashes with naked feet.

Side by side, shoulder to shoulder, pressed into the circle like canned fish, the fire dancers circled the leaping flames. Sweat streamed from their

bodies, for the fire was a huge one and roared and crackled and leaped at them incessantly.

For two solid hours the dance had been in progress. Now and then an old squaw, faint from the heat of the fire and the nerve strain which only the fanatic knows, dropped wearily out and staggered away. Then the rank would close and fill the vacancy; and this automatically made the circle smaller and brought the dancers closer to the flames, for they must touch each other always as they circled slowly.

Round about them hobbled Chupurosa, adorned with eagle feathers dyed red and yellow and black. In his uplifted hand he held a small turtle shell, with a wooden handle bound to it by a rawhide thong. In the shell, whose ends were closed with skin, were cherry stones. The incessant rattling of them accompanied the dancers' elephantine tread. It was the toy of childhood, and those who danced to its croaking music were children of the hills and cañons, simple-minded and serene.

Slowly as moves a sluggish reptile in early spring the dancers circled the fire, times without number. Guttural grunts accompanied the constant thud of tough bare feet on the beaten earth. Now and then they broke into chanting—a weird, uncanny wailing that sent shivers along the spine and made one think of heathen sacrifices and outlandish, cruel heathen rites. Straight downward, almost, the dancers planted their feet. When their feet came down three inches had not been gained over the last stamping step. It required many long minutes for the entire circle to complete the trip around the fire; and this continued on and on till the brain of Oliver Drew swam and the fire in reality took on the aspect of a tormenting, threatening ogre which this rite must crush.

Occasionally some fanatic would spring from the line and rush upon the fire, striking at it with his feet, slapping at it with his hands, growling at it and threatening it in his guttural tongue. Then the dance would grow fiercer, and the chanting would break out anew, while always the cherry stones rattled dismally and urged the zealots on.

When would it end? There was fresh, clean pitch in the great logs that blazed; and it seemed to Oliver that the exorcism must continue to the end of time.

At first he had felt like an utter fool when he was led from the tent, almost nude, to face the curious eyes of thirty or more white people. His simple instructions had been given him by Chupurosa in the hut where he had been kept virtually a prisoner since his arrival. Then he had been led forth and pressed into his place in the circle, across from the other nearly naked man who swam so dizzily before his eyes. Then the slow ordeal had begun, and round and round they went till he thought he must surely lose his reason.

On his feet and legs was the liquid courtplaster, and Chupurosa had not observed it. Coat after coat he had applied, and had a certain feeling of being fortified. Yet he doubted if, when the moment came for him to leap upon the fire and clasp hands with the man opposite, any of the mucilaginous substance would be left on the soles of his already burning feet.

He had seen Jessamy's face beyond the fire. She had smiled at him encouragingly. But now her face had blended with the other faces that danced confusedly before his eyes, and he could not separate it as the circle went slowly round and round.

An old man dropped, face down, on the earth, completely overcome. From beyond the circle of dancers a pair of arms reached through and dragged him out by the heels. The dance went on, and the dancers now were closer to the fire by the breadth of one human body.

Weirdly rose the chant to the moonlit night. Coyotes answered with doleful ribaldry. A woman pitched forward on her face—a young woman. She lay quite still, breathing heavily. Oliver stepped over her body as they dragged her out to resuscitate her, and it seemed as he did so that he scarce could lift his feet so high.

Now one by one they dropped, exhausted, reeking with sweat caused by the intensity of the heat from the burning pitch logs. Two fell at once—one inward, the other back. Up rose the chant as they were dragged away; fiercer grew the stamping; frenziedly the cherry stones clicked in the turtle shell.

Lower and lower rode the radiant moon. Blacker and blacker grew the outlined woods. The coyotes ceased their insane laughter and scurried off to

where jackrabbits played on moonlit pasturelands. And still the passionate exorcism went on and on, with men and women dropping every minute and the circle narrowing about the fire and closing in.

The blaze was lower now. The pitch in the logs no longer sputtered and dripped blazing to the ground. But the heat was still intense, and the white man's tender flesh was seared as the giving out of some dancer forced the circle nearer and nearer to the flames.

But into his heart had come a fierce purpose born of the fanaticism responsible for this ordeal. He was a man of destiny, he felt, though obliged to "carry on" with blinded eyes. Something of the fierce, dogged nature of these wild people of the woods entered his soul. He was dying by inches, it seemed, but the fire, glowing and spitting hatred at him, became a real enemy to be conquered by grit and stern endurance: and, held up by the bodies that pressed against his on either side, he stamped on crazily, his teeth set, the ridiculous side of his plight forgotten.

And now the circle was pitifully small; and those who formed it staggered and reeled, and scarce found breath to chant or revile their dying enemy. But still the cherry stones rattled on while that old oak of a Chupurosa moved round and about, tireless as an engine.

Oliver dragged his feet now; he thought he could not lift them. His brain was a dull, dead thing except for that passionate hatred of the fire that the weird chanting and the strangeness of it all had brought about. And now the fire grew lower, lower. Back of the ragged hills the moon slipped down and left the wilderness in blackness. Only the fire gleamed.

Then suddenly the rattling of the cherry stones was quieted. Now the only sounds were the weary thud-thud of tough bare heels and the stentorian breathing of the zealous worshippers, an occasional heartrending grunt.

On and on—round and round. The very air grew tense. Dawn was at hand. Its cold breath crept down from the snow-capped peaks. A glimmer of grey showed in the eastern sky.

Only fifteen of the Showut Poche-dakas plodded now about the failing fire, by this time smouldering at their very feet. Fifteen Showut Poche-dakas—and Oliver Drew! All were men, young men in life's full vigour. Yet they

swayed and reeled and staggered drunkenly as the dizzying ordeal went on through the grey silence of dawn.

Now dawn came fast and spread its inchoate light over the silent assemblage in the hills. Then like a burst of sound disturbing a weary sleeper, the cherry stones resumed their rattling.

At once, back of the circle of tottering dancers, a weird chant arose till it drummed in Oliver's ears and seemed to be lulling him to sleep.

Out of the void taut fingers came and clasped his own. His hands were jerked high over his head. Something stung his feet and legs, and he thought of the rattler on the hill. The chant rose to a riotous shouting. The air was filled with imprecations, wailings, shrieks, and spiteful challenges. Now Oliver realized that his fingers were locked with those of the nude Indian who had danced opposite him; that they two were over the waning fire, fighting it with their feet.

How long it lasted he never knew. Life came back to his mistreated muscles, and with his feet he fought this thing that stung him and seared him and filled his heart with burning wrath. Then came a long, concerted shout. In rushed the Showut Poche-dakas to the fighters' aid. Bare feet by twenty-fives and fifties slapped at the fire, and a herd of dark forms trampled over it and beat it to extinction.

A long shout of triumph that sped away on swift wings toward the coming dawn and the distant mountain! And then a single voice lifted high in words which in English are these:

"The evil fire god has been defeated. No barrier stands between the white man and the Showut Poche-dakas. From this hour to the end of time he who has danced the fire dance tonight and conquered the evil spirit shall be brother to the Showut Poche-dakas!"

Then just before Oliver fainted in some one's arms he heard in English:

"Seven hours and twenty minutes—the longest fire dance in the history of the tribe!"

And the new brother of the Showut Poche-dakas heard no more.



## CHAPTER XVI

### A GUEST AT THE RANCHO

Then there was feasting and racing and dancing and much ado. Dice clicked; cards sputtered; the pawn passed in the ancient *peon* game. There was a barbecued steer, athletic contests, and competitions in markmanship. The Fiesta de Santa Maria de Refugio was to continue throughout the entire period of the full moon, and there must be diversion for every day and every night.

Oliver Drew awoke the next day after the fire dance in the *ramada* which had been assigned to him. He felt as if he had been passed through a stamp mill, so sore were his muscles and so burned and blistered were feet and legs. He had been carried to his bed of green willow boughs directly after the dance, where he had slept until nearly nightfall. Then he had been awakened and given food. After eating he fell asleep once more, and slept all night, his head in the silver-mounted saddle that Bolivio had made.

He dragged himself from the shakedown and went and sat at an opening in the booth. The *ramada* of the California Indian is merely an arbourlike structure built of newly cut limbs of trees, their still unwithered leaves serving to screen the occupants from outside eyes.

The birds were singing. Up the steep mountainside back of the reservation the goats and burros of the Showut Poche-dakas browsed contentedly on buckthorn and manzanita bushes. There was the smell of flowers in the drowsy air, mingling strangely with that indescribable odour that permeates an Indian village.

It was noticeably quiet outside. Doubtless the Indians were enjoying an early-morning siesta after some grilling orgy of the night before. Oliver groaned with the movements necessary to searching his pockets for cigarette materials. His groan was mimicked by a familiar voice in the doorway.

Jessamy Selden entered.

"I've been listening for a sound from you," she chirruped. "My, how you slept! All in?"

"Pretty nearly," he said.

She came and sat beside him on a box.

"Are you badly burned?"

"Oh, no. I guess your courtplaster helped some. But I'm terribly sore. And, worst of all, I feel like an utter ass!"

"Why, how so?"

He snorted indignantly. "I went nutty," he laughed shortly. "I have lost the supreme contempt which I have always had for people who go batty in any sort of fanatical demonstration, like that last night. I've seen supposedly intelligent white folks go absolutely wild at religious camp meetings in the South, and I always marvelled at their loss of control. Now I guess I understand. Hour after hour of what I went through the other night, with the chanting and wailing and the constant rattle of those confounded cherry stones, and the terrible heat, and men and women giving out all about me, and the perpetual thud-thud of bare feet—ugh! I wouldn't go through it again for ten thousand dollars."

"I thought it best not to warn you of the severity of it beforehand," she announced complacently. "Very few white men have ever danced the fire dance, and only one or two have held out to the end. Of course failure to do so signifies that the powers working against the affiliation are too strong to be overcome. These men who failed, then, did not become brothers of the Showut Poche-dakas."

"Lucky devils!"

"Here, here!" she cried. "Don't talk that way. You're glad, aren't you?"

"I'm tickled half to death."

"Is it possible that you do not take this seriously, Mr. Drew?"

"Look here," he said: "why didn't you tell me more of what I might expect at this fool performance?"

"I was afraid you might look at the matter much as you're looking at it now," she answered. "I knew you'd go through with it, though, if you once got started. I knew it to be a terrible ordeal, but I was confident that you would win."

"I thank you, I'm sure. Win what, though? The reputation of being a half-baked simpleton?"

"Do you imagine that the white people who saw you are ridiculing you?"

"Aren't they?"

"Absolutely nothing of the sort! You're the hero of the hour. People about here always attend the fiestas, and you'll be surprised to note the seriousness and lack of levity that they show in regard to the rites and ceremonies of the Showut Poche-dakas. It's an inheritance from the old days, I suppose, when the few white men who were here found it decidedly to their advantage to be friendly with the Indians. They glory in your grit, and everybody is talking about you. You should have heard Old Man Selden. 'There's a regular man,' he loudly informed every one after the dance. And folks about here listen to what Old Man Selden says, for one reason or another."

"But it was such an asinine proceeding!"

"Was it? I thought you respected the other fellow's beliefs and religious practices."

"Was that a religious dance?"

"Decidedly. All of their dances are religious at bottom. You were trying to overcome the evil spirit, represented by the fire, that stood between you and your union with the Showut Poche-dakas. You are one of the few who have weathered this ordeal and won. And now you're a recognized member of the tribe."

"And is that an enviable distinction?"

"What do *you* think about that?"

Oliver was silent a time. "Tell the truth," he said at last, "I've been thinking more of my sore muscles and scorched legs, and of the ridiculous figure I supposed I had cut the other night. I suppose, though, that when a hundred or more fellow creatures unanimously admit a rank outsider to the plane of brotherhood, one would be shallow minded indeed to look upon it too lightly."

"Exactly. Just what I wanted to hear you say. And the more simple natured and trusting they are, the more it devolves upon you to treat their brotherhood with respect and reverence. You are now brother to the Showut Poche-dakas; and you'll be a wiser man before you're older by many days. In this little village you have always a refuge, no matter what the world outside may do to you. Nothing that you could do against your own race can make you an utter outcast, for here are your brothers, always eager to shelter you. If you owned a cow and lost it, a word from you would send fifty mounted men scouring the hills till the cow had been found and restored to you. Will the people of your own race do that? If the forest was burning throughout the country, rest assured your property would be made safe before your brothers turned their efforts to protecting the homes of other white men. Is it trivial, my friend?"

"No," said Oliver shortly.

"You have been greatly honoured," she concluded. "You are the first white man on record who has been adopted by the Showut Poche-dakas without first marrying an Indian girl. And even then they must win out in the fire dance. If they fail, their brides must go away with them, ostracized from their people for ever."

"How many white men have been honoured with membership?" he asked.

"Very few. Old Dad Sloan was over and saw the dance. He always attends fiestas if some one will give him a ride. He said after the dance that he knew of only three white men before you who had won brotherhood, though he had seen a dozen or more try for it."

"Did he mention any names?"

"Yes," she said. "He mentioned Old Man Selden, for one."

"Does he belong to the tribe?" cried Oliver.

"No, he fell down in the fire dance. He had married an Indian woman, and after the dance he took his bride away with him. She died six months afterward—pining for her people, it was supposed."

"And who else did he speak about?"

"You remember the name of Dan Smeed, of course."

"Outlaw, highwayman, squawman," quoted Oliver, trying to imitate the old '49er's quavery tones.

"Yes," she said. "He conquered the fire and was admitted to full brotherhood."

"And got gems for his bridle *conchas*," Oliver added.

Jessamy nodded. "And in some mysterious manner paved the way for you to become adopted thirty years later."

He turned and looked her directly in the eyes. "Was Dan Smeed my father?" he asked abruptly.

Her eyes did not evade his, but a slow flush mounted to her cheeks.

"I think we may safely assume that that is the case," she told him softly.

Oliver stared at the beaten ground under his feet. "Outlaw—highwayman—squawman!" he muttered.

Quickly she rose and laid a hand on his shoulder. "Don't! Don't!" she pleaded sympathetically. "Don't think of that! Wait!"

"Wait? Wait for what?"

"Wait till the Showut Poche-dakas have taken you into full confidence. Wait for my Hummingbird to speak."

Oliver said nothing.

She waited a little, then resumed her seat and said:

"And the next man that Old Dad Sloan mentioned as having tried the fire dance was—guess who?"

"The mysterious Bolivio."

She nodded vigorously, both eyes closed.

"He succeeded?"

"He did."

"And the third man to succeed before me?"

"I forget the name. It is of no consequence so far as our mystery is concerned."

"*Your* mystery, you mean," he laughed. "I'm beginning to believe you know all about it—all about me, about my father and his young-manhood days."

"Oh, no!" she quickly protested.

"But you know more than I do. And you see fit to make mystery of it to my confusion."

"Silly! I'm doing nothing of the sort. I've positively told you all I can."

"Be careful, now! Can, will, or may?"

"Don't pin me down. You know I'm a feeble dissembler."

"You've told me all you *may*, then," he said with conviction.

"Have it that way if you choose. How about some breakfast?—and then your triumphal entry into the festivities?"

"I hate to show myself—actually."

"Pooh! I'm disappointed in you. Come on—I've ordered breakfast for us in the restaurant booth. Red-hot chili dishes and *bellota*. It should be ready by now."

The Showut Poche-dakas, at least, paid very little attention to Oliver as he limped from the *ramada* at Jessamy's side. But he was congratulated by

white men on every hand, among them Mr. Damon Tamroy, the first friend he had made in the country.

"I wish you could 'a' heard what Old Dad Sloan had to say after the dance," was Tamroy's greeting. "The dance got the old man started, and he opened up a little. Selden wasn't about at the time, and Dad said that once, years ago, Selden married a squaw and made a try at the fire dance. There was two dances that night, Old Dad said. Selden's partner, too, married an Indian girl, and both of 'em danced. Selden's partner won out, and was made a member o' the tribe; but Selden fell down."

"Did you get this partner's name?" asked Oliver.

"Le's see—what was the name Dad said?"

"Smeed?" asked Oliver.

"That's it. Dave Smeed. No—Dan Smeed. This Smeed lived with the tribe afterwards, it seems, but Selden and his girl beat it, accordin' to the rules, and—"

"Sh!" warned Oliver. "Here comes Old Man Selden now."

The old monarch of the hills strode straight up to them, rowels whirring, chaps whistling.

"Howdy, Mr. Drew—howdy!" he boomed. "Howdy, Tamroy." He extended a horny hand to each.

"Some dance, as they say—some dance," he went on admiringly, and there was almost a smile on his stern features. "The boys was bettin' on how it would come out. The odds was ag'in ye, Mr. Drew. But I told 'em ye'd hold out. I been through the mill myself. Might as well own up, since everybody knows it now—and that I danced to a fare-you-well, but fell down hard. When ye gonta' pull yer freight, Mr. Drew?"

"I thought of riding home today," said Oliver.

"I was just talkin' to Jess'my," Selden continued. "Her and me concluded this here'd be a good time to invite ye over to get acquainted. Can't ye ride

to Poison Oak Ranch with us just as well as ye can ride on home?" He tried to grin, but the effort seemed to cause pain.

Toward them Oliver saw Jessamy walking. He always had admired her long, confident stride, and he watched her throughout the brief space allowed him by courtesy to study his answer to her step-father. Then he caught her eye. She began nodding vigorously.

"I should have watered my garden before coming to the fiesta," he told the old man. "I'm afraid it will suffer if I don't get back to it directly. But—"

"Oh, she'll stand it another day. Folks irrigate too much, anyway. Ride home with us today and stay all night."

"I thank you, I'm sure," said Oliver.

"Yes, do come, Mr. Drew," put in Jessamy as she reached the group.

"Just so!" added Selden.

And so it was arranged.

The four stood in conversation. Over the girl's shoulder Oliver now saw Digger Foss and two of the men who had ridden with Selden the day he called at the cabin. They were staring at their chief and Jessamy. A glowering look was on the face of at least one of them, and that one was the halfbreed, Digger Foss.

He stood with feet planted far apart, his fists on his hips—squat, his bullet head juked forward aggressively, his Mongolic black eyes glittering. A sneer curled his lips. He nodded now and then as one or the other of his companions spoke to him, but he did not reply and did not remove his steadfast glance from the group of which Oliver made one.

"They's a hoss race comin' off in a little," Selden was saying. "We'll stay for that, then throw on the saddles and cut the dust for the rancho."

Here Foss, with a shrug of his wide, strong shoulders, turned away and disappeared in the crowd, his companions following at his heels.

Presently Selden and Tamroy left Jessamy and Oliver together.

"What's the idea?" Oliver asked her.

"It's quite apparent that he wants to be friendly with you," she pointed out.

"It's just as well, of course," said he. "But I can't fathom it. And at least one of the Poison Oakers doesn't approve. I just saw Digger Foss glowering at us from behind Old Man Selden's back."

Jessamy elevated her dark eyebrows. "No, he wouldn't approve," she declared. "That's merely because of me, I guess. Well, we can't help that. It's your part to play up to Old Man Selden and find out what is the cause of his sudden change of heart toward you."

"It's my riding outfit," he averred. "That, and the fact that I've danced the fire dance. I'm gradually picking up a thread here and there. By the way, you neglected to tell me this morning, when we were on the subject, that Dan Smeed's partner was none other than Old Man Selden."

She glanced at him quickly. "I see that Mr. Damon Tamroy is in character today. He does love to talk, doesn't he?"

"You knew it, then?"

She hesitated. "Yes—Old Dad Sloan let it out last night," she admitted. "I think he would have told me as much the day you and I called on him if he hadn't thought it might hurt my feelings. I don't think it was his forgetfulness that made him trip over the subject that day."

"But if he mentioned it in your presence after the fire dance, he must have forgotten that you are vitally interested."

Her long black lashes hid her eyes for an instant. "That's true," she admitted.

Oliver smiled grimly to himself. A lover would have small excuse for distrusting this girl, he thought, for deception was not in her. A little later he left her and sought out Damon Tamroy again.

"Just a question," he began: "You know I'm seeking information of a peculiar character in this country; so don't think me impertinent. You said

that Old Man Selden wasn't about when Dad Sloan spoke of him as having been the partner of Dan Smeed."

Tamroy nodded. "He'd gone to bed in one o' the *ramadas*," he said.

"Did Jessamy Selden overhear Old Dad Sloan when he told that?"

"No, she wasn't there either," replied Tamroy. "I reckon she'd gone to bed too."

"Thank you," Oliver returned.

He knew now that Jessamy Selden had merely been repeating some one else's version of Dad Sloan's disclosures. He knew that she had been aware all along that Dan Smeed, his father, had been the partner of Adam Selden. Had she known it, though, the day she questioned the patriarch? It had seemed that she was trying her utmost to make him mention the name of Dan Smeed's partner. Perhaps she had felt safe in the belief that, out of consideration for her feelings, Dad Sloan would not couple her step-father's name with that of a "highwayman, outlaw, and squawman" who, he had said, was a "bad egg."

Oliver was beginning to believe that Jessamy Selden at that very moment knew the question that had puzzled Peter Drew for thirty years, and what the answer to it should be. He believed that Jessamy had known just who he was, and why he had come into the Clinker Creek Country, the day she rode down to make his acquaintance. It seemed that she had considered it a part of her life's work to seek him out. Later, she had worried a little for fear he might think her bold in riding to his cabin as she had done.

She had not been seeking his companionship because she liked him, then. There was some ulterior motive that was governing her actions. In him personally, perhaps, she had no interest whatever. There was some secret connected with Old Man Selden, and it dated back to the days when Selden and Oliver Drew's father were partners, and had both married Indian girls. Jessamy had stumbled on this, and when Oliver came she had known the reason that brought him, and had made haste to ally herself with him in order to carry out whatever she had in mind. It was this that had kept her in such close touch with him—not friendship for Oliver himself.

Oliver brooded. The thought hurt him. The damage had been done. He had learned all this too late. He loved her now, and wanted her more than he wanted anything else in life. She knew he loved her. She must know that he was not the sort to tell her what he had told her if he had not meant it, and to grasp her in his arms and kiss her, even under the strange condition in which the scene had occurred. Not a word had passed between them regarding that episode since he had blushingly apologized for his behaviour. She had taken it quite serenely, as she seemed to take most things in life, and had displayed no confusion when next they met.

"You look so funny," she remarked when he at last sought her out after the pony race. "Is anything the matter?"

"Nothing at all," he told her. "I'm going for our *caballos* now. Selden and the boys are saddling up. I suppose we'll all ride together."

A little later he shook the withered hand of Chupurosa Hatchinguish and bade him good-bye in Spanish. The chief of the Showut Poche-dakas called him brother, and patted his back in a fatherly manner as he followed him to the door of his hovel. But he made no mention of a future meeting, and said nothing more than "brother" to indicate that a new relation existed between them.

Oliver led Poche and White Ann to Jessamy, and they swung into the saddles and galloped to where Old Man Selden, Hurlock, and Bolar were awaiting them in the dusty road.

Hours later the little party of five rode over the baldpate hill, then in single-file formation descended by the steep trail to the bed of the American River. A half-hour afterward they entered the cup in the mountainside, and Oliver Drew looked for the first time upon the headquarters of the Poison Oakers.

The girl, Selden, and Oliver left their saddles at the door, and the boys rode on and led their horses to the corrals. Oliver was conducted into the immense main room of the old log house, where he was presented by the girl to her mother.

The afternoon was nearly gone, and the two women at once began preparing supper, while Old Man Selden and his guest sat and smoked near

a window flooded with the reflection of the sunset glow on fleecy clouds above the cañon.

Selden's talk was of cows and grazing conditions and allied topics. Oliver Drew, half listening and putting in a stray comment now and then, watched Jessamy in a rôle which was new to him.

She had put on a spotless red-checkered gingham dress that fitted perfectly, and revealed slim, rounded, womanly outlines which are the heritage of strength and perfect health. Her black hair was coiled loosely on top of her head, and a large red rose looked as if Nature had designed it to splash its vivid colour against that ebony background. With long, sure strides this girl of the mountains moved silently about from the great glossy range to the work table, washing crisp lettuce, deftly beheading snappy radishes, her slim fingers now white with dough and flour, or stirring with a large spoon in some steaming utensil over the fire. An extra fine dinner was in progress of preparation in honour of the Seldens' guest; yet the girl worked serenely and swiftly, with not a false move, not a flutter of excitement, never gathering so much as a spot on her crisp, stiff dress, always sure of herself, master of her diversified tasks. Was this the girl that an hour before he had seen so gracefully astride in a fifty-pound California saddle, her slim legs covered by scarred, fringed chaps, her black hair streaming to the bottom of her saddle skirts in two long, thick braids? There was a desperate tugging at the heart-strings of Oliver Drew. He knew now that if he failed to win this girl it were better for him had he not been born. And again and again she had sought him out for some obscure reason in no way connected with a desire for his companionship. He thought again of the episode on the hill after the rattlesnake bite, and he grew sick at heart at remembrance of the feel of those soft, firm lips.

When they arose from the bounteous meal Selden said to his guest:

"It's still light outdoors. Wanta look over the ranch a bit?"

They two strolled out to the stables and talked horses and saddles. They looked perfunctorily over the green young fruit in the orchard, and Selden showed Oliver the new pipe line which now carried spring water into all three of the living houses. They killed time till late twilight, and as one by

one the stars came out the old man led the way to a prostrate pine at the edge of a fern patch. On it they seated themselves.

"They was little matter I wanted to talk to you about," said Selden half apologetically. "Le's have a smoke and see if we can't come to an understandin'. Just so! Just so!"

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## CHAPTER XVII

### THE GIRL IN RED

Jessamy Selden finished washing and drying the supper dishes. Then she hurried to her room and slipped into a red-silk dress, by no means out of date, silk stockings, and high-heeled pumps with large shell buckles. A few deft pats and her rich hair suited her, and the red rose glowed against the black distractingly. She spun round and round before the mirror of her plain little dresser, one set of knuckles at her waist, like a Spanish dancer, her face trained over her shoulder at her reflection in the glass. There was a mischievous gleam in her jetty eyes as she reached the conclusion that she was all right. Just a hint of heightened colour showed in her cheeks when she started for the living room.

Old Man Selden had not yet returned with the guest of the house. The trace of a pucker of disappointment came between her eyes, then she was serene again as she lighted coal-oil lamps and sat down with a book. She was alone in the great rough-walled room, like a gorgeous flower in a weather-beaten box. Her mother was dressing—one dressed after dinner instead of *for* dinner in the House of Selden. Bolar and Moffat presumably had gone to sit and look at their saddles while daylight lasted, since coming night forbade them to mount and ride.

Minutes passed. Jessamy stared at the open book in her hands, but had not read a word. Why was Old Man Selden keeping their guest out there in the night? A girlish pout which might have surprised Oliver Drew, had he seen it, puckered her lips. The girl looked down at her red-silk dress and the natty buckles on her French-heel pumps, and the pout grew more pronounced.

She went out doors, but no sound came to her save the intimate night sounds of the wilderness.

"*Darn* the luck!" she cried in exasperation, her serenity for once completely unavailing.

Five minutes later she stepped from the gorgeous dress with a sigh of resignation. She kicked off the pumps and pulled on her morocco-top riding boots. She donned shirt and riding skirt, and slipped out by her own door into the young night.

Cautiously she approached the stables and corrals, but found nobody. Lights gleamed in the windows of Hurlock's and Winthrop's cabins, and from the latter came the doleful strains of Bolar's accordion. She doubted if Selden and Oliver were in either of these houses.

She walked up the hill toward the spring, and presently heard the bass boom of Old Man Selden's voice.

A little later, flat on the ground, she was wriggling her way through tall ferns toward two indistinct figures seated on a fallen pine. Like an Indian she crept on silently, till by and by she lay quite still, close enough to hear every word that passed between the men who sat in front of her. And her conscience seemed not to trouble her at all.

It had been practicable to come to a pause at some little distance from the two, for their voices carried a long way through the tranquil wilderness night. Behind her and up the hill the frogs were croaking at the spring. Their horse-fiddling ceased abruptly, as if they had been suddenly disturbed, and it was not immediately continued. Trained to read a meaning in Nature's signs, she wondered at this; then presently she heard a stealthy step between her and the spring.

Lifting her head and shoulders above the fronded plants, she saw a dark, crouched shape approaching warily. Some one had walked past the spring and disturbed the croaking choir. She ducked low and waited breathlessly, hoping that this second would-be eavesdropper, whoever he might be, would not come upon her engaged in a like pursuit. At the same time she was trying to hear what Selden was saying to Oliver Drew.

It seemed from Old Adam's slightly hesitating manner that he was as yet not well launched on the subject that had caused him to pilot Oliver to this lonely spot. He said:

"I reckon they told ye ye wouldn't be welcome down on the Old Ivison Place. Didn't some of 'em say, now, that a gang called the Poison Oakers

might try to drive ye out?—if I'm not too bold in askin'."

"Yes," said the voice of Oliver Drew.

"Uh-huh! I thought as much. Well, Mr. Drew, ye got to make allowances for ol'-timers in the hills. We get set in our ways, as the fella says; and I reckon we *don't* like outsiders to come in any too well.

"But anybody with any savvy oughta know its different in a case like yours. Why, what little feed we'd get offen your little piece, if you wasn't there, wouldn't amount to the price of a saddle string. It was plumb loco for any one to tell ye we'd raise a rumpus 'bout ye bein' down there."

"I thought about the same," observed Oliver Drew quietly.

There came a distinct pause in the dialogue. Once more Jessamy straightened her arms and pushed head and shoulders above the ferns. The person who had disturbed the frogs was nowhere to be seen. He too, perhaps, had taken up a lizardlike progress through the ferns, and was now listening to all that was being said by Oliver and Selden.

She flattened herself again, and held one hand behind her ear to catch every word.

"Yes, sir, plumb loco," Old Man Selden reiterated. "And they ain't no reason on earth why you and us can't be the best o' friends. That's what we oughta be, seein' we're pretty near neighbours."

"I'm sure I'm perfectly willing to be friendly, Mr. Selden."

"Course ye are. Just so! An' so are we. And listen here, Mr. Drew: Don't ye put too much stock in that there Poison Oaker racket."

"I don't know that I understand that."

"Well," drawled Selden, "they ain't any such thing as a Poison Oaker Gang. That there's all hot air. It's true that Obed Pence and Jay Muenster and Buchanan and Allegan and Foss run what cows they got with ourn, and they're pretty good friends o' my boys an' me. But as fer us bein' a gang—why, they's nothin' to it. Nothin' to it a-tall! Just because we use a poison-oak leaf for our brand—why, that's what got 'em to callin' us the Poison

Oakers. And when anything mean is done in this country, why, they gotta hang it onto somebody—and as a lot of 'em don't like me and my friends, why, they hang it onto us and call us the Poison Oakers. Now that there ain't right and just, is it, Mr. Drew?"

"When you put it that way," Oliver evaded, "I should say that it is not."

"No, sir, it ain't—not a-tall! An' I'm glad ye understand and ain't got no hard feelin's."

There was another long pause. Fragrant tobacco smoke floated to Jessamy's nostrils.

"If I ain't too bold in askin', Mr. Drew—what was ol' Damon Tamroy fillin' yer ear with about me today?"

"He was telling me how Old Dad Sloan had spoken of your having once danced the fire dance."

"Uh-huh! Just so! Some o' my friends overheard Old Dad spoutin' about it after I'd hit the feathers. Well, I don't reckon I care any. It's nothin' to try to hide. Was that all Tamroy had to say?"

Jessamy could imagine on Oliver Drew's lips the grave, half-whimsical smile that she had seen twitching them so often. She waited eagerly for his reply.

"I think that the subject you mention is all that he talked to me about," it came at last.

"Just so! Just so!" muttered Selden. "But didn't he say as how others had danced the fire dance besides me and you?"

"Yes, he mentioned others."

"Just so! And who, now—if I ain't too bold in askin'."

"Let me see," said Oliver after a pause. "Some other man's name was mentioned. A short name, if I remember correctly."

"Uh-huh! Plumb forget her, eh?"

"It seems to me it was Smeed, or something like that. Yes—Dan Smeed."

Silence. Again tobacco smoke was wafted over the ferns.

"Dan Smeed, eh?" ruminated Selden finally. "Mr. Drew, did ye ever hear that name before Damon Tamroy said it to ye?"

Another thoughtful intermission; then—

"Yes, I had heard it before."

"Just so! Just so! And if I ain't too bold in askin'—just where, Mr. Drew?"

"Why, I heard it first from Old Dad Sloan himself. Miss Selden and I rode over to his cabin one morning, and we got him to talking of the days of 'Forty-nine. He can be quite interesting when he doesn't wander."

"Uh-huh! And ye say ye heard the name Dan Smeed over to Old Dad Sloan's fer the first time?"

"Yes, sir."

*"The first time in yer life, Mr. Drew?"*

"Yes. I had never heard of it until then."

A short, low snort from Selden. Jessamy knew it well. It signified: "I don't believe you!"

Said Selden presently: "Well, then, I'm gonta put another question to ye, Mr. Drew. I don't want ye to think I'm tryin' to butt in, as the fella says. But s'long's Tamroy was talkin' about me, I reckon it's right an' just that I should be interested. Now, what did Tamroy tell ye Old Dad Sloan had to say 'bout this here Dan Smeed and *me*?"

"He said that you and Dan Smeed were one time partners."

"Oh! Uh-huh! Just so! Partners, eh? And was that the first time ye ever heard that, Mr. Drew?"

"Yes, the first time," said Oliver patiently.

Again that peculiar little snort of Selden.

"How ye gettin' along down to the Old Ivison Place, Mr. Drew?" was Selden's abrupt shift of the conversation.

"Oh, my garden is fine. And I have two colonies of bees storing up honey for me. Besides, I've located another colony up in the hills, and will get them as soon as I can get around to it."

"But ye can't live on garden truck an' honey!"

"I suppose I should have some locusts to go along with them," laughed Oliver; but his flight was lost on Old Man Selden. "You forget, though," the speaker added, "that I am writing for farm journals. I've sold three little articles since I settled down there. I'll get along, if my luck holds out."

"Oh, yes—ye'll get along. I ain't worryin' 'bout that. I'll bet ye could draw a check right this minute that'd pay fer every acre o' land 'tween here an' Calamity Gap."

"I'll bet I couldn't!" Oliver positively denied.

Old Man Selden chuckled craftily. "Ye're pretty foxy, Mr. Drew—pretty foxy!" He had lowered his deep tones until Jessamy could barely distinguish words. "Yes, sir—*mighty* foxy! A garden an' bees an' writin' for a story paper, eh? Oh, ye'll get along. I'll tell a man ye'll get along!"

"I really have no other source of revenue, Mr. Selden."

"Just so! I understand. Well, Mr. Drew, maybe I been a mite too bold; but I'll step in another inch or two and say this: When ye need any help down there on the Old Ivison Place, just send word to Dan Smeed's partner. D'ye understand?"

"I thank you, I'm sure," Oliver told him dryly. "But really I don't think I'll need any help. My garden is so small that—"

"Just so! Still, ye never can tell when a foxy fella like you'll need help. And Dan Smeed's partner'll be always ready to help. Just remember that."

"Help with what?" asked Oliver testingly.

"In watchin' the dead," was Selden's surprising answer, spoken in a crafty half-whisper.

"In watching the dead!" cried his listener. "Why, I—"

"Le's go in to the womenfolks now," interrupted Selden. "And keep thinkin' over this, Mr. Drew. Always ready to help—d'ye savvy? And don't ye pay no attention to that there supposed gang that they call the Poison Oakers. They ain't no such gang. But if anybody does try to bother ye, tell me. Get me? Tell Dan Smeed's partner. He'll help ye watch the dead."

"You're talking in riddles," Oliver snorted. "I don't understand—"

"Oh, yes, ye do! Ye savvy, all right. Ye're foxy, Mr. Drew. I'll say no more just now. But when ye need my help...."

Their voices trailed off.

Once again the girl's supple body rose from the hips, and she searched the ferns on every side. For several minutes she lay quite still in the same position. Then, perhaps fifty feet on her left, a head rose above the tall fronds, and then a body followed it. Next instant a dark figure was hurrying back toward the spring.

Jessamy waited until sight and sound of it were no more, then rose and ran with all her might toward the house.

She slipped in at her private door, hustled out of her clothes, and began donning her gorgeous red dress again.

"So Old Man Selden always shoots straight from the shoulder, eh?" she muttered. "Piffle! When he wants to be he's a regular Barkis-is-willin'!"

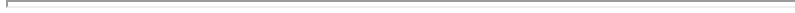
In the midst of her dressing her mother tapped.

"Jessamy, where have you been?" she asked. "Mr. Selden and Mr. Drew are in the living room now. I've knocked twice, but you didn't answer."

"I was outdoors," Jessamy replied. "I'm dressing now. I'll be right out."

And a minute or two later Oliver Drew gasped and his blue eyes grew wide as a silk-garbed figure, with a red rose in her raven hair, glided toward him.

Yea, even as the girl in red had planned that he should gasp!



## CHAPTER XVIII

### SPIES

Smith, the shaggy, mouse-coloured burro, lifted his voice in that sobbing wail of welcome which has caused his kind to be designated as desert canaries, as Oliver rode into the pasture. Smith's was a gregarious soul. To be left entirely alone was torture. His ears were twelve inches long, and the protuberances over his eyes were so craggy that Oliver had hesitated between the names of Smith and William Cullen Bryant. On the whole, though, "Smith" had seemed more companionable.

Oliver loosed Poche to console the lonesome heart of Smith and went at the irrigating of his garden. When a stream of water was trickling along every hoed furrow he put on heavy hobnailed laced-boots and went into the hills in search of his third bee tree.

It seems illogical to set down that one could live for nearly two months on forty acres of land without having explored every square foot of it. But Oliver had not trod upon at least two thirds of his property. Locked chaparral presents many difficulties. Farmers detest it, and artists go wild over it. But farmers are obliged to sprawl flat and crawl through it occasionally, while artists sit on their stools at a distance from it that brings out all the alluring browns and yellows and greens and olives of which it is capable under the magic of the changing sunlight.

Oliver had seen bees darting like arrows from the flowers in the creekbed in a westerly direction, up over the thickest of the chaparral. Up there somewhere was another colony of winged misers and their hoarded wealth of honey. Honey was bringing a good price just then, and a merchant at Halfmoon Flat would buy it. So now the beeman climbed the hill and crawled into the chaparral in the direction the insects had flown.

Scattered here and there through the dense thicket were pines and spruce and black oak. In one of these trees the bees must have their home; and his task of finding it was not entirely a haphazard quest. When he crawled to an

opening in the bushes he would climb into the crotch of one of them and locate the nearest tree. Then, flattening himself once more, he would crawl to this tree and look for a hollow for the bees. Finding none, he would locate another tree and crawl to it.

Thus wearisomely engaged he crawled into a depression three feet deep in the earth beneath him. This allowed him to sit erect for the first time in minutes, and he availed himself of the chance, industriously mopping his brow.

Now, Oliver Drew was not a miner, but he was a son of the outdoor West and knew at once that he was seated in an ancient prospect hole. About the excavation were piled the dirt and stones that had been shovelled out.

He speculated over it. For all he knew, it might date back to the fascinating days of '49. A great forest of pines might have stood here then. Or maybe the pines had been burned away, and a forest of gigantic oaks had followed the conifers, to rear themselves majestically above the pigmies that delved, oftentimes impotently, for the glittering yellow treasure at their roots. Or, again, the prospect hole might have been dug years later, after the oaks had disappeared and the chaparral had claimed the land. There was no way of telling, for every decade or so forest fires swept the country almost clean, and some new growth superseded the old in Nature's endless cycle.

Fifty feet farther on he plopped into a second prospect hole, and a little beyond that he found a third.

He noted now that in all cases no chaparral grew up through the muck that had been thrown out. This would seem to signify that the work had been done in recent years, while the bushes that now claimed the land still grew there. He found a fourth hole soon, and near it were manzanita stumps, the tops of which had been cut off with an ax.

This settled it. While the soil might show evidences of the work of man for an interminable length of time, the roots of the lopped-off manzanitas would rot in a decade, perhaps, and freezing weather would loosen the stumps from their moorings. But this wood was still sound. The prospecting had been done not many years before. And who had been prospecting thus on patented land?

When he had wormed his way to the crest of a hill he had passed about twenty of these shallow holes. Now, at the top, the earth had been literally gophered. The workings here looked newer still; and presently he came upon evidence that proved work had been done not longer than a year before, for dry leaves still clung to the tops of manzanita bushes that had been chopped off and pitched to one side.

It has been stated that he was not a miner. Still, having been born and raised in a mining country, he knew something of the geological formations in which gold ordinarily is found. He was in a gold producing country now, yet the specimens that he picked up near the prospect holes proved that only a rank tenderfoot would have searched so persistently in this locality.

He picked up a bit of white substance and gave it study. It resembled lithia. The water of his spring contained a trace of lithium salts, according to the analysis furnished him by the State Agricultural College, to which he had mailed a sample. He pocketed the specimen for future reference.

As he sat on the edge of this hole, with his feet in it, he heard a rustling in the bushes close at hand. At first he thought it might be caused by a jackrabbit; but soon it became certain that some heavier, larger body was making its way slowly through the chaparral.

A coyote? A bobcat? A deer?

He carried no gun today, and the swift thought of a mountain lion was a bit unpleasant.

He quickly slid from his seat and stretched himself on the ground in the shallow excavation. Oliver was an ardent student of nature, and he liked nothing better than secretly to watch some wild thing as it moved about its customary routine, unconscious of the gaze of human eyes. Once he had hidden in wild grapevines and watched a skunk searching for bugs along a creekbed, until suddenly the moist bank crumbled beneath him, and he fell, and—But what followed is what might be called an unsavory story.

The crackling, scraping sounds drew nearer, but whatever was making them was not moving directly toward him. They ceased abruptly, and then he knew that the man or animal had reached the open space in the brush in which the prospect holes were situated.

As the noises were not continued, he began raising himself slowly, until he was able to look over the edge of the hole.

It was not a browsing deer nor a hunting coyote upon which he gazed. A squat, dark man, with chaps and spurs and Stetson, was making his way across the open space to the continuation of the chaparral beyond it. His eyes were mere slits, black, Mongolic.

He was Digger Foss, the half-white, right-hand man of Adam Selden.

The progress of the gunman was not stealthy, for undoubtedly he considered himself particularly safe from observation up here in the wilderness of chaparral. He slouched bow-leggedly across the break in the thicket, and dropped to hands and knees when he reached the edge of it. He disappeared in the chaparral.

The general direction that he was pursuing was straight toward Oliver's cabin. Oliver lay quite still and listened to the renewed sounds of his progress through the prickly bushes.

Then once more they stopped suddenly. Oliver knew that in the short space of time elapsed Digger Foss could not have crawled beyond the reach of his hearing. He had paused again.

For perhaps five minutes he listened, but could hear no further sounds. Then from not far distant there came the familiar clatter of a dry pine cone in the manzanita tops.

A moment more and Oliver was smiling grimly. For Foss had suddenly appeared above the tops of the chaparral. He was climbing a giant digger pine, which only a short time before Oliver had investigated as the possible home of the bees he was striving to find. There in plain sight the halfbreed was climbing like a bear from limb to limb, keeping the trunk of the tree between his chunky body and the cabin in the valley.

Presently he settled astride a horizontal bough on Oliver's side, his back toward the watcher. He adjusted himself as comfortably as possible, and then there appeared in his hands a pair of binoculars. Leaning around the tree trunk, screened by the digger pine's long, smoke-coloured needles, he focused the glasses on the cabin down below.

It looked to Oliver Drew as if this were not the first time that the gunman had perched himself up there to watch proceedings in the cañon. There had been no hesitancy in his selection of a tree which stood in such a position that other trees would not obstruct his view from its branches, no studying over which limb he might occupy to the best advantage.

Vaguely Oliver wondered how many times he had laboured and moved about down below, with the keen, black, Chinese eyes fixed on him. It was not a comfortable feeling, by any means.

Now, though, his thoughts were taken up by the problem of getting away unobserved by the spyglass man. Digger Foss was not a hundred feet from where Oliver lay and watched him. If he should turn for an instant he would see Oliver there, flat on his face in the excavation, for the halfbreed's perch was twenty feet above the tops of the chaparral.

Oliver had decided to make a try at crawling on up the hill as noiselessly as possible, when new and far slighter sounds came to his ears. So slight they were indeed that, if he had not been close to the earth, he might not have detected them at all.

But no bird or small animal could be responsible for them, for they were continuous and dragging. Once again he hugged the ground while he watched and waited.

The sounds came on—sounds that seemed to be the result of some one's dragging something carefully over the shattered leaves on the ground. And presently there hove into view another human being.

He was an Indian—a Showut Poche-daka. Oliver remembered his swarthy face, his inscrutable eyes. He had been pointed out to him at the fiesta by Jessamy as the champion trailer of all the Paubas, of which the Showut Poche-daka Tribe was a sort of branch. Often, Jessamy had said, this Indian, who was known by the odd and laughable name of Tommy My-Ma, had been employed by the sheriff of the county in tracking down escaped prisoners or fleeing transgressors against the law.

He wore no hat. He was barefooted. His only covering seemed to be a pair of faded-blue overalls and a colourless flannel shirt. Neither did he carry any weapon, so far as Oliver could see.

His progress was now soundless as he came from the chaparral, flat on his belly, wriggling along like a lizard with surprising speed. His black, glittering eyes were unquestionably fixed with rapt intentness on the man aloft in the digger pine; and by reason of this alone he did not see Oliver Drew.

His movements commenced to be extraordinary. He wriggled himself speedily over the unlittered earth and made no sound. There was a pile of dry brush at one edge of the clearing, the tops of the bushes that had been cut off to facilitate the sinking of the prospect holes. Toward this Tommy My-Ma glided; and when he reached it he passed out of sight on the other side.

Then suddenly he reappeared again. Instantly he lowered his head to the ground at the edge of the pile of brush; then swiftly the head and shoulders disappeared, the trunk and legs following. For a second Oliver saw the bare brown feet, then they too went out of sight.

Oliver understood the disappearing act of Tommy My-Ma, he thought. The pile of brush covered another of the prospect holes, and into the hole the Showut Poche-daka had snaked himself. It seemed that he too had sought a hiding place often frequented. In there he perhaps could sit erect and, screened by the pile of brush, would be entirely hidden, while he himself could watch the spy in the branches of the digger pine. For that he was in turn spying on the man who was watching Oliver's cabin Oliver did not for a moment doubt.

But why? That was another matter!

He was quite aware of his own unprotected position; and with Tommy My-Ma now hidden in the brush scarce fifty feet away from him, he dared not get out of his hole and try to crawl away.

The situation struck him as ridiculous in the extreme. Foss trying to spy on him; Tommy My-Ma spying on Foss—the object of all this intrigue, Oliver himself, spying on both of them!

And how long must it continue?

The only sounds now were the soft moaning of the wind through the needles of the pines, and from afar, occasionally, the clear, cool call of a valley quail: "Cut that out! Cut that out!" The sun was hot on the resinous needles of the pines, and the smell of them filled the air.

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## CHAPTER XIX

### CONTENTIONS

Two horsemen met on the backbone of the ridge that separated Clinker Creek and the green American.

Obed Pence was a tall individual with a small mouth, a great Roman nose, close-set black eyes over which black brows met so that they formed a continuous line, and large, tangled front teeth.

The man who met him in the trail—a boy who had just turned twenty-one—was sandy-haired, freckled, snub-nosed, and blue-eyed. His face was too boyish to show marked wickedness, but Chuck Allegan was not the least important member of the Poison Oaker Gang.

"Howdy, Pencie?" he drawled, crooking his leg about his saddle horn as his black horse stopped to rub noses with the bay that the other rode.

"Where you headin' for?" asked Obed Pence.

"Down toward Lime Rock. There's some cows o' mine and a bunch o' calves down there. That breechy old roan devil steered 'em up thataway. She's always wanderin' off with a bunch like that. Come on down with me—I want to move 'em up with the rest o' the bunch. Soil's thin down thataway, an' grass's already gettin' brown."

"Any o' mine in that bunch?"

"I dunno. Like's not. Come on—you ain't got nothin' to do."

"Maybe I have and maybe I ain't," retorted Pence half truculently.

"What you doin', then?"

"Watchin' out for that fella Drew."

"Who told you to? Old Man?"

Pence spat a stream of tobacco juice. "Not a-tall," he replied. "I guess you ain't heard what's new."

"I ain't heard nothin' new. Spring it!"

"Foss is the one told me to keep my eye on Drew. Said for me to keep to this ridge over here and try to get a line on what he's up to if he come up this way. Digger's over in the hills on the other side o' the cañon, watchin'. He's got glasses."

"What's the good o' watchin' this guy? Why don't we get in and fire 'im out o' the country, like we said we was goin' to do?"

Obed Pence's irregular teeth twisted off another chew of tobacco.

"That's the funny part of it," he observed. "Digger's workin' alone, it seems. Old Man tells him not to bother Drew at all. Says he'll tend to 'im 'imself, when he gets 'round to it. First time I ever saw Old Man Selden hang back on puttin' a bur under anybody's tail when he wanted to get rid of 'im. An' now he passes the word for nobody to bother Drew till he says to. Digger don't like it. He's sore on the old man."

"What'd Digger say?"

"I just know mostly by the way he acts. There's somethin' funny goin' on. Ever since that day we all rode down to Drew's cabin and heard the shot inside, Old Man's been actin' funny. Digger an' me was wonderin' what them two was talkin' about in the cabin, that made the old man change the way he done. Why, say, he went down there to scare the ticks outa Drew that day. And after that, you know, we had it all made up to turn cows in on Drew's garden when he was away, an' let 'em get at his spring. Then Jay Muenster was goin' to slip in sometime and put a live rattlesnake in Drew's bed. And if all that didn't start 'im, we was gonta begin plunkin' at him from the chaparral, you know—just drop a few bullets at his feet when he was workin' in his garden. Wasn't that right?"

"Sure was, Pencie."

"An' we rode down there to start things goin'," Pence continued. "And when Old Man come outa the cabin he was bowin' and scrapin', and this and that

and the other, like him and Drew had been pals all their lives. There's somethin' funny. Digger don't like it a-tall!"

"Does Ed know anything?" asked Chuck after a pause.

"No, he don't," answered Obed Pence. "It was Ed told Old Man 'bout Digger takin' a crack at Drew when he was monkeyin' 'round Sulphur Spring. And Old Man told Ed to tell Digger to cut it out, and that he was runnin' the gang and would tell anybody when he wanted 'em to throw down on Drew."

"I know."

"And Digger asks 'im when he sees 'im did he want Drew monkeyin' about the spring and gettin' onto the pipe that took water to the still. And Old Man says to hell with the still; he was gonta cut out makin' booze, anyway."

"Cut it out?"

"That's what he told Digger Foss."

"Hell, he makes more money sellin' monkey rum to Standard than outa anything else! And it's always been safe. Pro'bition didn't cut no ice with us—just give us ten times the profit!"

Pence shrugged his ridgy shoulders. "I'm just tellin' you how things are goin'. Drew made us loose the Sulphur Spring water to run the still with, and Old Man didn't seem to give a whoop about it. Drew finds the pipe, like as not, and that don't seem like it worried the boss. Just says he'll cut out distillin'. Why, he's layin' right down to this fella Drew. Drew's got Old Man buffaloed!"

"Not a-tall," disagreed Chuck Allegan. "You know better'n that, Pencie. Man don't live that c'n buffalo Old Man Selden. He's double-crossin' us—that's what! There's somethin' behind all this. What's Digger watchin' Drew for? Is that any way to run a man outa the country? I'm askin' you!"

"That runnin'-out-o'-the-country business has got to be an old gag. Le'me tell you somethin': I wasn't goin' to, but I will. Digger said not to mention it. But listen! You know Old Man took Drew home with 'im after the fiesta."

Chuck nodded his boyish head.

"Well, Digger wasn't asleep at the switch. When it got dark he rides across the river and into the ranch to see if he c'n find out what's stirrin'. He ain't liked the way things 'a' been goin' since he got outa jail. Course it's Jess'my that's got his goat. Drew's cuttin' 'im out; and since the day we rode into Drew's Digger thinks Old Man's ag'in 'im, an's helpin' Drew get Jess'my.

"Anyway, whatever's the reason, Digger leaves his horse in the chaparral and sneaks in and sees 'em at supper. And he sticks 'round till supper's over and Old Man steers Drew out to the corrals for a talk. They set down on that old felled pine in the ferns below the spring, and Digger snakes up through the ferns and hears 'em talkin'."

"What'd he say they said?" Chuck asked eagerly.

"Didn't have any too much to say about it," Pence replied. "Just said Old Man and Drew was nice as pie to each other; and Old Man told Drew there wasn't any use him bein' scared o' the Poison Oakers, 'cause there wasn't no such outfit."

"Said there wasn't no such outfit?"

"That's what I said!"

"And Digger wouldn't tell no more?"

"No, he wouldn't. And I'll bet you there was a lot more to tell. I savvied Digger wasn't springin' all he heard. But he don't like it."

"Maybe they was talkin' 'bout Jess'my. Then he wouldn't have nothin' to say, you can bet yer life!"

"I got my doubts," Pence ruminated. "No, there was somethin' else. I know that shifty little bullet eye o' Digger's. He was keepin' somethin' back that he ought to told the rest of us. I don't like the way things are goin'. Since this Drew showed up, seems like we all got somethin' to keep from one another. Old Man's tryin' to double-cross the gang someway. Foss is tryin' to get in on it, or else he's aimin' to double-cross us an' Old Man, too, all on his lonesome. An' we can't make any more booze 'cause o' Drew; an' Old Man says, We sh'd worry! A hell of a mess! We're due for a big bust-up, I'm

thinkin'. What's Foss sneakin' about watchin' Drew for? Huh! Answer me that? An' why'd he tell me to watch up here an' trail 'im if I saw 'im, without tellin' me why? I'm gettin' about sick o' the whole dam' deal! I ain't takin' orders from Digger Foss!"

"Me, too," agreed Allegan. "And that fire dance—that's 'at gets me! Funny about this guy Drew, comin' here a stranger, an' dancin' the fire dance right away. Somethin' funny, all right! Most folks thought maybe he'd hooked up with a squaw, but it ain't that. Gets *my* goat! But how 'bout the Selden boys?"

"They ain't said a word. I reckon they're in with Old Man, whatever he's got on his chest. If we come to a split-up, that'll make Old Man and the four boys on one side, and me an' you an' Ed Buchanan and Jay Muenster on the other side. Five to four."

"But how 'bout Digger? He's always been strong with Old Man Selden. He'll stick with him."

"Maybe—maybe. He won't be with us, though. An' I'm doubtin' if he'll be with Selden, either. He's out fer Foss!"

"Fer Jess'my, ye mean!"

"Sall the same," shrugged Obed Pence. "Le's ride down an' get a couple o' drinks, an' then I'll fog it down to Lime Rock with ye. T'hell with Digger Foss an' his orderin' me 'round!"

They rode away in silence, winding their way down into Clinker Creek Cañon when a mile or more below the forty acres of Oliver Drew. They dismounted at Sulphur Spring and pushed through the growth surrounding it.

Only a little water now remained in the clay-lined reservoir. The protruding end of the three-quarter-inch pipe was now plainly visible, eight inches above the surface of the tiny pool.

"Just think," Obed Pence observed: "That pipe's took water down the cañon for us for years; and s'long's the pool was full o' water nobody ever found the end of it here. At least they never let on they did. An' now comes this

Drew an' puts the kibosh on everything! I'll tell a man I'm gettin' sore about it, Chuck. I want my booze, and I want my share o' what we could get out of it. I'm bettin' Standard'll be wild when he learns Old Man won't distil any more."

"Can't," corrected Chuck.

"Can't, eh? Who's stoppin' 'im? Drew, that's who, and nobody else! And he won't send Drew over the hills talkin' to 'imself, like he's done to many a better man before 'im. I'm sore, I tell you. And I'm gonta find out what's doin', or know the reason why."

"Le's get clay an' cover the end o' the pipe," suggested Chuck. "Some deer hunter's likely to see it if we don't, now that the water's pretty near gone."

They solemnly administered this rite in remembrance of dead days, and rode on down the cañon single-file.

Over three-quarters of a mile from the spring they left their horses in the creek bottom and clambered up a steep slope, slipping on the polished pine needles underfoot. Near the summit the trees thinned, and heavy chaparral usurped the land. On hands and knees they plunged into it, and presently were crawling on their stomachs over an unmarked route.

In the heart of the chaparral they came suddenly upon a circular opening made by the hand of man. Here was a high ledge of schist, and under it a small cave. Grass grew here, for the spot marked the other end of the pipe line from Sulphur Spring, and the water that had represented the spring's overflow had trickled out to cool the copper coil of the Poison Oakers' still, incidentally refreshing the barren land.

The pipe line represented a great amount of toil and patience, but, as the pipe had been stolen from a railroad shipment, no great outlay of funds. Clinker Creek Cañon dipped so steadily below Sulphur Spring that it had been possible to lay the pipe to this hidden spot in the heart of the chaparral, far up on the hillside, and still maintain a goodly fall for the flow of water.

Only by crawling flat on his face could one reach this secluded rendezvous; and in all the years that they had made molasses rum here the Poison Oakers had not been disturbed. Not even a hunter would find it necessary to

penetrate this fastness. Men would have laughed if told that water was flowing up here on the dry, rocky eminence.

Before the cave's mouth was an adobe furnace for the fire, and over it the now dry end of the pipe hung uselessly. The still was removable, and was now in the cave, together with distilled stock on hand and kegs of molasses that had been packed into the cañon on burros' backs, then trundled laboriously up into the chaparral.

Chuck and Obed entered the open cave and sat themselves down beside a barrel with a wooden spigot. They found glasses and wiped soil and cobwebs from them with their thumbs, and soon the water-coloured liquor flowed to the temporary gladdening of their hearts.

But as it flowed again and again they began renewing their grievances, and shook their heads over "the good old days," and mouthed vague threats, and forgot all about Lime Rock and the breachy cow.

In the midst of their maudlin conversation Obed Pence heard a sound, despite his rum-dulled sensibilities.

"Cut it out!" he husked. "Somebody's beatin' it in here."

He lay flat in the mouth of the cave and looked down the hillside under the chaparral.

"Old Man and Bolar," he announced.

"Le's get out an' beat it over the hill, and back down to our *caballos*—and they won't know we been here," Chuck suggested.

"Huh! Not me!" retorted Pence. "They already seen our horses, I'll bet. Anyway, I'm liquored up just right to tell Old Man how the war broke out. I'm glad he's comin'. I'm gonta know what's what right pronto!"

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## CHAPTER XX

### "WAIT!"

For over an hour Oliver Drew was obliged to lie flat at the bottom of the shallow prospect hole, while Foss remained astride the limb of the digger pine and Tommy My-Ma kept hidden under the pile of brush.

There was no chance to steal out and crawl away through the chaparral, for, while Digger's back was always toward him, he could not tell which way the brush-screened Showut Poche-daka was looking.

At last, though, the man on lookout began to show signs of vast uneasiness. His position was uncomfortable, and down at the cabin there was, of course, no movement to arouse his interest and relieve the tedium of his watch. He squirmed incessantly for a time; and then apparently he decided that the object of his espionage had left the ranch, for he thrust his glasses in his shirt front and began monkeying to the ground.

Oliver's security now was in the hands of chance. If the halfbreed left his observation post by a route which passed near the prospect hole, Oliver would be discovered. If he decided to leave the thicket by crawling downhill, Oliver would be safe from detection.

It was rather a breathless minute that followed, and then he heard the gunman moving off through the chaparral in the direction of the cañon—the least difficult route by far. Apparently he had not come mounted, else he would have retraced his course back to where he would have left his horse.

Gradually the sounds of his retreat died away. Still there was no movement in the pile of brush, so far as Oliver's ears were able to detect. He dared not look up over the edge of the prospect hole that hid him.

Minutes passed. Quail called coolly from afar. Still not the slightest sound from the brush pile.

For half an hour longer Oliver lay motionless and silent. Had Tommy My-Ma slipped out noiselessly and followed Foss? Or was he for some obscure reason still hiding under the dry manzanita tops? At the end of this period Oliver decided that the Indian must have gone. Anyway, he did not purpose to remain in that hole till nightfall.

So he elevated his nose to the land level and peered about cautiously.

Everything remained as he had seen it last. He rose to his feet, left the hole, and walked boldly to the brush pile.

A swift examination of the ground showed that Tommy My-Ma had left his place of concealment, perhaps long since. There was a plainly marked trail through the shattered leaves that led in the same direction taken by the departing halfbreed.

Oliver studied the brush pile, and found that the facilities for hiding were as he had deduced. Pine limbs had been laid across the hole like rafters, and the brush heaped on top of them. Beneath was a space deep enough for a man to sit erect; and he might thrust his head up into the brush and peer out in all directions. Loose brush concealed the entrance, and it had been replaced when the Indian took his leave.

What was the meaning of it all? Foss, of course, had reason to hate him; but what could he gain by secretly watching him from cover? And why was the Indian watching Foss in turn? All indications pointed to the belief that Foss had occupied his observation tree often, and that his shadow had as frequently trailed him and spied on him from a prearranged hiding place.

What strange, mysterious intrigue had enveloped his life because of the unanswered question with which old Peter Drew had struggled for over thirty years? When would he face the question? Would the answer be Yes or No? Would his college education prove a safeguard against his reading the answer wrong, as his poor, unlettered old father had hoped? And Jessamy! Would she figure in the answer? Somehow he felt that hope and life and Jessamy hung on whether his answer would be Yes or No. His dead father's hand seemed to be weaving the warp and woof of his destiny.

Oliver gave up further search for the bees that day. By a circuitous route he returned to his irrigating of the garden.

June days passed after this, and July days began. The poison oak had turned from green to brilliant red, and now was dark-green once more. The air was hot; the grass was sear and yellow; the creek was dry but for a deep pool abreast the cabin. But Oliver did not worry much now about the creek, except for the loss of its low, comforting murmur and the greenness with which it had endowed its banks, because the enlarged flow from his spring was ample for his needs.

No longer did linnets sit near his cabin window and sing to the accompaniment of his typewriter keys. Their season of love was over; the young birds were feathered out and had left their nests. The wild canaries still were with him, and hovered about the rambling willow over the spring. Eagles soared aloft in the clear, hot skies. Lizards basked lazily about the cabin, and blinked up contentedly when he tickled their sides with a broomstraw, or dangled pre-swatted flies before their grinning lips.

For a week now he had seen no member of the Poison Oaker Gang. The cows bearing their brand were all about him, but gave him no trouble, and he thought it strange that he chanced to meet no one riding to look after them. He had not been bothered. Whether Digger Foss spent his idle hours watching him from the branches of his lookout pine he did not know or care. He had not seen Jessamy since the morning he left Poison Oak Ranch, and all his worriment and discontent found vent in this.

Why had she not ridden down to him, as of old? Had he offended her in any way? The thought was unbelievable, for he could recall not the slightest hint of any misunderstanding.

He brooded and moped over it, and loved her more and more—realized, because of her absence, just how deeply he desired her. He experienced all the tortures of first love; and then one day he found his senses.

Then he laughed loud and long, and ran for Poche, and threw the silver-mounted saddle on his back. She had come to him when he could not go to her. Now her step-father had invited him to her home, and if he wished her companionship he must take the male's part and seek it. What an utter ass he had been indeed!

It was one o'clock when Poche bore him into the cup in the mountains that cradled Poison Oak Ranch. At once the longed-for sight of her gladdened his heart once more, for she apparently had seen him coming and was walking from the house to meet him.

How her sturdy, womanly figure thrilled his soul! Black as night was the hair that was now coiled loosely on her head, in which a red rose blazed as when he had seen her last. The confident poise of her head, the warm tints of that strong column that was her neck, the brave carriage of her shoulders, her swinging stride, the long black lashes that seemed to be etched by an Oriental artist—they set his heart to pounding until he felt faint; the yearning, hopeless void of love tormented him.

And then with his senses awlirl he leaned from the saddle and felt her warm, soft hand in his, and gazed dizzily into the unsounded depths of the trout pools shaded by grapevines, to which his fancy had likened her eyes. His hand shook and his heart leaped, and his soul cried out for her; and all that he could say was:

"How do you do, Miss Selden!"

He saddled White Ann, and over the hills they rode together. Commonplaces passed between them until the wilderness enveloped them. Then as they sat their horses and gazed down a precipitous slope to the river, she asked:

"Just why have you kept away from us all these weeks?"

He reddened. "I'll tell you frankly," he said: "I was a fool. I was moping because you had not ridden to see me. You had come so often before. And I woke up only today. Today for the first time I realized that, since Old Man Selden has opened his door to me, it is my place to go to you."

"Of course," she said demurely.

He cleared his throat uncomfortably.

"Some time ago," he told her, "I realized that you sought me out in the first place for a purpose."

He paused, and the look he cast at her was eager, though guarded carefully.

"Yes?" she questioned.

"Yes," he went on. "I realized that. And also that you *continued* to come because that purpose was not yet fulfilled, and because conditions made it necessary for you to look me up."

"Yes, I understand—" as he had come to a stop, rather helplessly.

"Well, just that," he floundered. "And then Selden changed his tactics, and I could go to you. So you—you didn't come to me any more."

"Fairly well elucidated," she laughed, "if repetition makes for clearness. Well, you understand now—so let's forget it."

"I want you to understand that it wasn't because I didn't wish to come. It was just thick-headedness."

"So you have said. Yes, I understand."

The gaze of her black eyes was far away—far away over the deep, rugged cañon, over the hills that climbed shelf after shelf to the mystic snow-topped mountains, far away into a country that is not of the earth earthy. Under her drab flannel shirt her full bosom rose and fell with the regularity of her perfect breathing. Her man's hat lay over her saddle horn. Like some reigning goddess of the wilderness she sat and overlooked the domain that was hers unchallenged; and the profile of her brow, and the long, black, drooping lashes, tore at the heart-strings of the man until he suffered.

"I can't stand that!" he cried out in his soul; and a pressure of the reins brought Poche close to White Ann's side. "Jessamy!" said the man huskily. "Jessamy!"

He could say no more, for his voice failed him, and a haze swam before his eyes as when he had lost control of himself on the hillside.

"Jessamy!" he managed to cry again; and then, for lack of words, he spread his arms out toward her.

The black lashes flicked downward once, but she did not turn her face to him. The colour deepened in her throat and mounted to her cheeks, and her bosom rose and fell more rapidly.

Then slowly she turned her face to his, and her level gaze searched him, unafraid. But not for long this time. Down drooped the black lashes till they seemed to have been drawn with pen and India ink on her smooth brown cheeks; and they screened a light that caused his heart to bound with expectation that was half of hope.

Her red lips moved. "Wait!" she whispered.

His arms fell to his sides. "You—you won't hear me!"

"No—not now."

"You know what I'm trying so hard to say. It means so much to me. It's hard for a man to say the one word which he knows will make him or break him for all time to come. He'd rather—he'd rather just hope on blindly, I guess, than to speak when he can't guess how the woman feels. Must—must I say it—right out, Jessamy?"

"No, my friend, don't say it."

"Is there anything that stands between us?"

"Yes. But don't ask what."

"Then you don't love me!"

Her red lips quivered. "I said for you to wait," she told him softly.

"Why should I wait? For what? I know myself. I'm grown. I know that I—"

"Don't!" she interrupted. "Wait!" And she leaned in the saddle and swung White Ann away from him.

"Let's ride back home," she said. "You'll stay to supper? The moon will be bright for your ride home later. I'll make you a cherry pie!"

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## CHAPTER XXI

### "WHEN WE MEET AGAIN!"

It will be necessary to return to the day that Chuck Allegan and Obed Pence met on the ridge beyond the Old Ivison Place, and rode together to the hiding place of the Poison Oakers' moonshine still.

Obed Pence continued to lie prone in the mouth of the cave, while his close-set eyes angrily watched the progress of Old Man Selden and his son Bolar through the chaparral.

As the continued crawling of the coming pair brought them nearer to the retreat Obed Pence withdrew his lank figure into the shadowy cave; and he and his companion endeavoured to appear innocent and unconcerned.

Then when Old Man Selden and the boy reached the opening and stood erect, Obed appeared at the mouth again and greeted them with a matter-of-fact:

"Hello, there!"

"Why, howdy, Obed," returned Adam Selden. "Didn't know ye was here. Who's with ye?"

"I reckon you see our horses down in Clinker Cañon," returned Obed in trouble-hunting tones. "And you know every horse between Red Mountain an' the Gap."

"Yea, me and Bolar thought we saw a couple o' animals through the trees. But we hit the ground farther up the creekbed, and come in slonchways. Thought maybe one o' the brutes was Chuck's."

Obed Pence snorted softly, but did not add more fuel to an argument along this line.

"Me an' the kid was packin' a sack o' salt on a burro down toward the river," Adam observed, approaching the cave, "an' thought we'd belly up an' have a little smile. Cows need salt. Hello there, Chuck!"—as the round, boyish face of Allegan shone like a small moon from the dark interior.

"Hello, Old Man!" replied the youth. He was apprehensive over Pence's glowering silence, and, to hide his feelings, quickly opened the spigot over a glass and passed the water-white drink to his chief.

Adam Selden sat down with it, and Bolar came into the cave and was also given a drink by Chuck.

"How early you gonta start the drive for the mountains this year, Old Man?" asked the self-appointed host, nervously filling glasses for himself and the glowering Pence, who stood with arms folded Napoleonlike across his breast, scowlingly regarding the newcomers.

"Well, grass's holdin' out *muy bueno*," said Selden thoughtfully. "Late rains done it. I don't think we'll have cause to move 'em any earlier than common. The filaree down in the river bottom is—"

But here Napoleon broke his moody silence. "I got somethin' to talk about outside o' grass," snapped Obed Pence.

A tense stillness ensued, during which Old

Man Selden deliberately drained his glass and passed it back to Chuck to be refilled.

"Well, Obed," he drawled lazily, "got anything important to say, just say her."

"Oh, I'll say her!" cried Pence, and tossed off his drink of burning liquor by way of fortification.

"Ain't been settin' here by that bar'l a mite too long, have ye, Obed?—if I ain't too bold in askin'," was Selden's remark, spoken in the tone which turneth away wrath.

"No, I ain't been here too long," Pence told his captain. "And I'm glad you've come, Old Man. I want to talk to you about this fella Drew, and the

way things 'a' been a-goin'."

"Shoot!" invited the old man's booming voice.

Obed came directly to the point. "Well, why ain't we runnin' Drew out?"

Old Man Selden balanced his glass on one peaked knee while he reached into a pocket of his *chaparejos* for a plug of tobacco. He was deliberate as he replied:

"Well, Obed, I was waitin' a spell 'count of a little matter that's on my mind just at present. I'd advise ye not to be worryin' about Drew. I'll tend to him when it's the proper time."

"Yes, you will!" sniffed Pence sarcastically. "But, allowin' that you will, I want my booze in the meantime."

"There's the bar'l," said Old Man Selden.

"That ain't gonta last forever!"

"Just so! But time she gets low, we'll be makin' more ag'in. Time Drew's gone and we get water runnin' from Sulphur Spring ag'in."

"And I'm wantin' my profit from what we could sell," Pence added, unmollified. "I got no money, and won't have none till killin' time, 'less the still's runnin'. 'Tain't worryin' you none. You got all you want without makin' monkey rum. But it ain't like that with me. Why, we was makin' five gallon a day—at twenty-five bucks a gallon! And now nary a drop. I need the money."

"Well, Obed, they's money all about ye," the old man boomed. "And they's things that can be turned into money layin' 'round loose everywhere."

"And there's a county jail, too!" snapped Pence.

"And also federal prisons," Adam added, nodding toward the still and the crude fermentation vats.

"Rats! Pro'bition sneaks ain't got me scared! But bustin' into somebody's store's a different matter. And while we're talkin' about it, Old Man, I don't see as you're so keen for a little job like that as you was some months ago."

"Gettin' old, Obed—gettin' old, as the fella says. Squirt another shot into her, Chuck." He passed his glass again. "I'll leave all that to you kids in future, I'm thinkin'."

"But take your share, o' course," sneered Pence.

"Oh, I reckon not, Obed—I reckon not. I got enough to die on—that's all I need. Just putter 'round with a few critters for my remainin' years, then turn up my toes peaceful-like. I'm gettin' old, Obed—just so!"

There was another prolonged, strained silence. Pence emptied his glass twice while it lasted, and his Dutch courage grew apace.

"Looky-here, Old Man," he said at last, "Le's get down to tacks: You're double-crossin' us, an' we're dead onto it. For some reason you don't wanta drive Drew outa Clinker Creek Cañon. It's got somethin' to do with that fire dance. There's more in it for you if you leave Drew alone than if you put a burr under his tail. That's all right so far's it goes. But you're tryin' to hog it. You're squeezin' the rest o' the Poison Oakers out—all but your four kids. Ed and Digger and Chuck here and Jey and me's left out in the cold. That's what! And we don't like it, and ain't gonta stand for it. If there's more profit in it to leave Drew alone, leave 'im alone. But le's all get our share o' this big profit, like we always did."

"Couple o' more shots and ye'll be weepin' about her, Pencie," dryly observed old Adam.

"Never mind that! I c'n handle my booze. You come across."

"I've known ye about thirteen year, Obed," said Adam in tones dangerously purring, "and I've never heard ye talk to me thataway before. I wouldn't now, if I was you."

"And I've never seen you act like you're doin' in those thirteen years!" cried Pence. "Before now there wasn't no need to bawl you out. But you're turnin' crooked."

Adam rose and placed an enormous hand on Obed's shoulder.

"Just so! Just so!" he purred. "Now, you ramble down an' get in yer saddle an' ride on home, Pencie. Ye've had enough liquor for today. An' when ye're

sober we'll all talk about her. Just so! That's best. Go on now—yer blood's hot!"

Pence jerked his shoulder away and backed farther into the gloom of the cave. Old Man Selden quickly moved so that his body was not silhouetted against the light streaming in at the mouth.

"I don't want none o' yer dam' fatherly advice," growled Pence. "I just want a square deal. If there's a reason why Drew oughta be left alone I want to know it. And I want to know it now!"

"Just so! Are ye really mad, now, Pencie?"

"I am mad!"

"*And* sober?"

"Yes, sober. Shoot her out!"

The eagle eyes of Old Man Selden were fixed intently on the face showing from the gloom. Every muscle was tense, every faculty alert. His beetling grey brows came down and hid his eyes from the younger man, but those cold blue eyes saw everything.

"Bein's ye're sober, Obed," the old man drawled, "I'll be obliged to tell ye that no Poison Oaker ner any other man ever talked to me like you been doin' and got away with it. Just so! And, bein's ye're sober, I'll say that my business is my own, an' I'll keep her to myself till I get ready to tell her. Furthermore, I'm still runnin' the Poison Oakers, and what I say goes now same as a couple months ago. I know what's good for us boys better'n any o' the rest o' ye, and I'm doin' it."

"You're a dam' liar!" shouted Pence.

Old Man Selden's gun hand leaped to his hip. "Come a-shootin', kid!" he bellowed.

He whipped out his Colt, shot from the hip. The roar of his big gun filled the cave. Screened by the smoke of it, Old Man Selden sprang nimbly to the deeper shadows.

There he crouched, his cavernous eyes peering out through the dense, confined smoke like a lynx posing to spring upon a burrowing gopher.

Obed Pence had not been slow. He too had leaped the instant the old man's hand dropped to his holster. He had ducked into deeper shadows still, and had not been hit. Now he fired through the smoke wreaths in the direction he supposed the old man had darted. A report from Adam's gun roared on the heels of his own, and rocks and earth rattled down a foot from his shoulder.

The cave extended to right and to left of the opening. Each of the fighters was hidden by the darkness of his particular end, and now the smoke of the three shots hung in a heavy blanket between them directly opposite the door. Under cover of this Chuck and Bolar, sprawling flat, had wriggled frantically out of the cave. Each from his own nook, the belligerents leaned cautiously forward, guns ready, breath held in, and tried to pierce the rack of smoke and the obscurity of the other's hiding place.

It seemed to the younger men, gazing in, that the situation meant a deadlock. Neither gunman could see the other, and, with no breath of air stirring in the cave, the smoke lay between them like a solid wall.

Five minutes passed without a sound inside. Then Bolar drew nearer to the cave and shouted in:

"What you gonta do? Neither o' you c'n see the other. You can't shoot. What you gonta do?"

Complete silence answered him. Then he realized that neither his father nor Obed Pence would dare to speak lest the sound of his voice reveal his whereabouts and call forth a shot from the other end of the cave.

"You got to give it up for now!" he shouted in again. "I'll count one-two-three; and when I say three, both o' ye throw yer guns in front o' the mouth. I'll ask if ye'll do this. Both o' you answer at once. Ready!... Will you?"

"Yes," came the smothered replies of both men in the cave.

"All right now. Get ready! One ... two ... *three!*"

At the word "three" two heavy-calibre Colts clattered on the dirt floor before the entrance and lay not a foot apart, proving that there was a recognized code of honour among the Poison Oakers. Bolar stooped and entered, gathering them in his hands.

"All set," he announced. "Come out an' begin all over ag'in."

Old Man Selden was the first to come out. Pence quickly followed him. Bolar had emptied both weapons of cartridges, and now he silently passed each his gun.

"What'll it be, Pencie?" asked Old Man Selden, bending his fiery glance on his dark, slim enemy. "Shall we draw when we meet ag'in, er forget it entirely—or see who c'n load an' shoot quickest right here an' now?"

"It's up to you, Old Man."

"Forget it," advised Bolar. "For now, anyway."

"Shall we go our ways now, an' draw when we come together ag'in?" It was Old Adam's question.

"Why can't you come across an' do the square thing now?" Pence growled. "Then ever'thing's settled."

"Just so! But y're answerin' my question with another'n. Do we draw when we meet ag'in?"

"You won't be square?"

"I'll tell ye nothin'. Ye called me a dam' liar, so you couldn't believe it if I had anything to say to ye."

Pence shrugged indifferently and turned away. "When we meet ag'in," he said lightly.

"Just so!" drawled Old Man Selden. "Just so!"

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## CHAPTER XXII

### THE WATCHMAN OF THE DEAD

Oliver Drew knew that the Mona Fiesta would be held by the Showut Poche-dakas when the July moon was full. The Mona Fiesta was the tribal "Feast of the Dead." It was purely an Indian rite, unmixed with any ceremonies incident to the feast days of the Catholic saints, as were most other celebrations. Consequently, while the whites were not definitely prohibited from being spectators, they were not invited to attend. They often went out of curiosity, Oliver had been told by Jessamy, but always they observed from a respectful distance and went unnoticed by the worshippers.

The underlying principle of the Feast of the Dead was ancestor worship, in which all of the Pauba Tribes were particularly devout. Jessamy told Oliver that she had witnessed the ceremony once from a distance, but that, as it occurred at night, she had seen little of what was taking place.

Oliver had wondered that he had received no message from old Chupurosa Hatchinguish after the night of the fire dance. He was now a member of the tribe, he supposed, but all actual contact with his new-found brethren seemed to have ceased when he rode away from the fiesta. The mystery of why he was in this country hung on his connection with the Showut Poche-dakas. He was impatient to get in closer touch with the wrinkled old chief and bring matters to a head.

And now another feast day was close at hand. In two more nights a full moon would shower its radiance over the land of the Poison Oakers. He had received no word, no intimation that he would be wanted at the reservation for the Mona Fiesta. Whites were excluded, he knew; but, then, he was now a brother of the Showut Poche-dakas, and he hoped against hope that he would be commanded to appear.

But the two intervening days went by, and the evening of the celebration was at hand, with no one having arrived to bid him come.

He was seated on his little porch that evening, listening to the night sounds of chaparral and forest, as the moon edged its big round face over the hill and smiled at him. He was thinking half of Jessamy, half of an article that he had planned to write. Two fair-sized checks for previous work had reached him that week, and he was beginning to have visions of a future.

In a pine tree close at hand an owl asked: "Who? Who? Who—o-o-o?" in doleful tones. From a distant hilltop came the derisive, outlaw laughter of coyotes. A big toad hopped on the porch, blinked at the man in the moonlight, and then started ponderously for his door. Oliver rose and with his foot turned him twice, but the toad corrected his course immediately and seemed determined to enter the house willy-nilly.

"But I don't want you in there," Oliver protested boyishly. "I might step on you in the dark, or accidentally put my hand on your old cold back."

He closed the door, and the toad hopped on the threshold, as if resolved to await his chance for a strategic entrance.

"All right," said Oliver. "Sit there! When I'm ready to go in I'll climb through a window. You are not going into that house!"

He laughed at himself. His was a lonesome life when he was not with Jessamy; and, always a lover of every living thing that God has created, he had made friends with the wild life that moved about his cabin, so that toads and lizards, birds and squirrels looked to him for food and had no fear of him.

He sat puffing at his pipe and giving the obstinate toad blink for blink, when there came to his ears strange sounds from up the lonely cañon.

At first he imagined they were made by roving cattle, then he recognized the ring of shod hoofs on the stones in the trail. Then voices. And presently he knew that many horsemen were riding toward the cabin—a veritable cavalcade.

He rose from his chair and stood listening, not without a feeling of apprehension. As the concerted thudding of many hoofs drew closer and closer he ran into the cabin and strapped on his six-shooter. He had been at a complete loss to interpret Old Man Selden's later attitude toward him, and

was wary of a trap. The sounds he heard could mean nothing to him except that the Poison Oakers were at last riding upon him to begin their raid.

Suddenly from the other direction came the clattering hoofbeats of a single galloping horse. Silvery under the magic light of the moon, a white horse burst into view, galloping over a little rise to the south. It carried a rider. Now came a familiar "Who-hoo!" And Jessamy Selden soon was bending from her saddle at the cabin door.

"Thank goodness, I'm in time!" she said. "I didn't know when they would start, and I waited too long."

"What in the mischief are you doing in the saddle this time of night?" he demanded.

"Oh, that's nothing! I get out of bed sometimes and saddle up for a moonlight ride. I love it."

"But—"

"Here they come! I wanted to get here ahead of them and warn you to pretend you were expecting them. You're—you're supposed to know."

"I'm supposed to know what?"

"About the Mona Fiesta. It's to be observed here on the Old Iverson Place. It always is. And—and you're supposed to know it."

"How explicit you aren't! Well, what—"

"Sh! There they are! I can't explain now."

Oliver's thoughts were moving swiftly, and he did not put them aside even when he saw his gate being opened to a large company of horsemen.

"I've got you," he said. "Your little attempt at subterfuge has failed again. Those are the Showut Poche-dakas coming?"

She nodded in her slow, emphatic manner.

"Uh-huh! I see. And you might have told me many days ago that they would come. And if that isn't so, you could have got here much earlier

tonight to warn me in time. But that would have given me an opportunity to question you, and this you didn't want. So you waited till they were almost upon me, then made a Sheridan dash to warn me, when there would be no time to answer embarrassing questions. Pretty clever, sister! But you see I'm dead on to your little game."

Her laugh was as near to a giggle as he had ever heard from her.

"You're a master analyst," she praised. "I'll 'fess up. It's just as you say. You know my nature makes it necessary for me to dodge direct issues, where your mystery is concerned. But they're right on us—go out and meet 'em."

"You'll wait?"

"Sure."

The foremost riders of the long cavalcade were now abreast the cabin, and Oliver Drew stepped toward them as they halted their ponies.

The strong light of the full moon was sufficient to reveal the wrinkled-leather skin of old Chupurosa Hatchinguish, who rode in the lead, sitting his blanketed horse as straight as a buck of twenty years. Oliver reached him and held out a hand.

"Welcome to the Hummingbird," he said in Spanish.

"Greetings," returned the old man, solemnly taking the offered hand. "The July moon is in the full, brother, and I have brought the Showut Poche-dakas for the yearly Mona Fiesta to the spot where our fathers worshipped since a time when no man can remember."

"Thou art welcome," said Oliver again, entirely lost as to just what was expected of him.

Chupurosa left the blanket which he used as a saddle. It was the signal for all to dismount, and like a troop of cavalry the Showut Poche-dakas left their horses. They tied them to fenceposts and trees out of respect for the landowner's rights in the matter of grass.

"Is all in readiness?" asked the ancient chief.

"Er—" Oliver paused.

A hand gripped his arm. "Yes," Jessamy's voice breathed in his ear.

"All is in readiness," said Oliver promptly.

Jessamy then stepped forward and offered her hand to Chupurosa.

"Hello, my Hummingbird!" she caroled mischievously in English.

"The light of the moon takes nothing from the Señorita's loveliness," said the old man gallantly.

By this time the Showut Poche-dakas had formed a semicircle before the cabin.

"Let us proceed to the Mona Fiesta," said Chupurosa. "Let the son of Dan Smeed lead the way."

Over this strange new designation Oliver was given no time for thought; for instantly Jessamy laid a firm grip above his elbow and led him to the pasture gate. The Showut Poche-dakas followed at the heels of Jessamy's mare.

"Don't worry," the girl whispered into Oliver's ear. "Nothing much will be required of you. Just try to appear as if you know all about it, and had attended to the preliminaries yourself."

"Yes, yes," said Oliver dazedly, his mind now in a whirl.

She led him across the pasture in the direction from which she had ridden so unexpectedly to the cabin. They reached a little *arroyo*, and down it they turned to the creekbed. They crossed the watercourse and turned down it. Presently they entered a cluster of pines and spruce trees, which was close to what Oliver called The Four Pools.

In succession, four deep depressions in the bedrock of the creekbed were ranged, and each held clear, cool water, fed by an undiscovered spring, though the creek proper was now entirely dry. In the bedrock about these pools Oliver had previously noted several round holes the size of a half-bushel measure. These were *morteros*, he knew—the mortars in which the

California Indians pound acorns in the making of the dish *bellota*. He had often speculated on the probable antiquity of these *morteros*, and had dreamed of early-day scenes enacted there and about them.

There was a circular open space in the midst of the tall, whispering trees. Just above this spot, up the steep hillside, he had lain in the prospect hole and watched Digger Foss spying on the cabin down below, while Tommy My-Ma hid under the brush and spied on him. Into the open space in the trees the fearless girl led the way, and there in the centre of it the moonlight streaming through the branches revealed a huge pile of brush and wood, arranged as if for a great fire.

She pressed his arm, and they came to a halt. Behind them the Showut Poche-dakas halted. To Oliver's side stepped Chupurosa, and spoke in the tongue of the Paubas to a man at his right hand.

This man stepped to the pile of brush and wood and fired it.

As the flames leaped up and licked at the sun-dried fuel the Indians closed in, and now the light of the fire showed Oliver that there were women among their number. At the edge of the trees they formed a circle about the fire, then all of them save Chupurosa squatted on the ground.

And now the firelight brought something else to view. It was nothing more mysterious than a wooden drygoods box at the foot of one of the pines, and beside it stood a large red earthen *olla*. What these held Oliver could not see. He was puzzling over the fact that these simple arrangements had been made on his land while he sat on his porch two hundred yards away and smoked, for he had passed this spot early that evening and it had been as usual then.

The dark-skinned men and women squatted there silently about the fire, their serious black eyes blinking into it. There was something pathetic about it all. They were always so serious, so intent, so devout; and their poor, ragged clothes and bare feet were so evident.

"Join the circle," whispered Jessamy.

Oliver obeyed.

Then Jessamy stepped to Chupurosa, who had been gazing at her silently.

"Good-night, my Hummingbird," she said, and smiled at him.

An answering smile lighted the withered features, and once more the old man took the girl's slim hand in his.

He dropped it. She turned and vaulted into her saddle. The mare leaped away over the moonlit pasture. For a time the thudety-thud of her galloping hoofs floated back, and then came silence.

Amid a continuation of this stillness Chupurosa stepped close to the fire, now leaping high, and stretched forth his brown, wrinkled hands. He threw back his head and began speaking softly, directing his voice aloft. Not a word of what he said was known to Oliver. Gradually his voice rose, and his tones were guttural, growling. His body swayed from right to left, but he kept his withered hands outstretched. Presently tears began trickling down his cheeks, but he continued his prayer, or address, or invocation, his tears unheeded.

Now one by one his silent listeners began to weep. They wept silently, and, but for their tears, Oliver would not have realized their deep emotion. Sometimes they rocked from side to side, but always they maintained silence and kept their tear-dimmed eyes focused on the speaker.

Abruptly Chupurosa came to a full stop, backed from the fire, and squatted on the ground inside the circle. No applause, not a word, no sign of any nature followed the cessation of his harangue.

Now two young Indians led forth an old, old man. Each of them held one of his arms. He was stooped and trembly, and his feet dragged pitiably; and as he neared the fire Oliver saw that he was totally blind.

Never before in his life had the white man seen age so plainly stamped on human countenance. Oliver had thought Chupurosa old, but he appeared as a man in the prime of life in comparison with this blind patriarch. His long hair was white as snow, and this in itself was a mark of antiquity seldom seen in the race. It was not until long afterward that Oliver found out that this man was a notable among the Pauba Tribes, Maquaquish by name—the oldest man among them, a seer, counsellor, and medicine man whose

prophesies and prognostications were forceful in the regulation of a great portion of the Paubas' lives. He was bareheaded, barefooted, and wore only blue overalls, a cloth girdle, and a coarse yellow shirt.

When at a comfortable distance from the fire the trio came to a stop. The two conductors of the pathetic blind figure knelt promptly on one knee, one on each side of him. With their bent knees touching behind him, they gently lowered him until he found the seat which their sinewy thighs had made for him. There was a few moments' silence, and then he lifted his trembling hands and began to speak.

Oliver carried no watch, and would not have had the discourtesy to consult it if he had; but he believed that Maquaquish spoke for two solid hours without pause. And all this time the two who upheld him on their knees and steadied him with their hands seemed not to move a muscle. And not a sound came from the audience beyond an occasional uncontrollable sob. Maquaquish spoke in hushed tones that blended strangely with the night sounds of the forest. His physical attitude and his delivery were those of a story-teller rather than an orator or preacher; and his listeners hung on every word, their black bead eyes fixed constantly on his face.

Oliver Drew was dreaming dreams. He would have given all that he had to be able to interpret what Maquaquish was saying. What strange traditions was he recalling to their minds? What hidden chapters in the bygone history of this ancient race? Never was congregation more wrapped up in a speaker's words. Never were religious zealots more devout. Strange thoughts filled the white man's mind.

He was roused from his dreaming with a start. Maquaquish had ceased speaking, and a low chanting sounded about the fire. It grew in volume as the blind man's escort led him back to his place in the circle. It grew louder, weirder still, as the two who had aided the seer stepped to the drygoods box and carried it between them past the fire. As they walked with it beyond the circle every Indian rose to his feet and followed slowly. Oliver did likewise, not knowing what else to do.

On the brink of one of the pools the assemblage halted, the firelight playing over them. From the box its custodians removed bolts of cheap new calico

cloth of many colours. Two of these they unwound, and laid along the ground, leading away from the edge of the chosen pool.

Then the two slipped out of their clothes and stepped naked into the water to their waists, where each laid hold of an end of a strip of calico and stood motionless.

To the edge of the moonlit pool stepped Chupurosa. He extended his hands over the water and spoke a few sonorous words. As his hands came down the chanting broke out anew, and now the men in the water began gathering in the strips of calico, washing the cloth in the water as they reeled it to them.

At last they finished. The chanting ceased. The two nude men carried the dripping cloth from the water in bundles. The assemblage filed back to the dying fire, all but the two who had washed the cloth.

When the Showut Poche-dakas were once more squatting in a circle about the blaze, one of the two, now dressed, entered the circle with the red *olla* filled with water from the pool. This was passed from hand to hand around the circle, and each one drank from it. When it came to Oliver he solemnly acted his part, and passed the *olla* to his left-hand neighbour.

As the *olla* finished its round, into the circle danced the two who had washed the cloth. In their arms they held bolts of dry cloth; and amid shouts and laughter they threw them into the air, while the feminine element of the tribe clutched up eagerly at them.

When the last bolt of calico had been thrown and had been captured and claimed by some delighted squaw, the assemblage, talking and laughing in an everyday manner, left the Four Pools and started back to their horses.

The Mona Fiesta was over. Symbolically the clothes of the dead had been washed. The Showut Poche-dakas had drunk of the water that had cleansed them. And this was about all that Oliver Drew ever learned of the significance of the ceremony.

At the cabin Chupurosa waited on his horse until his tribesmen had all ridden through the gate. Then he leaned over and spoke to Oliver.

"When a year has passed," he said, "and the same moon which we see tonight again looks down upon us, the Showut Poche-dakas will once more wash the clothes of the dead and drink of the water. I enjoin thee, Watchman of the Dead, to have all in readiness once more, as thou hadst tonight. *Adios*, Watchman of the Dead!"

And he rode off slowly through the moonlight.

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## CHAPTER XXIII

### THE QUESTION

The morning following the Feast of the Dead, Oliver Drew rode Poche out of Clinker Creek Cañon, driving Smith ahead of them, on the way to Halfmoon Flat for supplies. Over the hills above the American River he saw a white horse galloping toward him.

This was to be a chance meeting with Jessamy. He had an idea she would not be anxious to face him, after her attempted subterfuge of the night before; so he slipped from the saddle, captured Smith, and led the two animals back into the woods.

Then he hurried to a tree on the outskirts and hid behind it.

On galloped White Ann, with the straight, sturdy figure in the saddle. As they came closer Oliver knew by her face that Jessamy had not seen him; and as they came abreast he stepped out quickly and shouted.

Jessamy turned red, reined in, and faced him, her lips twitching.

"Good morning, my Star of Destiny!" he said.

A flutter of bafflement showed in her black lashes, but the lips continued to twitch mischievously.

"*Buenos dias*, Watchman of the Dead!" she shot back at him.

Oliver's eyes widened.

"Got under your guard with that one, eh, ol'-timer? Just so!—if you'll permit a Seldenism. Tit for tat, as the fella says! Your move again."

And then she threw back her head and laughed to the skies above her.

"Where are you going?" he asked.

"Ridin'."

"You weren't headed for the Old Ivison Place."

"No, not this morning. I was not seeking you. But since I've met you, and the worst is over, I'll not avoid you."

"Help me pack a load of grub down the cañon; then I'll go 'ridin' with you."

She nodded assent.

"I thought so," she observed, as he led Poche and Smith from hiding.

"I thought you'd turn back, or turn off, if you saw me here ahead of you," he made confession.

"I might have done that," she told him as they herded Smith into the road and followed him.

They said nothing more about what had taken place the night before until the bags had been filled and diamond-hitched, and Smith was rolling his pack from side to side on the homeward trail. Then Oliver asked abruptly:

"Who laid that fire, and put the box of cloth and the *olla* at The Four Pools yesterday?"

"Please, sir, I done it," she replied.

"When?"

"Just before I rode to your cabin last evening."

"Uh-huh!" he grunted, and fell silent again.

At the cabin she helped him throw off the diamond-hitch and unload the packbags. Then the shaggy Smith was left to his own devices—much to his loudly voiced disapproval—and Jessamy and Oliver rode off into the hills.

"Which way?" he asked as they topped the ridge.

"Lime Rock," she replied.

Tracing cow paths single-file, they wound through and about chaparral patches and rocky cañons till they reached the old trail that led to Lime Rock.

Lime Rock upreared itself on the lip of a thousand-foot precipice that overhung the river. It was three hundred feet in height, a gigantic white pencil pointing toward the sky. At its base was a small level space, large enough for a wagon and team to turn, but the remainder of the land about and above it was hillside, too steep for cows to climb. And from the edge of the level land the cañonside dropped straight downward, a mass of craggy rocks and ill-nourished growth. The trail that led to Lime Rock wound its way over a shelf four feet in width, hacked in the hillside. One false step on this trail and details of what must inevitably ensue would be hideous.

Oliver led the way when they reached the beginning of the trail. Both Poche and White Ann were mountain bred animals, sure-footed and unconcerned over Nature's threatening eccentricities. For a quarter of a mile the bay and the white threaded the narrow path, their riders silent. Then they came to Lime Rock and the security of the level land about it.

Here Oliver and Jessamy sat their horses and gazed down the dizzy precipice at the rushing river, and up the steep, rocky wall on the other side.

"Do you know who owns the land on which our horses are standing?" Jessamy finally asked.

"I've never given it a thought," said Oliver.

"It belongs to Damon Tamroy."

"That so? I didn't know he owned anything over this way."

"Yes, Damon owns it. But I have an option on it."

"You! Have an option on it!"

"Yes, a year's option. It was rather an underhanded trick that I played on old Damon, but he's not very angry about it. It's my first business venture.

"You see, I learned through a letter from a girl friend in San Francisco that a big cement company was thinking of invading this country. She wrote it

merely as a bit of entertaining news, but I looked at it differently.

"I knew where they'd begin their invasion. Right here! That magnificent monument there is solid limestone, and the hills back of it are the same, though covered by a thin layer of soil. So I went to the owner of the land, Damon Tamroy, and got a year's option on it for twenty-five dollars—a hundred and sixty acres.

"How Damon laughed at me! I told him outright why I wanted to buy the land, if ever I could scrape enough together. He didn't consider it very valuable, and it may become mine any day this year that I can pungle up four hundred and seventy-five bucks more. When he quizzed me, I told him frankly that I was doing it in an effort to preserve Lime Rock for posterity, and he laughed louder than ever.

"But he changed his tune when a representative of the cement company approached him with an offer of fifteen dollars an acre. He took his loss good-naturedly enough, but accused me of putting over a slick little business deal on him. I had done so, in a way, and admitted it; and ever since I've been talking myself blue in the face when I meet him, trying to convince him that it's not the money I'm after at all.

"Think of an old hog of a cement company coming in here and erecting a rumbling old plant, with the noon whistle deriding the reverential calm of this magnificent cañon, and their old drills and dynamite and things ripping Lime Rock from its throne! Bah! I'm going to San Francisco soon to get a job. I may decide to go this week. It will keep me hustling to put away four hundred and seventy-five dollars between now and the day my option expires."

Oliver sat looking gravely at the young idealist, suppressing his disappointment over the possibility of her early departure.

"But we have to have cement," he pointed out.

"Do we? Maybe so. But there's lots of limestone in the west. Men don't need to search out such spots as this in which to get it. There are less picturesque places, which will yield enough cement material for all our needs. Sometimes I think these big money-grabbers just love to ruin Nature with their old picks and powder. You may agree with me or not—I don't

care. I'm not utilitarian, and don't care who knows it. The world's against me in my big fight to keep the money hogs from robbing life of all its poetry; but it's a fight to the last ditch! I'll save Lime Rock, anyway, if I have to beg and borrow."

"I don't know that I disagree with you at all," he told her softly. "Money doesn't mean a great deal to me. I've shed no idle tears over my failure to inherit the money that I expected would be mine at Dad's death. I hold no ill will toward Dad. There's too much wampum in the world today. It won't buy much. The more people have the more they want. The so-called 'standard of living' continues to rise, and with it the ills of our civilization steadily increase. Luxuries ruin health. Automobiles make our muscles sluggish. Moving pictures clog our thinking apparatus. Telephones make us lazy. Phonographs and piano-players reduce our appreciation of the technique of music, which can come only by study and practice. What flying machines will do to us remains to be seen, but they'll never carry us to heaven!

"No, money means little enough to me. Give me the big outdoors and a regular horse, a keen zest in life, and true appreciation of every creature and rock and tree and blade that God has created, and I'll struggle along."

As he talked the colour had been mounting to her face. When he ceased she turned starry eyes upon him, her white teeth showing between slightly parted lips.

"Oliver Drew," she said, "you have made me very happy. I—"

A rush of blood throbbed suddenly at Oliver's temples, and once again he swung his horse close to hers.

"I'll try to make you happy always," he said low-voiced. "Jessamy—" Again he opened his arms for her, but as before she drew herself away from him.

"Don't! Not—not now! Wait—Oliver!"

"Wait! Always wait! Why?"

"I—I must tell you something first. I can tell you now—after—after last night."

"Then tell me quickly," he demanded.

She rested both hands on her saddle horn and rose in her stirrups. For a long time her black eyes gazed down the precipice below them, while the wind whipped wisps of hair about her forehead. Oliver waited, drunk with the thought of his nearness to her.

"Watchman of the Dead!" she murmured at last.

Oliver started.

"Two years ago," she went on softly, "I met the second Watchman of the Dead. You are the third. The first was murdered in this forest. His name was Bolivio, and he made silver-mounted saddles and hair-tasseled bridles."

Oliver scarce dared to breathe for fear of breaking the spell that seemed to have come over her. She did not look at him. She continued to gaze into her beloved cañon and at her beloved hills beyond.

"Oh, where shall I begin!" she cried at last. "Where is the beginning? A man would begin at the first, I suppose, but a woman just can't! But I won't be true to the feminine method and begin at the end. I won't be a copy-cat. I'll begin in the middle, anyway."

A smile flickered across her red lips; but still she gazed away from him.

"Two years ago," she said, "I met the dearest man."

Oliver straightened, and lumps shuttled at the hinges of his jaws.

"I was riding White Ann on one of my lonely wanderings through the woods. I met him on the ridge above the Old Iverson Place and the river.

"After that I met him many times, in the forest and elsewhere; and the more I talked with him the more I liked him. He was my idea of a man."

Oliver, too, was now gazing into the cañon, but he saw neither crags nor trees nor rushing green river.

"And he grew to like me," her low tones continued. "We talked on many subjects, but mostly of what we've been talking about today."

"He was an idealist, this man. He was comparatively wealthy, but there are things in life that he placed above money and its accumulation. By and by he grew to like me more and more, and finally he told me point blank that I was his ideal woman; and then he grew confidential and told me all about himself—his past, present, and what he hoped for in the future. And in my hands he placed a trust. Please God, I have tried to keep the faith!"

She threw back her head and followed the flight of an eagle soaring serenely over Lime Rock. And with her eyes thus lifted she softly said:

"That man was Peter Drew—your father."

Oliver's breast heaved, but he made no sound. Once more her eyes were sweeping the abyss.

"That's the middle," she said. "Now I'll go back to the beginning and tell you what Peter Drew entrusted to my keeping."

"Thirty years ago Peter Drew, who then called himself Dan Smeed, was the partner of Adam Selden. They mined and hunted and trapped together throughout this country."

"There were other activities, too, which I shall not mention. You understand. Your father told me all about it, kept nothing back. Remember that I said he was my idea of a man; and if in his youth he had been wild and—well, seemed criminally inclined—I found that easy to forget. Certainly the manliness and sacrifice of his later years wiped out all this a thousand times."

"Well, to proceed: Peter Drew and Adam Selden married Indian girls. Peter Drew won out in the fire dance and became a member of the Showut Poche-dakas. Adam Selden failed, and, according to the custom, took his wife from the tribe and lived with her elsewhere. Six months afterward the wife of Selden died."

"Peter Drew, however, having become a recognized member of the tribe, was taken into their full confidence. According to their simple belief, he had conquered all obstacles that stood between him and this affiliation; therefore the gods had ordained that full trust should be placed in him. And with their beautiful faith and simplicity they did not question his honesty."

So according to an old, old tradition of the tribe the white man was appointed Watchman of the Dead.

"I know little of this story. All of the traditions of the Showut Poche-dakas are clouded, so far as our interpretation of them goes. But it appears, from what your father told me, that ages ago a white-skinned chief had been Watchman of the Dead. Mercy knows where he came from, for, so far as history goes, the whites had not then invaded the country. But after him, whenever a white-skinned man conquered the evil spirits of the fire and became a member, he was appointed Watchman of the Dead. So in the natural order of things the honour came to Peter Drew.

"Up to this time the only other Watchman of the Dead remembered by even old Maquaquish and Chupurosa was the man called Bolivio. Holding this simple office, it seems that Bolivio had stumbled upon the secret so jealously guarded by the Showut Poche-dakas. He tried to turn this secret information to his own advantage, and in so doing he broke faith with the tribe that had adopted him as a brother. Found dead in the forest with a knife in his heart, is the abrupt climax of his tale of treachery. And so the tradition of the lost mine of Bolivio had its birth.

"Centuries ago, no doubt, the Showut Poche-dakas discovered the spodumene gems which were responsible for the fiction concerning the lost mine of Bolivio. They polished them crudely and worshipped them. Spodumene gems always are found in pockets in the rock, and they are always hidden in wet clay in these pockets. Solid stone will be all about them, with no trace of disintegrated matter, until a pocket is struck. Therein will be found separate stones of varying sizes, always sealed in a natural vacuum, which in some way forever retains moisture in the clay.

"This peculiarity appealed to the superstitious natures of the Showut Poche-dakas. It is their age-old custom to bury their dead in pockets hacked in cliffs of solid stones, sealing them with a cement of clay and pulverized granite. One can readily see how the discovery of these beautiful gems, sealed in pockets as they sealed their dead, might affect them. They determined that the glittering stones represented the bodies of their ancestors, and from that time on the lilac-tinted gems became something to be worshipped and guarded faithfully.

"Doubtless when Bolivio was appointed Watchman of the Dead he was told this secret, and learned where the stones were to be found. He got some of them, and sent them East to find out whether they were valuable. He polished two, and placed them in bridle *conchas*. Then before word came from New York the Indians stabbed him for his deceit.

"His elaborate equestrian outfit remained with the tribe, and your father acquired it when he became Watchman of the Dead. For some reason unknown to him, the stones were allowed to remain in the *conchas*; and he told me that he always imagined them to be a symbol of his office. Anyway, you, Oliver Drew, are the Watchman of the Dead, and your right to own and use that gem-mounted bridle goes unchallenged by the Showut Pochedakas."

She paused reflectively.

"All this your father told me," she presently continued. "He told me, too, that the secret place where the gems are to be found is on the Old Ivison Place. It was unclaimed land then, and your father camped there with his Indian wife, as was demanded of the Watchman of the Dead. Before his time, Bolivio had camped there. Later, Old Man Ivison homesteaded the place, knowing nothing of its strange history. He was a kindly old man, liked by everybody; and each year he allowed the Indians to hold their Mona Fiesta at The Four Pools. Though he had no idea why they held it in this exact spot each time—that up the slope above them was a hidden treasure that would have made the struggling homesteader rich for life.

"Then your father told me the worst part of it all. He and Selden, it seems, had found out more of the story of Bolivio than is to be unravelled today, with most of the old-timers dead and gone and the Indians always closemouthed. Anyway, they two found out about the secret gems and the significance of the fire dance. So they had planned deliberately to marry Indian girls to further their knowledge of this matter.

"It was understood between them that Adam Selden would intentionally fail to win out in the fire dance, and that Peter Drew, who was a Hercules for endurance and strength, would win if he could, and thus become Watchman of the Dead and learn the whereabouts of the brilliants. This scheme they

carried out, and Peter Drew took up residence with his brown-skinned bride on what is today the Old Ivison Place.

"Then he redeemed himself by falling in love with his wife. In time he found out where the gem pockets were situated. But when Selden came to him to see if he'd stumbled on to the secret, he put him off and said, 'Not yet.'

"From the date of the Fiesta de Santa Maria de Refugio until the night of the Mona Fiesta he remained undecided what to do. Somehow or other, he told me, though he had been a highwayman and was then protected from the flimsy law of that day only by his Indian brothers, he could not bring himself to break faith with them.

"Then came the night of the first Mona Fiesta since he became Watchman of the Dead; and that night temporarily decided him.

"When he squatted in the circle about the fire and saw the rapt, tear-stained, brown faces of these people who had placed absolute faith in him, he fell under the spell of their simplicity, and swore that so long as he lived he would not betray their trust.

"And he lived up to it, with his partner, Adam Selden importuning him daily to get the stones and skip the country. And finally to be rid of Selden and the double game he was obliged to play, Peter Drew left with his wife one night and did not return for fifteen years.

"And since then there has been no Watchman of the Dead until the night you defeated the evil spirits in the fire dance.

"Out in the world of white men Peter Drew settled down to ranching. His Indian wife had died two years after he left this country. With her gone, and the new order of things all about him, he began to wonder if he had not been a fool.

"Up here in the lonesome hills was wealth untold, so far as he knew, and he renounced it for an ideal. To secure those gems he had only to show ingratitude to the Showut Poche-dakas, had only to break faith with a handful of ignorant, simple-minded Indians. What did they and their ridiculous beliefs amount to in this great scheme of life as he now saw it?

Each day men on every hand were breaking faith to become wealthy, were trampling traditions and ideals underfoot to gain their golden ends. Business was business—money was money! Had he not been a fool? Was he not still a fool—to renounce a fortune that was his for the taking?

"He called himself an ignorant man. He told himself—and truly, too—that countless men whom he knew, who had read a thousand books to one merely opened by him—men of education, men of affairs—would laugh at him, and themselves would have wrested the treasure from its hiding place without a qualm of conscience. Civilization was stalking on in its unconquerable march. Should a handful of uncouth Indians, a superstitious, dwindling tribe of near-savages, be permitted to handicap his part in this triumphal march? No—never!

"But always, when he made ready to return to the scenes of his young manhood, there came before him the picture of brown, tear-stained faces about a fire, and of an old blind man speaking softly as if telling a story to eager children. Highwayman Peter Drew had been, but never in his life had he broken faith with a friend. Loyalty was the very backbone of my idealist, and he turned away from temptation and doggedly followed his plough.

"For thirty years and more the question faced him. Should he get the gems and be wealthy, and break faith with those who had entrusted him with the greatest thing in their lives—these people who had called him brother, whose last remnant of food or shelter was his for the asking? Or should he remain an idealist, a poor man, but loyal to his trust? The answer was No or Yes!

"Can't your imagination place you in his shoes? Unlettered, not sure of himself, ashamed of what he doubtless termed his chicken-heartedness. Don't you know that all of us are constantly ashamed of our secret ideals—ashamed of the best that is in us? We fear the ridicule of coarser minds, and hide what is Godlike in our hearts. And on top of this, your father was ignorant, according to present day standards, and knew it. But for thirty years, Oliver Drew, he prospered while his idealism fought the battle against the lust for wealth. Idealism won, but Peter Drew died not knowing whether he had been a wise man or a fool. He died a conqueror. Give us more of such ignorance!

"And he educated you, left you penniless, and placed his momentous question in your keeping.

"Fifteen years ago he bought the Old Iverson Place, though the Indians do not know it. Adam Selden has searched for the gems without result ever since Peter Drew left the country; and it was because of him that your father kept his purchase a secret. Two years ago, while you were in France, Peter Drew came here, met me and liked me, and told me all that I have told you.

"He knew that when you rode into this country with the saddle and bridle of Bolivio that the Showut Poche-dakas would know who you were, and would take you in and make you Watchman of the Dead. Peter Drew wanted you to be penniless, as he had been when he first faced the question. He gave me money with which to help along the cause. So far I've only had to use it for liquid courtplaster, an *olla*, and a few bolts of calico. You were to learn nothing of the story from my lips. You were to face the question blindly, with no other influences about you save those that he had experienced.

"I have done my best to carry out his wishes. You are the Watchman of the Dead. You own the land on which the treasure lies. You are brother of the Showut Poche-dakas. The treasure is yours almost for the lifting of a hand. You are almost penniless.

"There's your question, Oliver Drew. Say Yes and the gems are yours. Say No, and you have forty acres of almost worthless land, a saddle horse and outfit, and youth and health, and the lifetime office of Watchman of the Dead!"

She ceased speaking. There were tears in her great black eyes as she looked at him levelly.

"But—but—" Oliver floundered. "I don't know where the gems are. Selden has hunted them for thirty years, and has failed to find them. I've seen many evidences of his search. Will the Showut Poche-dakas tell me where they are?"

"Your father thought that perhaps, after what has passed in connection with former Watchmen of the Dead, you might not be told the exact location. So he made provision for that."

She reached in her bosom and handed him an envelope sealed with wax.

On it he read in his father's hand:

"Map showing exact location of what is known as the lost mine of Bolivio."

"If you open it," she said, "your answer probably will be No, and you become owner of the gems. If you destroy it unopened, your answer is Yes, and you are a poor man. Yes or No, Oliver Drew? Think over it tonight, and I'll meet you here tomorrow at noon."

"What do *you* want my answer to be?" he asked.

"I have no right to express my wishes in the matter," she said. "And your answer is not to be told to me, you must remember, but to your father's lawyers."

Then she turned White Ann into the narrow trail that led from Lime Rock.

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## CHAPTER XXIV

### IN THE DEER PATH

The morning following the trip to Lime Rock, Oliver Drew sat at his little home-made desk, his mind not on the work before him. Tilted against the ink bottle stood the long, tough envelope that Jessamy had given him, its black-wax seals still unbroken. He stared at it with unseeing eyes.

After they had left Lime Rock, Jessamy had given him a little more information on the subject which now loomed so big in his life.

She thought, she had said, that for years the Showut Poche-dakas had suspected Old Man Selden of knowing something of their secret. They could not have missed seeing the gophering that the old man had done on the hillside above The Four Pools. She knew positively that the Indians had kept a watchful eye on him, and it could be for no other reason.

The episode concerning Oliver's bayonet wound had come as a complete surprise to her. It seemed now, she said, that Peter Drew had communicated with Chupurosa not long before his death, and after Oliver's return from France, and had told him to be prepared for the coming of his son and how to make sure that he was genuine. She had not known that Peter Drew had been in the Poison Oak Country again, since he left after entrusting her with a hand in guiding Oliver's future.

She told of having overheard Adam Selden and Oliver's conversation that night at Poison Oak Ranch, and of the other eavesdropper who had stolen down from the spring. She was almost sure, she told him, that this man was Digger Foss; but whether or not Foss knew of the treasure she could not determine. Apparently, though, he suspected something of the kind, and had been looking out for his own interests that night.

Yes, it was the bridle and saddle and the gem-mounted *conchas* that had changed Selden's attitude toward Oliver. The underlying reason for his wishing Oliver off the Old Ivison Place had been the fear that the search for

the gems, which he had carried on intermittently for so long, would be interrupted. But to his gang he had pretended that it was sheer deviltry that caused him to contemplate driving the newcomer out.

Then a sight of the gem-mounted *conchas* of his old partner, and the fact that Oliver was at once taken into brotherhood by the Showut Poche-dakas changed his plans. Oliver knew of the gems and had come to seek them. He either was Dan Smeed's son, or had been taken into Dan Smeed's confidence. Oliver would become Watchman of the Dead. If he did not already know the location of the stones, he soon might learn it from the Indians. His friendship must be cultivated by all means, so that Selden might have the better chance of obtaining what he considered his rightful share of the treasure.

Oliver had then told Jessamy of the prospect holes on the hillside, of Digger Foss's spying on the cabin, of Tommy My-Ma's strange actions, and of the lithia he had found.

"Yes, lithia is an indication of gems," she had told him. "And it would appear that Digger knows of the treasure, after all. Perhaps sometime Selden confided in him in a careless moment, to enlist his aid in the search. They're pretty confidential. Digger was watching your movements, to see if you had any definite idea of the location of the stones or were searching for them blindly. That's it! He knows! But still he's suspicious of Old Man Selden. All of the Poison Oakers are now. They think he's double-crossing them some way, since he made friends with you.

"As for Tommy My-Ma trailing Digger, I'm not surprised. No doubt the Showut Poche-dakas are watching Old Man Selden and his gang as respects their attitude toward the new Watchman of the Dead. If the Poison Oakers had tried actually to molest you, I have an idea they'd have found they'd bitten off a chunk. I think they would have had fifty Showut Poche-dakas on their backs before they had gone very far."

All this passed through Oliver's mind again and again this morning, as he sat there with pipe gone out and idle pencil in his fingers.

What a romance that old father had woven about the life of his son! How skilfully and craftily he had planned so that Oliver would be thrown on his

own resources for an answer when he came face to face with the question! How cleverly Jessamy had carried out the part entrusted to her, despite her aversion to intrigues and plottings! Step by step she had led him on till at last the question confronted him, just as it had confronted his father before him.

To gain possession of the gems would be a simple matter. They were on his land somewhere—were his by every right in law. He had but to invoke the protection of the keepers of the peace against the Indians, break the seals of the long envelope, and dig in the place indicated by the map this envelope contained.

But there was one thing which doubtless Peter Drew had not foreseen in his careful planning. He could not have known that his son was to fall desperately in love with the guiding star that he had appointed for him. And Oliver Drew knew in his heart that if he robbed the Indians of these gems, which were to them only a symbol and had no meaning connected with worldly wealth, he would lose the girl. The only thing that stood between Jessamy and him, he now believed, was her uncertainty of what his answer to the question would be. In her staunch heart she respected the belief of the Showut Poche-dakas, and to her the gems as a symbol were as worthy of her reverence as the Sacred Book of the Christians. "I have as much reverence for a bareheaded Indian girl on her knees to the Sun God as for a hooded nun counting her beads," she had said.

Oliver stared at the inside of the cabin door, scarred and carved and full of bullet holes—at JESSAMY, MY SWEETHEART.

Peter Drew could not have foreseen this phase of the situation. In securing the gems Oliver Drew not only would lose his self-respect and make his father's thirty years of sacrifice a mockery, but he would lose the girl he loved.

So Oliver took small credit to himself when he rose from his desk at eleven o'clock, his mind made up.

He placed the letter unopened in his shirt front, and went out and saddled Poche. Then he rode to the backbone and wormed his way along it toward Lime Rock.

Jessamy was there ahead of him, sitting erect on White Ann's back, gazing upon the rugged objects of her daily adoration.

"Well," she said, "you've come," and her level eyes searched him through and through.

"Yes," he replied, riding to her side, "I've come; and my mind's made up."

She raised her dark brows in an attempt to betoken a mild struggle between politeness and indifference; but the hand on her saddle horn trembled, and the red had gone out of her cheeks.

"I must get out of here tomorrow," he said, "and go to Los Angeles. I've just about enough money to take me there and back; but I have the unbounded faith of an amateur in several farm articles now in editors' hands."

She lowered black lashes over her eyes and nodded slowly up and down.

"Exactly," she said. "You must carry out Peter Drew's instructions to the letter."

"But I can tell *you* what my answer to Dad's lawyers is going to be. I—"

"Don't!" she cried, raising a protesting hand. "Not a word to me. My responsibility ceased when I placed the envelope in your hands. I'm no longer concerned in the matter. That is—" she hesitated.

"Yes, go on."

"Until after you have made your report to the attorneys," she added. "Then, of course, I'll—I'll be sort of curious to know what your answer is."

"Then I'll come straight back to tell you," he promised. "And—Why, what's the matter!"

She had leaned forward suddenly in her saddle, and with wide eyes was looking down the precipice. Then before she could answer there came to Oliver's hearing the sound of a distant shot from the cañon.

Now he saw a puff of white smoke above the willows on the river bank, a thousand feet below them. Then a second, and by and by another ringing

report reached them, and the echoes of it went loping from wall to wall of the cañon.

"Merciful heavens!" cried Jessamy. "It's Old Man Selden! He's shot! Look at him reel in his saddle! Oh, horrors!... There he goes down on the ground!... But he's not killed! There—he's on his feet and shooting!"

Oliver, with open mouth, was staring down at the tragedy that had suddenly been staged for them in the river bed. Now several puffs of white smoke hung over the trees, and riders rode hither and thither like pigmies on pigmy horses. Now and then a stream of flame spurted horizontally, and at once another answered it. Then up barked the reports, followed by their mocking echoes.

"It's come! It's come!" wailed Jessamy. "Obed Pence, likely as not, has opened fire on Old Man Selden, and the boys are after him. Look—there's Chuck and Bolar and Jay and Winthrop—and, oh, most all of them! It's a general fight. Oh, I knew it would come! I knew it! Obed Pence has been so nasty of late. They were all drunk last night. Poor mother! Oh, what shall we do, Oliver? What can we do? We can't get down to them!"

"And could do nothing if we did," he said tensely.

Down below six-shooters still popped, and the balls of smoke continued to grow in number over the willows. Horsemen dashed madly about, shouting, firing. The two watchers learned later that Obed Pence, supported by Muenster, Allegan, and Buchanan—all drunk for two days on the fiery monkey rum—had lain in wait for Old Man Selden, and Pence had ridden out and confronted him as he rode down the river trail, supposedly alone. But the Selden boys for days had been hovering in the background, to see that their father got a square deal when he and Obed Pence next met. Pence and Adam Selden had drawn simultaneously; but the hammer of the old man's Colt had caught in the fringe of his chaps, and Obed had shot him through the left lung. Knowing their father to be a master gunman, his sons, who had not been close enough to witness the encounter, had jumped to the conclusion that Pence had fired from ambush. They charged in accordingly, and opened fire on Pence, killing him instantly. Then Pence's supporters had ridden forth in turn, and the general gun fight was on.

"I can't sit here and see them murdering one another!" Jessamy sobbed piteously. "They—they all may need killing, but—but I've lived with the old man and the boys, and—and—My mother!" The tears streamed down her cheeks as she made a trumpet of her hands and shouted down the precipice:

"Stop it! Stop it at once, I say!"

Only the echoes of her piercing cry made answer, and she wrung her hands and beat her breast in anguish.

"I'm going for help!" she cried abruptly. "They'll get behind trees pretty soon, and fight from cover. I'll ride to Halfmoon Flat for the constable and a posse to put a stop to this. Can't—can't you ride up the trail and find a way down to them, Oliver? Old Man Selden maybe will listen to you. Oh, maybe you can patch up peace between them!"

"I'll try," said Oliver grimly.

She wheeled White Ann and entered the narrow trail. Oliver followed. Recklessly she moved her mare at her rolling singlefoot along the dangerous trail, and eventually came out on the hillside. At once White Ann leaped forward and sped over the hills, a streak of silver in the noonday sun.

Oliver loped Poche to an obscure deer path that led down to the river, and as swiftly as possible began negotiating it.

He had not progressed twenty yards when the chaparral before him suddenly parted, and Digger Foss confronted him, his wicked Colt held waist-high and levelled.

"Stick 'em up!" he growled. "Be quick!"

Thoroughly surprised, Oliver reined in, and Poche began to dance. Mechanically Oliver raised his hands above his head, then almost regretted that he had not tried to draw. But the picture of Henry Dodd reeling against the legs of Jessamy's mare had been with him since his first day in the Poison Oakers' country. He knew that the halfbreed's aim was sure, and that his heart was a reservoir of venom.

The first shock passed, his composure returned in a measure. There stood the halfbreed, spread-legged in the path. The lids of his Mongolic eyes were lowered, and the beads of jet glittered wickedly from under them. He was drunk as a lord, Oliver knew quite well from the augmented insolence of his cruel lips; but Oliver knew that he might be all the more deadly, and that some drunken gunmen can shoot better than when sober.

"What is this?—a holdup?" he asked, and bit his lip as he noted the tremble in his tones.

"A holdup is right," said Foss. "A holdup, an' a little business matter you and me's got to attend to."

"Well, let's get at it!" Oliver snapped.

"I'm gonta kill you after our business is settled," Foss told him in a matter-of-fact tone.

A cold chill ran along Oliver's spine. Should he make a dive for his gun? Foss had every advantage, but—

Foss was stepping lazily nearer, his eyes intent on the horseman, his six-shooter ready.

"Down there by the river they're fightin' it out all because o' you buttin' into this country, where you ain't wanted." Foss had come to a stop, and was leering up at him. "You've made trouble ever since you come here. Old Man won't get rid o' you, but I'm goin' to today. But first, where's them gems?"

"I can't tell you," said Oliver.

"You're a liar!"

"Thank you. You have the advantage of me, you know. Slip your gun in the holster, and then call me a liar. I'll draw with you. My hands are up—you'll still have the advantage of having your hand closer to your gun butt."

"D'ye think you could draw with me?"

"I know it. And before you. Try it and see!"

Foss studied over this. "Maybe—maybe!" he said. "I never did throw down on a man without givin' 'im a chance. But you got no chance with me, kid. They don't make 'em that can get the drop on Digger Foss!"

"I'll take a chance," said Oliver quietly.

"We'll see about that later. But where's them stones?"

"I don't know, I tell you."

"What did you come up in this country for?"

"On matters that concern me alone."

"No doubt o' that—or so you think. But they're interestin' to me, too. What's in that letter Jess'my handed you at Lime Rock yesterday?"

"Oh, you were sneaking about and saw that, were you! Through your glasses, I suppose. Well, I haven't opened it, and don't know what's in it. If I did I wouldn't tell you. My arms are growing a little tired. Will you holster your gun and give me a chance before my arms play out?"

"I will if you come across with what you know about the gems. You might as well. If I kill you, you won't be worryin' about gems. And if you croak me, why, what if you did tell me?—I'm dead, ain't I?"

"There's sound logic in that," said Oliver grimly. "I'll take you up. Put your gun in its holster and drop your hands to your sides. Then we'll draw, with your gun hand three feet nearer your gun than mine will be. Come! I've got business down below."

The halfbreed's eyes widened in unbelief. "D'ye really mean it, kid? You saw me shoot Henry Dodd—d'ye really wanta draw with me?"

"I do."

"But then you'll be dead, and I won't know nothin' about the gems. Unless that letter tells?"

"Perhaps. You mustn't expect me to take *all* the chances, you know."

"Does the letter tell?"

"I haven't opened it, I say."

Foss studied in drunken seriousness. "And if you should happen to get me, why—why, where am I at again?" he puzzled.

Oliver laughed outright. "You're an amusing creature," he said. "I don't believe you're half the badman that you imagine you are." He believed nothing of the sort, but his arms were growing desperately weary and he must goad the drunken gunman into immediate action.

"There's just one thing that's the matter with you," he giped on, ready to descend to any speech that would cut the killer and break his deadly calm. "That's my getting your girl away from you! It's not the gems; it's that that hurts you. Why, say, do you think she'd wipe her feet on you!"

Into the eyes of the halfbreed came a viperish light that almost stilled Oliver's heartbeats. For an instant he feared that he had gone too far, that Foss was about to shoot him down in cold blood.

Foss stood spread-legged in the path, as before, his face twisting with anger, the fingers of his left hand clinching and unclenching themselves. Then Oliver almost ceased to breathe as a silent, dark figure slipped wraithlike from the chaparral and began stealing toward the back of Digger Foss.

"That settles it," said Foss. "I'll kill you for that, gems or no gems! Get ready! If you let down a hand while I'm puttin' up my gun I'll kill you like that!" He snapped the fingers of his left hand.

"I'll stick by my bargain," Oliver assured him, his glance struggling between Foss and that silent figure slinking in his rear.

What should he do? There was murder in the black eyes of the man who stole so stealthily upon the gunman's back. Should he shout to Foss? His sense of fair play cried out that he should. But Foss might misinterpret the meaning of his upraised voice, and fire. Should he—

"Here goes! I'm puttin' up my gun. Get ready, kid! When I—"

There was a leap, a flash of steel in the sunlight, a scream of agonizing pain.

Oliver's gun was out and levelled; but Foss was staggering from side to side, his arms limp before him, his head lopped forward as if he searched for something on the ground. He collapsed and lay there gasping hideously in the path, in a growing pool of blood.

The chaparral opened and closed again; and then only Oliver and the man in his death throes were remaining.

Even as Bolivio had died, so died Digger Foss, in a path in the wilderness, with the knife of a Showut Poche-daka in his back.

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## CHAPTER XXV

### THE ANSWER

Two weeks had passed since the battle of the Poison Oakers. That organization was now no more. Jessamy's efforts to mobilize a posse to stop the fight had proved fruitless. Only the constable and Damon Tamroy rode back with her with first aid packages, for Halfmoon Flat had voiced its indifference in a single sentence—"Let 'em fight it out!" Those whom the constable would have deputized promptly made themselves scarce.

So the Poison Oakers had fought it out, and in so doing appended "Finis" to the annals of their gang. Old Man Selden died two days after the battle. Winthrop was killed outright, and Moffat was seriously wounded, but might recover. Obed Pence was dead; Digger Foss was dead. Jay Muenster was dead. Thus half of their numbers were wiped out, and among them the controlling genius of the gang, Old Man Selden. And without him those remaining, already split into two factions, were as a ship without a rudder.

And all because of Oliver Drew!

Oliver stepped from the train at Halfmoon Flat this afternoon, two weeks after the fight. He had helped Jessamy and her mother through the difficulties arising from the tragedy, had appeared as witness at the inquest, and had then hurried to Los Angeles with his sealed envelope. Now, returning, he caught Poche in a pasture close to the village and saddled him.

It was one o'clock in the afternoon. He had lunched on the diner, so at once he lifted Poche into his mile-devouring lope and headed straight for Poison Oak Ranch.

What changes had taken place since first he galloped along that road, barely four months before! Few with whom he had come in contact were still pursuing the even tenor of their ways, as then. He thought of the fight and of the spectacular death of Digger Foss. At the inquest he had been unable to throw any light on the identity of the halfbreed's murderer. He was an

Indian—beyond this Oliver could say no more. The coroner had quizzed him sharply. Whereupon Oliver had asked that official if he himself thought it likely that he could have looked into the muzzle of a Colt revolver in the hands of Digger Foss, and at the same time make sure of the identity of a man stealing up behind him. The coroner had scratched his head. "I reckon I'd 'a' been tol'able int'rested in that gun o' Digger's," was his confession.

And Oliver had told the truth. To this day he does not know who killed the gunman—but he knows that in all probability his own life was saved when it occurred, and that it was a Showut Poche-daka who struck the blow.

At Poison Oak Ranch he found Jessamy awaiting him. He had sent her a wire the day before, telling her he was coming, and the hour he would arrive.

They shook hands soberly, and after a short conversation with Mrs. Selden, Oliver saddled White Ann for Jessamy and they rode away into the hills. They were for the most part silent as their horses jogged along manzanita-bordered trails. Instinctively they avoided Lime Rock and its vicinity, and made toward the north, up over the hog-back hills, now sear and yellow, which climbed in interminable ranks to the snowy peaks. They came to a ledge that overlooked the river, and here they halted while the girl gazed down on scenes that never wearied her.

They dismounted presently and seated themselves on two great grey stones. Jessamy rested her round chin in her hand, and from under long lashes watched the green river winding about its serpentine curves below.

The tragedy of death had left its mark on her face. There was a sober, half-pathetic droop to the red lips. The comradely black eyes were thoughtful. But the self-reliant poise of the sturdy shoulders still was hers, and the sense of strength that she exhaled was not impaired.

Her dress today was not rugged, as was ordinarily the case when she rode into the hills. She wore a black divided skirt, and a low-neck yellow-silk waist, trimmed with black, and a black-silk sailor's neckerchief. To further this effect a yellow rose nestled in her night-black hair. She looked like a gorgeous California oriole, so trim was her figure, so like that bird's were the contrast of colours she displayed. And her voice when she spoke, low

and clear and throbbing melodiously, reminded him of the notes of this same sweet songster at nesting time.

Oliver sat looking at the profile of her face, with the wind-whipped hair about it. More fully than ever now he realized that she was everything in life to him. And today—now!—smilingly, unabashed.

"Well, Jessamy," he began, "I have seen Dad's lawyers." She turned her face toward him, but still rested her elbow on her knee, one cheek now cupped by her hand.

"Yes," she said softly. "Tell me all about it."

"And I gave them my answer to the question."

For several moments her level glance searched his face, a little smile on her lips.

"And what is your answer?" she asked.

He rose and moved to the stone on which she sat, seating himself beside her.

"Don't you know what my answer is?" he asked softly.

She continued to look at him fearlessly, smilingly, unabashed.

"I think I know," she said. "But tell me."

"My answer," he said, "is the same that dear old Dad kept repeating for thirty years. I shall not enrich myself by sacrificing the confidence placed in me. I shall remain loyal to my simple trust. I am the Watchman of the Dead."

Her lips quivered and her eyes glowed warmly, and two tears trickled down her cheeks. Oliver took from his shirt the envelope and showed her the black seals, still unbroken. Then on a flat rock before them he made a tiny fire of grass and twigs, and placed the envelope on top of it. Then he lighted a match.

"The funeral pyre of my worldly fortune!" he apostrophized. "The lost mine of Bolivio will be lost indeed when the map has burned."

Together they watched the tiny fire in silence, till the black wax sputtered and dripped down on the stone, and the eager flames crinkled the envelope and its contents and reduced them to ashes.

"And now?" said Oliver.

"And now!" echoed Jessamy.

He slowly placed both arms about her and lifted her, unresisting, to her feet. He drew her close, brushed back her hair, and looked deep into eyes from which tears streamed unrestrained. Then she threw her arms about his shoulders, and, with a glad laugh, half hysterical, she drew his head down and kissed him time and again.

His hour had come. Oliver Drew had captured the star that had led him on and on—his Star of Destiny. Warm were her lips and tremulous—glowing were her eyes for love of him. His pulse leaped madly as she gave herself to him in absolute surrender.

"There's another matter," he said five minutes later, as she lay silent in his arms, with the fragrance of her hair in his nostrils. "Old Danforth, the head of the firm of attorneys that attended to Dad's affairs, looked at me keenly from under shaggy brows when I gave my answer.

"So it's No, is it, young man?' he said.

"No it is,' I told him.

"In that case,' he said, 'you are to come with me.'

"He took me to a bank and opened a safe-deposit box in the vaults. He showed me bonds totalling over a hundred thousand dollars, and cash that represented the interest coupons the firm had been clipping since Dad died.

"Here's the key,' he told me. 'If your answer had been yes, these bonds, too, would have gone to the church. For then you would have had the gems. Your father didn't mean to leave you penniless. You would have been fairly well off, I imagine, whether your answer had been Yes or No. Your father wanted his question answered by a man of education, and I think he would be pleased at your decision.'"

Jessamy had straightened and twisted in his arms till her face was close to his.

"Peter Drew never hinted at that to me!" she cried. "I—I suppose you'd have nothing but the Old Ivison Place if you answered No. Oh, my romantic Old Peter Drew! God rest his soul! I'm so glad."

"Glad, eh?" He smiled whimsically at her, and she quickly interpreted his thoughts.

"Oh, but, Oliver—you don't understand! It's not that you're wealthy, after all—but now you can give Damon Tamroy just what the cement company would have paid him for Lime Rock!"

"Lime Rock shall be your wedding gift," he laughed.

"Oh, Oliver! And—and when we're—married, you won't take me away from the Poison Oak Country, will you, dear! I'll go anywhere you say—but these hills, and the river, and Lime Rock, and Old Dad Sloan, and—my Hummingbird—and the perfume of the manzanita blossoms in spring—and—oh, I love my country next to you, dear heart! And in my dreams I loved you even before you came riding to me in the silver-mounted saddle of Bolivio, like a knight out of the past. This is my country—and if we must go, I'll pine for it—and maybe die like the Indian bride. I want to stay here, Oliver dear—with you—down on the dear Old Ivison Place!"

Oliver tenderly kissed his Star of Destiny. "I have no other plans," he whispered into her ear. "My place is there.... I am the Watchman of the Dead!"

**THE END**

\*\*\* END OF THE PROJECT GUTENBERG EBOOK THE HERITAGE  
OF THE HILLS \*\*\*

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